



Chapter Title: NOTES

Book Title: From the War on Poverty to the War on Crime

Book Subtitle: The Making of Mass Incarceration in America

Book Author(s): ELIZABETH HINTON

Published by: Harvard University Press

Stable URL: <https://www.jstor.org/stable/j.ctvjk2w72.14>

JSTOR is a not-for-profit service that helps scholars, researchers, and students discover, use, and build upon a wide range of content in a trusted digital archive. We use information technology and tools to increase productivity and facilitate new forms of scholarship. For more information about JSTOR, please contact support@jstor.org.

Your use of the JSTOR archive indicates your acceptance of the Terms & Conditions of Use, available at <https://about.jstor.org/terms>



JSTOR

Harvard University Press is collaborating with JSTOR to digitize, preserve and extend access to *From the War on Poverty to the War on Crime*

NOTES

ACKNOWLEDGMENTS

INDEX

NOTES

INTRODUCTION: ORIGINS OF MASS INCARCERATION

1. Lyndon Johnson, "Statement of the President on Establishing the President's Commission on Law Enforcement and the Administration of Justice," *Public Papers of Presidents of the United States: Lyndon B. Johnson*, 1965 (Washington, DC: U.S. Government Printing Office, 1966), 382.
2. Johnson's War on Crime remains largely absent from histories of his administration, the War on Poverty, and the Great Society. Julian E. Zelizer's *The Fierce Urgency of Now: Lyndon Johnson, Congress, and the Battle for the Great Society* (New York: Penguin Press, 2015) is indicative. Urban historians, too, have been late to recognize the consequences of the punitive social programs in the long and short terms. Heather Thompson unearthed new directions for the field in her groundbreaking 2010 article from the *Journal of American History*. In calling for historians to "think critically about mass incarceration and begin to consider the reverberations of this never-before-seen phenomenon," Thompson makes a profound case for why the rapid expansion of the American carceral state needs to be at the center of work that considers the rise of conservatism, the decline of the labor movement, and urban inequality within U.S. history in general and the postwar period in particular. Heather Thompson, "Why Mass Incarceration Matters: Rethinking Crisis, Decline, and Transformation in Postwar American History," *Journal of American History* 97, no. 3 (December 2010): 703–758, 705. I borrow this definition of mass incarceration from David Garland, *The Culture of Control*:

Crime and Social Order in Contemporary Society (Chicago: University of Chicago Press, 2002), 5–6. Lawrence D. Bobo and Victor Thompson have suggested we refer to mass incarceration as “racialized mass incarceration,” given the undeniable racial disparities within the nation’s prison system and the historical criminalization of African Americans. See Bobo and Thompson, “Racialized Mass Incarceration: Poverty, Prejudice, and Punishment,” in *Doing Race: 21 Essays for the 21st Century*, ed. Hazel R. Markus and Paula Moya (New York: W. W. Norton, 2010): 322–355, 327.

3. Although the LEAA has been largely overlooked by scholars, some of the most extensive treatments of the agency in the existing literature include Thomas E. Cronin, Tamia Z. Cronin, and Michael E. Millakovich, *U.S. v. Crime in the Streets* (Bloomington: Indiana University Press, 1981); Malcolm Feeley and Austin Sarat, *The Policy Dilemma: Federal Crime Policy and the Law Enforcement Assistance Administration, 1968–1978* (Minneapolis: University of Minnesota Press, 1980); Barry Mahoney, *The Politics of the Safe Streets Act, 1965–1973: A Case Study in Evolving Federalism and the National Legislative Process* (PhD diss., Columbia University, 1976); Christian Parenti, *Lockdown America: Police and Prisons in the Age of Crisis* (London: Verso Press, 1999); Vesla Mae Weaver, “Frontlash: Race and the Politics of Punishment” (PhD diss., Harvard University, 2007); “\$236-Million Allocated by U.S. to Help the States Fight Crime,” *New York Times*, January 19, 1970, 28; Martin Weil, “U.S. Fund Aids War on Crime,” *Washington Post*, January 19, 1970, A1; “Crime Fighters’ Funds to Rise \$310 Million in Year; War on Poverty to Become a Secondary Engagement,” *Wall Street Journal*, February 3, 1970; Fred P. Graham, “Crime,” *New York Times*, February 3, 1970, 23. See Beth Lynch, *Dollars and Sense of Justice: A Study of the Law Enforcement Assistance Administration as It Relates to the Defense of the Criminal Justice System* (Washington, DC: National Legal Aid and Defender Association, 1973); Weaver, “Race and Politics,” 115; General Briefing of the LEAA, U.S. Department of Justice, April 1977, folder 10, LEAA [3], box 25, Annie Gutierrez Files, 1-21-1987, Jimmy Carter Presidential Library; Memorandum to Donald T. Regan from Charles Hobbs and Richard L. Williams, subj.: “The Anti-Drug Abuse Budget,” MacDonald Files, Anti-Drug Abuse Budget, 1987–, Working Papers OA 16316, Ronald Reagan Presidential Library.
4. On the evolution of the American carceral state from the early republic to the twentieth century, see Marie Gottschalk, *The Prison and the Gallows: The Politics of Mass Incarceration in America* (Cambridge: Cambridge University Press, 2006); and Rebecca McLennan, *The Crisis of Imprisonment: Protest, Politics, and the Making of the American Penal State, 1776–1941* (New York: Cambridge University Press, 2008). More recently, Gottschalk’s *Caught:*

The Prison State and the Lockdown of American Politics (Princeton, NJ: Princeton University Press, 2014) enhances our view of the ways in which the carceral state extends beyond prisons themselves to the probation and parole systems, reentry programs, and immigration detention centers. Works that consider the criminalization of African Americans and the rise of American prisons in the eighteenth and nineteenth centuries include Douglas A. Blackmon, *Slavery by Another Name: The Re-Enslavement of Black Americans from the Civil War to World War II* (New York: Anchor, 2009); Mary Ellen Curtin, *Black Prisoners and Their World: Alabama, 1865–1900* (Charlottesville: University of Virginia Press, 2000); Kali Gross, *Colored Amazons: Crime, Violence, and Black Women in the City of Brotherly Love: 1880–1910* (Raleigh: Duke University Press, 2006); Talitha LeFlouria, *Chained in Silence: Black Women and Convict Labor in the New South* (Chapel Hill: University of North Carolina Press, 2015); Alex Lichtenstein, *Twice the Work of Free Labor: The Political Economy of Convict Labor in the New South* (New York: Verso, 1996); David M. Oshinsky, “Worse than Slavery”: *Parchman Farm and the Ordeal of Jim Crow Justice* (New York: Free Press, 1997); David Rothman, *The Discovery of the Asylum: Social Order and Disorder in the New Republic* (New York: Transaction, 1971).

5. I borrow this conception from Matthew Lassiter, who articulates the bipartisan dimensions of many domestic policies in the post-World War II U.S. through the framework of consensus. See Lassiter, “Political History beyond the Red-Blue Divide,” *Journal of American History* 98 (December 2011): 760–764.
6. Katherine Beckett, *Making Crime Pay: Law and Order in Contemporary American Politics* (New York: Oxford University Press, 1997); Jonathan Simon, *Governing through Crime: How the War on Crime Transformed American Democracy and Created a Culture of Fear* (New York: Oxford University Press, 2009); Weaver, “Frontlash: Race and the Development of Punitive Crime Policy,” *Studies in American Political Development* 21 (Fall 2007): 230–265; and Weaver, “Race and Politics”; Bruce Western, *Punishment and Inequality in America* (New York: Russell Sage Foundation, 2006) also ground their discussions of mass incarceration in the national politics of crime control in the 1960s. Naomi Murakawa’s important recent study on federal punitive policies pushes us back to the Truman administration and emphasizes the role of congressional representatives in Murakawa, *The First Civil Right: How Liberals Built Prison America* (New York: Oxford University Press, 2014).
7. Exact figures for the number of people incarcerated in the United States in 1865 are not available. By averaging the number of incarcerated people as recorded by the U.S. Census Bureau of 1860 (at 19,086) and 1870 (at 32,901), we

- can assume the total prison population was around 25,994 individuals. Margaret Werner Cahalan, U.S. Department of Justice, Bureau of Justice Statistics, “Historical Corrections Statistics in the United States, 1850–1984,” (Washington, DC: U.S. Government Printing Office, December 1986), 28. Not including jails, the exact numbers of Americans imprisoned in federal and state facilities were 210,895 in 1965; 240,593 in 1975; 502,507 in 1985; roughly 1 million in 1995; and 1.4 million in 2005. The incarceration rate itself has swelled from 108 per 100,000 Americans in 1965 to the 698 per 100,000 that it is today. This remarkable incarceration rate is second only to Seychelles. U.S. Department of Justice, “Prisoners 1925–1981,” *Bureau of Justice Statistics Bulletin* (Washington, DC: U.S. Government Printing Office, December 1982), 2; Jeremy Travis, Bruce Western, and Steve Redburn, eds. *The Growth of Incarceration in the United States: Exploring Causes and Consequences* (Washington, DC: National Academies Press, 2014), 2; Bobo and Thompson, “Racialized Mass Incarceration,” 326; U.S. Department of Justice, “Prisoners in 1994,” *Bureau of Justice Statistics Bulletin* (Washington, DC: U.S. Government Printing Office, August 1995), 2; U.S. Department of Justice, “Prisoners in 2005,” *Bureau of Justice Statistics Bulletin* (Washington, DC: U.S. Government Printing Office, November 2006), 2; U.S. Department of Justice, “Prisoners in 2013,” *Bureau of Justice Statistics Bulletin* (Washington, DC: U.S. Government Printing Office, November 2014), 2.
8. Within prisons for adult men, black Americans constitute 37 percent of those incarcerated, followed by white Americans at 32 percent, and Latino Americans at 22 percent. E. Ann Carson, “Prisoners in 2013,” *Bureau of Justice Statistics Bulletin*, U.S. Department of Justice (Washington, DC: U.S. Government Printing Office, September 2014), 1, available at <http://www.bjs.gov/content/pub/pdf/p13.pdf>.
 9. More than half of young black men in major urban centers are currently in prison or jail, and across the nation black men are 6.5 times more likely than white men and 2.5 times more likely than Latino men to be living behind bars. Bruce Western, *Punishment and Inequality in America* (New York: Russell Sage Foundation, 2006), 31, 195; see Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York: New Press, 2011), 16; Heather C. West, William J. Sabol, and Sarah J. Greenman, “Prisoners in 2009,” *Bureau of Justice Statistics Bulletin*, U.S. Department of Justice (Washington, DC: U.S. Government Printing Office, rev. October 27, 2011).
 10. Although the FBI began gathering statistics in 1930, its Uniform Crime Report did not provide national figures until 1958, and even then these rates disproportionately reflected the statistics compiled by urban police departments. The growth of the national statistics apparatus gave rise to the field of

criminology and has produced a massive literature on crime rates. While social scientists agree that crime rose in the 1970s, it had declined by the early 1980s, and then went up again at the end of the decade with the War on Drugs in full swing. Although crime began to decline during the Clinton administration, when the prison population exploded, the best research on this issue has yet to reveal a direct relationship between crime trends and incarceration. Punitive practices, too, tend to have no direct relationship to actual conditions. Between 1975 and 1989, for instance, the average prison time for violent offenses tripled, even though violent crime levels remained constant. Strom Thurmond quoted in Senate Subcommittee on Criminal Laws and Procedures, Committee on the Judiciary, *Controlling Crime Through More Effective Law Enforcement: Hearing before the Subcommittee on Criminal Laws and Procedures*, 90th Cong., 1st sess., March 7, 1967, 47; Fred J. Cook, "There's Always a Crime Wave—How Bad Is This One?," *New York Times*, October 6, 1968, SM38; Milton Eisenhower et al., *To Establish Justice: To Insure Domestic Tranquility: Final Report on the National Commission on the Causes and Prevention of Violence* (Washington, DC: U.S. Government Printing Office, 1969).

11. During the House Judiciary subcommittee hearings considering Johnson's Safe Streets Act in March 1968, Elliot H. Lumbard, former chair of the New York State Crime Commission, testified that the FBI Uniform Crime Report "should not collect or be a statistical tool. It has a stake to a certain degree in the system." Another witness put it simply: "Is crime going up or is crime going down? We do not honestly know." Lumbard quoted in Carl Bernstein, "FBI Jealousy Hinted in Gap in Crime Statistics," *Washington Post*, March 10, 1968, B4; Milton Eisenhower et al., *To Establish Justice: To Insure Domestic Tranquility: Final Report on the National Commission on the Causes and Prevention of Violence* (Washington, DC: U.S. Government Printing Office, 1969). On the relationship between incarceration and crime, see Travis, Western, and Redburn, eds., *The Growth of Incarceration in the United States*, chap. 5. See also Angela Davis, *Are Prisons Obsolete?* (New York: Seven Stories Press, 2003), 92; Gottschalk, *Prison and the Gallows*, 25; Murakawa, *First Civil Right*; Weaver, "Race and Crime Policy," 258, 260–261; Western, *Punishment and Inequality*; Bureau of Justice Statistics, "Bridging Gaps in Police Crime Data," September 1999, available at: <http://www.bjs.gov/content/pub/pdf/bgpcd.pdf>; Daniel Bell offered a nuanced critique of crime statistics five years before Johnson declared the "War on Crime" in "The Myth of Crime Waves: The Actual Decline of Crime in the United States," in *The End of Ideology: On the Exhaustion of Political Ideas in the Fifties*, rev. ed. (Cambridge, MA: Harvard University Press, 2000), 151–174.
12. See especially Michael W. Flamm, *Law and Order: Street Crime, Civil Unrest, and the Crisis of Liberalism in the 1960s* (New York: Columbia University Press,

- 2005); Thomas and Mary Edsall, *Chain Reaction: The Impact of Race, Rights, and Taxes on American Politics* (New York, 1991). Notable treatments focusing on the rise of the conservative right include Lisa McGirr, *Suburban Warriors: The Origins of the New American Right* (Princeton, NJ: 2002); Kevin Kruse, *White Flight: Atlanta and the Making of Modern Conservatism* (Princeton, NJ: Princeton University Press, 2007); Matthew D. Lassiter, *The Silent Majority: Suburban Politics in the Sunbelt South* (Princeton, NJ: Princeton University Press, 2007); Jill Quadagno, *The Color of Welfare: How Racism Undermined the War on Poverty* (New York: Oxford University Press, 1994).
13. The politics of crime control figures prominently in the literature on the carceral state. A sampling includes Beckett, *Making Crime Pay*; Katherine Beckett, "Setting the Public Agenda: 'Street Crime' and Drug Use in American Politics," *Social Problems* 41 (1994): 425–447; James D. Calder, "Presidents and Crime Control: Kennedy, Johnson and Nixon and the Influences of Ideology," *Presidential Studies Quarterly* 12, no. 4 (1982): 574–589; Dillon Davey, *The Politics of Prison Expansion: Winning Elections by Waging War on Crime* (Westport, CT: Praeger, 1998); Flamm, *Law and Order*; Gottschalk, *Prison and the Gallows*; Gottschalk, *Caught*; John Hagan, *Who Are the Criminals?: The Politics of Crime Policy from the Age of Roosevelt to the Age of Reagan* (Princeton, NJ: Princeton University Press, 2012); Nancy Marion, *A History of Federal Crime Control Initiatives, 1960–1993* (Westport, CT: Praeger, 1994); Lisa Lynn Miller, *The Perils of Federalism: Race, Poverty, and the Politics of Crime Control* (New York: Oxford University Press, 2010); Stuart Scheingold, *The Politics of Law and Order: Street Crime and Public Policy* (New York: Longman, 1984). Placing race at the center of her analysis, Vesla Weaver breaks from the dominant view and describes the rise of federal crime control policies as a "frontlash" to the upheaval of the Second Reconstruction. See Weaver, "Race and Crime Policy," and Weaver, "Race and Politics."
 14. The body of work on state-level factors in contributing to mass incarceration is extensive. Some of the best studies include Ruth Wilson Gilmore, *Golden Gulag: Prisons, Surplus, Crisis, and Opposition in Globalizing California* (Berkeley, CA: University of California Press, 2007); Julilly Kohler-Hausmann, "'The Attila the Hun Law': New York's Rockefeller Drug Laws and the Making of the Punitive State," *Journal of Social History* 44 (2010): 71–95; Alex Lichtenstein, "Flocatex and the Fiscal Limits of Mass Incarceration: Toward a New Political Economy of the Postwar Carceral State," *Journal of American History* 102 (June 2015): 113–125; Mona Lynch, *Sunbelt Justice: Arizona and the Transformation of American Punishment* (Stanford, CA: Stanford Law Books, 2010); Joshua Page, *The Toughest Beast: Politics, Punishment, and the Prison Officers Union in California* (New York: Oxford University Press, 2011); Robert

- Perkinson, *Texas Tough: The Rise of America's Prison Empire* (New York: Picador, 2010); Heather Schoenfeld, "The Politics of Prison Growth: From Chain Gangs to Work Release Centers and Supermax Prisons, Florida, 1955–2000" (PhD diss., Northwestern University, 2009). The Sentencing Project has also conducted a number of studies examining the role of the states. See especially Ryan S. King, Marc Mauer, and Tracy Huling, "Big Prisons, Small Towns: Prison Economics in Rural America" (Washington, DC: The Sentencing Project, February 2003), available at http://www.sentencingproject.org/doc/inc_bigprisons.pdf.
15. Work on the black activists and organizations that mobilized in support of punitive programs includes James Forman, "Racial Critiques of Mass Incarceration: Beyond the New Jim Crow," *NYU Law Review* 87, no. 1 (2012): 101–146; Michael Javen Fortner, *Black Silent Majority: The Rockefeller Drug Laws and the Politics of Punishment* (Cambridge, MA: Harvard University Press, 2015); and Fortner, "The Carceral State and the Crucible of Black Politics: An Urban History of the Rockefeller Drug Laws," *Studies in American Political Development* 27, no. 1 (2013): 14–35. In her review of *Black Silent Majority*, Donna Murch provides a powerful critique of the view that African Americans ultimately precipitated the rise of the carceral state by calling for intensive policing, stricter sentencing laws, and the imprisonment of drug users. See "Who's to Blame for Mass Incarceration?," *Boston Review*, October 16, 2015, available at <http://bostonreview.net/books-ideas/donna-murch-michael-javen-fortner-black-silent-majority>.
 16. A number of studies have shown that white Americans are overwhelmingly more punitive and have higher levels of confidence in the law enforcement and criminal justice systems than their African American counterparts. According to a recent survey conducted by the Pew Research Center, roughly 70 percent of African Americans as compared to 37 percent of whites feel that black citizens are treated unfairly by police and the courts. Pew Research Center, "King's Dream Remains an Elusive Goal; Many Americans See Racial Disparities," (Washington, DC: Pew Research Center, 2013), 7–8, available at http://www.pewsocialtrends.org/files/2013/08/final_full_report_racial_disparities.pdf; see also The Sentencing Project, "Race and Punishment: Racial Perceptions of Crime and Support for Punitive Policies," (Washington, DC: The Sentencing Project, 2014), available at http://sentencingproject.org/doc/publications/rd_Race_and_Punishment.pdf; Frank Newport, "Gallup Review: Black and White Attitudes Towards the Police," August 20, 2014, available at <http://www.gallup.com/poll/175088/gallup-review-black-white-attitudes-toward-police.aspx>.
 17. Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York: The New Press, 2010). On urban policing and its

- development, see Christopher Lowen Agee, *The Streets of San Francisco: Policing and the Creation of a Cosmopolitan Liberal Politics, 1950–1972* (Chicago: University of Chicago Press, 2014); Radley Balko, *The Rise of the Warrior Cop: The Militarization of America's Police Forces* (New York: Public Affairs, 2014); Robert M. Fogelson, *Big City Police: An Urban Institute Study* (Cambridge, MA: Harvard University Press, 1977); Marisol LeBrón, “Violent Arrest: Punitive Governance and Neocolonial Crisis in Contemporary Puerto Rico” (PhD diss., New York University, 2014); Christian Parenti, *Lockdown America: Police and Prisons in the Age of Crisis* (New York: Verso, 2000). A sampling of the vast literature on race and American criminal justice includes Lawrence D. Bobo and Victor Thompson, “Unfair by Design: The War on Drugs, Race, and the Legitimacy of the Criminal Justice System,” *Social Research* 73, no. 2 (2006): 445–472; Angela Davis, “Race and Criminalization: Black Americans and the Punishment Industry,” in *The Angela Y. Davis Reader*, ed. Joy James (New York: Blackwell, 1998), 61–73; Gilmore, *Golden Gulag*; Mark Mauer, *Race to Incarcerate* (New York: New Press, 1999); Glenn Loury, ed., *Race, Incarceration and American Values* (Cambridge, MA: MIT Press, 2008); Jerome G. Miller, *Search and Destroy: African-American Males in the Criminal Justice System* (Cambridge: Cambridge University Press, 1996); Dora Marie Provine, *Unequal under Law: Race in the War on Drugs* (Chicago: University of Chicago Press, 2007); Dorothy Roberts, “Constructing a Criminal Justice System Free of Racial Bias: An Abolitionist Framework,” *Columbia Human Rights Law Review* 39 (2007): 272; Robert J. Sampson and William Julius Wilson, “Toward a Theory of Race, Crime, and Urban Inequality,” in *Crime and Inequality*, ed. John Hagan and Ruth Peterson (Palo Alto, CA: Stanford University Press, 1995), 37–54; Michael Tonry, *Malign Neglect: Race, Crime, and Punishment in America* (New York: Oxford University Press, 1995); Weaver, “Race and Crime Policy;” Bruce Western and Becky Petit, “Incarceration and Social Inequality,” *Daedalus* 139, no. 3 (2010).
18. For comprehensive accounts of the War on Drugs before the 1980s, see David T. Courtwright, *Forces of Habit: Drugs and the Making of the Modern World* (Cambridge, MA: Harvard University Press, 2001); Kathleen Frydl, *The Drug Wars in America, 1940–1973* (New York: Cambridge University Press, 2013); David F. Musto, *The American Disease: Origins of Narcotic Control* (New Haven, CT: Yale University Press, 1973; rev. ed., 1987). For examinations that focus on the control of specific narcotic substances, see Paul Gootenberg, *Andean Cocaine: The Making of a Global Drug* (Chapel Hill: University of North Carolina Press, 2009); Lisa McGirr, *The War on Alcohol: Prohibition and the Rise of the American State* (New York: W. W. Norton, 2015); Joseph F. Spillane, *Cocaine: From Medical Marvel to Modern Menace in the United States, 1884–1920* (Baltimore, MD: Johns Hopkins University Press, 2000). Matthew Las-

- siter's recent and forthcoming work explores the uncharted dimensions of the War on Drugs beyond urban centers. See "Impossible Criminals: The Suburban Imperatives of America's War on Drugs," *Journal of American History* 102 (June 2015): 126–140.
19. Isabel Wilkerson provides a gripping account of the mass movement of African Americans between World War I and Vietnam, urging us to view the millions who fled the mob violence and sharecropping regimes of the southern states as refugees in Wilkerson, *The Warmth of Other Suns: The Epic Story of America's Great Migration* (New York: Vintage, 2011). For a comprehensive account of the development of the black freedom movement at mid-century and beyond, see Robin D. G. Kelley, *Race Rebels: Culture, Politics and the Black Working Class* (New York: Free Press, 1996); Manning Marable, *Race, Reform, Rebellion: The Second Reconstruction and Beyond in Black America*, 3rd ed. (Jackson: University of Mississippi Press, 2007); and Nikhil Pal Singh, *Black Is a Country: Race and the Unfinished Struggle for Democracy* (Cambridge, MA: Harvard University Press, 2005).
 20. On the exclusion of African Americans from the New Deal, see Steve Fraser and Gary Gerstle, eds., *The Rise and Fall of the New Deal Order* (Princeton, NJ: Princeton University Press, 1989); Linda Gordon, *Pitied but Not Entitled: Single Mothers and the History of Welfare, 1890–1935* (New York: Free Press, 1994); Ira Katznelson, *When Affirmative Action Was White: An Untold History of Racial Inequality in Twentieth-Century America* (New York: W. W. Norton, 2005); George Lipsitz, *The Possessive Investment in Whiteness: How White People Profit from Identity Politics* (Philadelphia: Temple University Press, 1998); Harvard Sitkoff, *A New Deal for Blacks: The Emergence of Civil Rights as a National Issue, Volume 1: The Depression Decade* (New York: Oxford University Press, 1978). As Mason Williams has shown, prior to the federal intervention in the 1960s, urban coalitions had worked to implement various social reforms. See *City of Ambition: FDR, LaGuardia, and the Making of Modern New York* (New York: W. W. Norton, 2014). On the Economic Opportunity Act and the War on Poverty from a federal viewpoint, see Marisa Chappell, *The War on Welfare: Family, Poverty, and Politics in Modern America* (Philadelphia: University of Pennsylvania Press, 2009); Michael L. Gillette, *Launching the War on Poverty: An Oral History* (New York: Oxford University Press, 2010); Michael B. Katz, *The Undeserving Poor: From the War on Poverty to the War on Welfare* (New York, 1990); James T. Patterson, *America's Struggle against Poverty, 1900–1994* (Cambridge, MA: Harvard University Press, 1994); Michael B. Katz, ed., *The "Underclass Debate": Views from History* (Princeton, NJ: Princeton University Press, 1992); Jennifer Mittelstadt, *From Welfare to Workfare: The Unintended Consequences of Liberal*

- Reform, 1945–1965* (Chapel Hill: University of North Carolina Press, 2005); Quadagno, *The Color of Welfare*. For grassroots perspectives on the War on Poverty, see Premilla Nadasen, *Welfare Warriors: The Welfare Rights Movement in the United States* (New York: Routledge, 2004); Annelise Orleck, *Storming Caesar's Palace: How Black Mothers Fought Their Own War on Poverty* (New York: Beacon, 2006); Annelise Orleck and Lisa Gayle Hazirjan, eds., *The War on Poverty: A New Grassroots History* (Athens: University of Georgia Press, 2011); Rhonda Williams, *The Politics of Public Housing: Black Women's Struggles against Urban Inequality* (New York: Oxford University Press, 2005).
21. Others have also pointed out the limitations of liberal support for racial equality in the 1960s and the ways in which social welfare programs were inseparable from social control desires, with the effect of preserving the racial hierarchies that have plagued the country historically. See Francis T. Cullen and Cheryl Leo Jonson, "Rehabilitation and Treatment Programs," in *Crime and Public Policy*, ed. James Q. Wilson and Joan Petersilia (New York: Oxford University Press, 2011); David Theo Goldberg, *The Racial State* (Malden, MA: Blackwell, 2002); Charles Mills, "Liberalism and the Racial State," in *State of White Supremacy: Racism, Governance, and the United States*, ed. Moon-Kie Jung, Joao H. Costa Vargas, and Eduardo Bonilla-Silva (Palo Alto, CA: Stanford University Press, 2011), 27–46; Mical Raz, *What's Wrong with the Poor? Psychiatry, Race, and the War on Poverty* (Chapel Hill: University of North Carolina Press, 2013); Daryl Scott, *Contempt and Pity: Social Policy and the Image of the Damaged Black Psyche* (Chapel Hill: University of North Carolina Press, 1997); Robert Self, *All in the Family: The Realignment of American Democracy since the 1960s* (New York: Hill and Wang, 2012).
 22. See Murakawa, *First Civil Right*; Naomi Murakawa, "The Origins of the Carceral Crisis: Racial Order as 'Law and Order' in Postwar American Politics," in *Race and American Political Development*, ed. Joseph Lowndes, Julie Novkov, and Dorian T. Warren (New York: Routledge, 2008), 234–255; and Weaver, "Race and Crime Policy," and Weaver, "Race and Politics," for further discussion on the criminalization of civil rights activists and urban civil disorder. On the direct relationship between punitive policies and "social threat" see Bruce Western, Meredith Kleykamp, and Jake Rosenfeld, "Crime, Punishment, and American Inequality," in *Social Inequality*, ed. Katherine Neckerman (New York: Russell Sage, 2004), 782–785. A few scholars have considered the ways in which uprisings in the 1960s shaped subsequent urban living conditions and policy at the federal, state, and local levels. See Sidney Fine, *Violence in the Model City: The Cavanaugh Administration, Race Relations, and the Detroit Riot of 1967* (East Lansing: Michigan State University Press, 2007); Robert M. Fogelson, *Violence as Protest: A Study of Riots and*

Ghettos (Garden City, NY: Doubleday, 1971); Gerald Horne, *Fire This Time: The Watts Uprising and the 1960s* (New York: Da Capo, 1997); Michael B. Katz, *Why Don't American Cities Burn?* (Philadelphia: University of Pennsylvania Press, 2011); Kevin Mumford, *Newark: A History of Race, Rights, and Riots in America* (New York: NYU Press, 2008).

23. The specific targeting of black men between the ages of fifteen and twenty-four for national law enforcement programs runs through the memoranda and internal reports examined in this book. Within the Johnson administration, Nicholas deB. Katzenbach et al., *The Challenge of Crime in a Free Society: A Report by the President's Commission on Law Enforcement and Administration of Justice* (Washington, DC: U.S. Government Printing Office, 1967), 5, 35, 44; and Otto Kerner et al., *Report of the National Advisory Commission on Civil Disorders* (New York: Bantam Books, 1968) contain the most clearly articulated public expressions of this agenda.
24. Johnson's merger of welfare and crime control functions was not entirely unique. The two systems had worked in tandem since the birth of the American republic, sharing similar goals and attitudes about poor people and treating socioeconomically isolated and racially marginalized Americans as a criminal class. Beginning in the nineteenth century, social welfare programs imposed varying degrees of supervision on targeted immigrant and poor communities with reformatories, settlement houses, orphanages, training schools, and community chests. In order to advocate on behalf of the urban European ethnic groups of immigrants they sought to rehabilitate, social welfare reformers often embraced scientific racism and aggressive policing strategies. A number of scholars have demonstrated the ways in which reformers have used punitive measures, often focused on low-income youth, in order to achieve their social welfare and rehabilitative goals. See Miroslava Chávez-García, *States of Delinquency: Race and Science in the Making of California's Juvenile Justice System* (Berkeley: University of California Press, 2012); Julilly Kohler-Hausmann, "Guns and Butter: The Welfare State, the Carceral State, and the Politics of Exclusion in the Postwar United States," *Journal of American History* 102 (June 2015): 87–99; Khalil Gibran Muhammad, *The Condemnation of Blackness: Race, Crime, and the Making of Modern Urban America* (Cambridge, MA: Harvard University Press, 2010); Anthony M. Platt, "Saving and Controlling Delinquent Youth: A Critique," *Issues in Criminology* 5, no 1 (Winter 1970): 1–25; Anthony M. Platt, *The Child Savers: The Invention of Delinquency* (New Brunswick, NJ: Rutgers University Press, 2009); Geoff Ward, *The Black Child Savers: Racial Democracy and Juvenile Justice* (Chicago: University of Chicago Press, 2012); and Michael Willrich, *City of Courts: Socializing Justice in Progressive Era Chicago* (New York: Cambridge University Press, 2003).

25. Although the Partnership for Health Act of 1966 was the first legislation to include block grant provision, this law consolidated health care programs to award \$23 million to states directly. The Omnibus Safe Streets and Crime Control Act of 1968 was the first major instance of block grant funding, with an allocation of \$300 million in federal funding to the states.
26. Many others have similarly directed our attention to the bipartisan dimensions of crime control policy in their considerations of mass incarceration. They emphasize the crucial role of Democrats, including Edward Kennedy, Joe Biden, Al Gore, and Charles Rangel, who co-partnered with the Reagan administration in the drug war era. At the executive level, much attention has been given to Bill Clinton's 1994 Crime Bill, a policy on which he reflected during a speech at the 106th Convention of the NAACP in July 2015: "I signed a bill that made the problem worse, and I want to admit it." See Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York, 2011); Gottschalk, *Caught*; Murakawa, *First Civil Rights*; Simon, *Governing through Crime*; Weaver, "Race and Crime Policy," and Weaver, "Race and Politics." On more recent bipartisan partnerships, see David Dagan and Steven M. Teles, "The Conservative War on Prisons," *Washington Monthly*, November–December 2012, 25–31; Newt Gingrich and Pat Nolan, "Prison Reform: A Smart Way for States to Save Money and Lives," *Washington Post*, January 7, 2011; Kara Gotsch, "Bipartisan Justice: Fixing America's Punitive and Penal System Has Politicians Crossing Party Lines," *American Prospect*, December 6, 2010, A22. Video of Clinton's address to the NAACP can be found at <http://www.naacp.org/news/entry/president-bill-clinton-speech-at-naacp-106th-convention>.
27. Garland, *Culture of Control*; Garland, *Punishment and Welfare: A History of Penal Strategies* (Surrey, UK: Ashgate, 1987); Michel Foucault, *Discipline and Punish: The Birth of the Prison* (New York, 1977); Kohler-Hausmann, "Guns and Butter"; Loïc Wacquant, *Punishing the Poor: The Neoliberal Government of Social Insecurity* (Raleigh: Duke University Press, 2009) similarly understand the carceral state as a network of programs strongly tied to the welfare state. The political scientist Joe Soss has also written extensively on the criminalization of welfare and its ties to the carceral state in the late twentieth century. See especially Soss, "The New Politics of Inequality: A Policy-Centered Perspective," with Jacob S. Hacker and Suzanne Mettler in *Remaking America: Democracy and Public Policy in an Age of Inequality*, ed. Joe Soss, Jacob S. Hacker, and Suzanne Mettler (New York: Russell Sage Foundation, 2007), 3–24; Joe Soss, Richard C. Ford, and Sanford F. Schram, *Disciplining the Poor: Neoliberal Paternalism and the Persistent Power of Race* (Chicago: University of Chicago Press, 2011), as well as a number of Soss's coauthored arti-

- cles. See also Marie Gottschalk, "Democracy and the Carceral State in America," *Annals of the American Academy of Political and Social Science* 651 (January 2014): 288–295; Bernard Harcourt, *Against Prediction: Punishing and Policing in an Actuarial Age* (Chicago: University of Chicago Press, 2007); William J. Novak, "Police Power and the Hidden Transformation of the American State," in *Police and the Liberal State*, ed. Markus D. Dubber and Mariana Valverde (Stanford, CA: Stanford Law Books, 2008); Carla Shedd, "Countering the Carceral Continuum: The Legacy of Mass Incarceration," *Criminology and Public Policy* 10, no. 3 (2011): 865–871; Thompson, "Why Mass Incarceration Matters," 706.
28. Juvenile Delinquency Prevention and Control Act of 1968, Pub L. No. 90-445, 82 stat. 462 (1968); House Committee on Education and Labor, *Juvenile Delinquency Prevention Act of 1967: Hearings before the Subcommittee on Education*, 90th Cong., 1st sess., May 10, 1967, 301 (Statement of Attorney General Ramsey Clark).
 29. In *The Condemnation of Blackness*, Muhammad powerfully demonstrates the ways in which white social scientists such as Nathaniel Southgate Shaler and Frederick Hoffman relied on new statistics on black crime in the post-Emancipation era to produce, in Shaler's words, "a new understanding of black people's true racial capacity" (33). Hoffman's *Race Traits and Tendencies of the American Negro* (New York: Macmillan Co., 1896) remained the standing authority on race and crime until the Depression. In contrast to Hoffman's view that cultural and behavioral traits made black Americans particularly susceptible to crime and criminal activity, W.E.B. Du Bois emphasized the socioeconomic factors that shaped African American crime patterns and questioned statistical measures of crime rates in the *The Philadelphia Negro: A Social Study* (Philadelphia: University of Pennsylvania Press, 1899). Policymakers in the North did not legally target black Americans as explicitly as their southern counterparts, but various infractions on the books against "suspicious characters," disorderly conduct, keeping and visiting disorderly houses, drunkenness, and violations of city ordinances made possible new forms of everyday surveillance and punishment in the lives of African Americans in the Northeast, Midwest, and West. See also Jeffrey S. Adler, "Less Crime, More Punishment: Violence, Race, and Criminal Justice in Early Twentieth-Century America," *Journal of American History* 102 (June 2015): 34–46.
 30. For discussions on the influence of eugenis in the development of criminal justice policies, see Muhammad, *The Condemnation of Blackness*; Chávez-García, *States of Delinquency*; Amy LaPan and Tony Platt, "'To Stem the Tide of Degeneracy': The Eugenic Impulse in Social Work," in *Mental Disorders in*

- the Social Environment: Critical Perspectives*, ed. Stuart A. Kirk (New York: Columbia University Press, 2005), 139–164; and Steven Selden, *Inheriting Shame: The Story of Eugenics and Racism in America* (New York: Teachers College Press, 1999).
31. Richard A. Cloward and Lloyd E. Ohlin, *Delinquency and Opportunity: A Theory of Delinquent Gangs* (1960; repr., Florence, KY: Routledge, 2000). My view of the role of social scientists in shaping domestic policy during this period has been deeply informed by Alice O'Connor, *Poverty Knowledge: Social Science, Social Policy, and the Poor in Twentieth-Century U.S. History* (Princeton, NJ: Princeton University Press, 2001). See also Lawrence Bobo, “Inequalities That Endure? Racial Ideology, American Politics, and the Peculiar Role of the Social Sciences,” in *The Changing Terrain of Race and Ethnicity*, ed. Maria Krysan and Amanda E. Lewis (New York: Russell Sage Foundation, 2004); Michael Tonry and David A. Green, “Criminology and Public Policy,” in *The Criminological Foundations of Penal Policy: Essays in Honor of Roger Hood*, ed. Lucia Zedner and Andrew Ashworth (Oxford: Oxford University Press, 2003); William Stuntz, “The Pathological Politics of Criminal Law,” *Michigan Law Review* 100, no. 3 (2001): 505–600; Ta-Nehisi Coates, “Black Pathology and the Closing of the Progressive Mind,” *Atlantic*, March 21, 2014.
 32. The literature on Moynihan and the impact of *The Negro Family: A Case for National Action* (Washington, DC: Office of Policy Planning and Research, U.S. Department of Labor, March 1965) is extensive. See Daniel Geary, *Beyond Civil Rights: The Moynihan Report and Its Legacy* (Philadelphia: University of Pennsylvania Press, 2015); Katznelson, *When Affirmative Action Was White*; James T. Patterson, *Freedom Is Not Enough: The Moynihan Report and America’s Struggle over Black Family Life from LBJ to Obama* (New York: Basic Books, 2010); Lee Rainwater and William L. Yancy, *The Moynihan Report and the Politics of Controversy* (Cambridge, MA: MIT Press, 1967); Kerner et al., *Report of the National Advisory Commission*, 21, 392; Katzenbach et al., *Challenge of Crime*, 57; James Yuenger “Commission Sought and Got Facts on Urban Riots: Kerner,” *Chicago Tribune*, March 1, 1968, 1.
 33. Only 500,000 crimes were reported in suburbs, and 170,000 in rural areas. Katzenbach et al., *Challenge of Crime*, 5.
 34. Western compared incarceration rates from African American men born between 1945 and 1950 and from those born between 1965 and 1969. The generation born in the postwar period without a high school degree had a less than one in five chance of going to prison or jail by the age of thirty, whereas 60 percent of the group born after 1965, with a similar level of educational attainment, were at risk for incarceration. Western, *Punishment and Inequality*, 31, 195. This “mass incarceration generation” is more likely to spend at least part of their lives behind bars than to serve in the military or receive

some form of government benefits. Employment prospects, which drastically declined after 1970, exacerbated this generational trend. As sociologist William Julius Wilson has shown, for every 100 black women aged twenty to twenty-four, there were nearly seventy employed black men, but by the early 1980s “there were fewer than 50 such men for every 100 women.” See William Julius Wilson, *The Truly Disadvantaged: The Inner City, the Underclass, and Public Policy* (Chicago: University of Chicago Press, 1990); William Julius Wilson, *When Work Disappears: The New World of the Urban Poor* (New York: Vintage, 1997); and Wilson’s larger body of work. Devah Pager has further deepened our understanding of the contours of African American inequality, revealing that even black men without a prior criminal record have as much difficulty (if not more) securing employment than formerly incarcerated white men, in *Marked: Race, Crime, and Finding Work in an Era of Mass Incarceration* (Chicago: University of Chicago Press, 2007).

35. James Q. Wilson, “Crime in the Streets,” *Public Interest* 5, (1966): 32.
36. November 2, 1970, memorandum to Bud Krogh from Geoff Shepard, folder “OA #5505 Part VII St. Louis Police Programs,” box 76, Egil “Bud” Krogh Collection, Richard Nixon Presidential Library (hereafter, RNPL); March 17, 1970, memorandum to Krogh from Charles Rogovin, folder “Proposals- LEAA Trip,” box 26, Krogh Collection, RNPL.
37. November 2, 1970, memorandum to Bud Krogh from Geoff Shepard.
38. Ibid.; Marvin Wolfgang, Robert M. Figlio, and Thorsten Sellin, *Delinquency in a Birth Cohort* (Chicago: University of Chicago Press, 1972), 22; Marvin E. Wolfgang, University of Pennsylvania, “Youth and Violence,” HEW Report, 1970. See Robert Martinson, “What Works?—Questions and Answers about Prison Reform,” *Public Interest* 35 (1974): 22–54, 27, 50, 49; Robert Martinson, “The Paradox of Prison Reform—I: The ‘Dangerous Myth,’” *New Republic*, April 1, 1972, 23–25, 25; Robert Martinson, “The Paradox of Prison Reform—II: Can Corrections Correct?,” *New Republic*, April 8, 1972, 13–15; Robert Martinson, “The Paradox of Prison Reform—III: The Meaning of Attica,” *New Republic*, April 15, 1972, 17–18; Robert Martinson, “The Paradox of Prison Reform—IV: Planning for Public Safety,” *New Republic*, April 29, 1972, 21–23; Charles Murray and Louis A. Cox, *Beyond Probation: Juvenile Corrections and the Chronic Delinquent* (New York: Sage, 1979); James Q. Wilson, “‘What Works?’ Revisited: New Findings on Criminal Rehabilitation,” *Public Interest* 61 (1980): 3–18.
39. Gwynne Pierson, “Institutional Racism and Crime Clearance,” in *Black Perspectives on Crime and the Criminal Justice System*, ed. Robert L. Woodson (Boston: G. K. Hall, 1977), 110.
40. The federal government’s focus on young African American men was also due, in part, to the fact that Latino crime patterns were importantly absent from the FBI Uniform Crime Report, since the bureau decided not to measure Latino arrest

rates. For a brief period, between 1980 and 1987, the FBI began to collect crime data by ethnicity in an attempt to fill in that statistical void. Before that window and until as recently as 2014, the majority of available statistics tabulated arrest data by race, with categories for white, black, Asian or Pacific Islander, and American Indian or Alaska Native. As such, Latinos largely vanished from American crime data, especially during the period at the center of this study. The available research that accounted for Latino crime and arrest rates has been incorporated as much as possible into the analysis presented in this book. Works that have helped bridge the existing statistical gaps by enhancing our view of the criminalization and policing of Latino and Chicano Americans include Rodolfo F. Acuna, *Occupied America: A History of Chicanos*, 8th ed. (New York: Pearson, 2014); Juanita Diaz-Cotto, *Chicana Lives and Criminal Justice: Voices from El Barrio* (Austin: University of Texas Press, 2006); Edward J. Escobar, *Race, Police, and the Making of a Political Identity: Mexican Americans and the Los Angeles Police Department, 1900–1945* (Berkeley: University of California Press, 1999); Kelly Lytle Hernandez, *Migra! A History of the U.S. Border Patrol* (Berkeley: University of California Press, 2010); Suzanne Oboler, ed., *Behind Bars: Latino/as and Prison in the United States* (New York: Palgrave Macmillan, 2009); and Victor M. Rios, *Punished: Policing the Lives of Black and Latino Boys* (New York: New York University Press, 2011). Some of the best analysis of Latino crime and incarceration rates can be found in Michael Tonry and Matthew Melewski, “The Malign Effects of Drug and Crime Control on Black Americans,” in *Crime and Justice: A Review of Research*, ed. Michael Tonry, vol. 37 (Chicago: University of Chicago Press, 2008); Jeremy Travis, Bruce Western, and Steve Redburn, eds., *The Growth of Incarceration in the United States: Exploring Causes and Consequences* (Washington, DC: National Academies Press, 2014), 61–64. On white-collar crime, see Max Schanzenbach and Michael L. Yager, “Prison Time, Fines, and Federal White-Collar Criminals: The Anatomy of a Racial Disparity,” *Journal of Criminal Law and Criminology* 96 (Winter 2006): 757–794.

41. Victor M. Rios has astutely described the transformation of urban social institutions, particularly those serving low-income young people, as a “youth control complex” in Rios, *Punished*, and Victor M. Rios, “The Hyper-Criminalization of Black and Latino Male Youth in the Era of Mass Incarceration,” *Souls: A Critical Journal of Black Politics, Culture, and Society* 8, no. 2 (2006): 40–54. See also Alice Goffman’s discussion on the impact of policing and supervision in low-income black urban Americans in Goffman, “On the Run: Wanted Men in the Philadelphia Ghetto,” *American Sociological Review* 74 (June 2009): 339–357; Tommie Shelby, “Liberalism, Self-Respect, and Troubling Cultural Patterns in Ghettos,” in *The Cultural Matrix: Understanding Black Youth*, ed. Orlando Patterson with Ethan Fosse (Cambridge, MA: Harvard University Press, 2015), 498–532.

42. April 16, 1971, memorandum for Ehrlichman from Krogh, subj.: “Domestic Policy Issues—1971–1972,” box 14, Krogh Collection, RNPL.

1. THE WAR ON BLACK POVERTY

1. Lyndon Johnson, “Special Message to Congress on Law Enforcement and the Administration of Justice,” March 8, 1965, American Presidency Project, <http://www.presidency.ucsb.edu/ws/?pid=26800>; “Statement of the President on Establishing the President’s Commission on Law Enforcement and the Administration of Justice,” *Public Papers of Presidents of the United States: Lyndon B. Johnson*, 1965 (Washington, DC: U.S. Government Printing Office, 1966), 382; “President Forms Panel to Study Crime Problems,” *New York Times*, July 27, 1965, 1.
2. John F. Kennedy, “Remarks Recorded for the Ceremony at the Lincoln Memorial Commemorating the Centennial of the Emancipation Proclamation,” September 22, 1962, President’s Office Files, Speech Files, John F. Kennedy Presidential Library (hereafter, JFKPL); John F. Kennedy, “Civil Rights Message to the Nation” (1963), in *The Kennedy Years and the Negro*, ed. Doris E. Saunders (Chicago: Johnson Publishing Company, 1964), 112.
3. *Message from the President Relative to Civil Rights*, 88th Cong., 1st sess., H. Doc. 124, serial 12567 (June 19, 1963), 7; *ibid.*; Sanford Kravitz and Ferne K. Kolodner, “Community Action: Where Has It Been? Where Will It Go?,” *Annals of the American Academy of Political and Social Science* 385 (September 1969), 30–40, 32; “Negro Unemployment Scored by AFL-CIO,” *Chicago Defender*, May 18, 1963, 1.
4. Robert W. Fairlie and William A. Sundstrom, “The Racial Unemployment Gap in Long-Run Perspective,” *American Economic Review* 2, no. 87 (May 1997): 306–310, 307; *Message from the President Relative to Civil Rights*, 88th Cong., 1st sess., H. Doc. 124, serial 12567 (June 19, 1963), 7; Kravitz and Kolodner, “Community Action,” 30–40, 32.
5. New York, Los Angeles, Chicago, Philadelphia, Detroit, San Francisco–Oakland, Boston, Pittsburgh, St. Louis, Washington, Cleveland, and Baltimore had the highest concentrations of African Americans throughout most of the twentieth century. Robert W. Fairlie and William A. Sundstrom, “The Racial Unemployment Gap in Long-Run Perspective,” *American Economic Review* 2, no. 87 (May 1997): 306–310, 307; *Message from the President Relative to Civil Rights*, 88th Cong., 1st sess., H. Doc. 124, serial 12567 (June 19, 1963), 7; Kravitz and Kolodner, “Community Action,” 30–40, 32; George Bain, “Black Sore of New York,” *Globe and Mail*, October 16, 1963, 7.
6. James B. Conant, “Idle Youth in City Slums Are Social Dynamite,” *Washington Post*, June 11, 1961, E3; Conant also quoted in Josephine Ripley,

- “Negro—and Teen Crime,” *Christian Science Monitor*, May 29, 1961, 5; Ralph McGill, “Social Dynamite,” *Hartford Courant*, October 27, 1961, 18; Goldberg quoted in Ripley, “Negro—and Teen Crime,” 5.
7. *Message from the President Relative to Civil Rights*; Kennedy, “Remarks Recorded.”
 8. Kennedy quoted in Kravitz and Kolodner, “Community Action,” 33; Youth Offenses and Control Act of 1961, Pub. L. No. 87-274, 75 Stat. 572 (1961).
 9. “The National Juvenile Delinquency Picture,” *Personnel and Guidance Journal* 38 (1959): 278.
 10. John F. Kennedy, “Special Message to Congress on the Nation’s Youth,” February 14, 1963, American Presidency Project, <http://www.presidency.ucsb.edu/ws/?pid=9561>. See Bill Bush, *Who Gets a Childhood?: Race and Juvenile Justice in Twentieth-Century Texas* (Athens: University of Georgia Press, 2010); Michael W. Flamm, *Law and Order: Street Crime, Civil Unrest, and the Crisis of Liberalism in the 1960s* (New York: Columbia University Press, 2005), 15; Donna Murch, *Living for the City: Migration, Education, and the Rise of the Black Panther Party in Oakland, California* (Chapel Hill: University of North Carolina Press, 2010), 59–60. See also Megan Stubbendeck, “‘This Wrong Is Being Done to My People’: Street Gangs, Historical Agency, and Crime Politics in Postwar America” (PhD diss., University of Virginia, 2013); Kravitz and Kolodner, “Community Action,” 30–40, 33; “The National Juvenile Delinquency Picture,” *Personnel and Guidance Journal* 38 (1959): 278; September 14, 1965, memorandum from James Symington to Bill Moyers, folder “President’s Committee on Juvenile Delinquency and Youth Crime,” FG 731 (June 10, 1964–), box 403, Lyndon Baines Johnson Presidential Library (hereafter, LBJPL); Kravitz and Kolodner, “Community Action,” 33.
 11. Jay R. Williams and Martin Gold, “From Delinquent Behavior to Official Delinquency,” *Social Problems* 20, no. 2 (Autumn, 1972): 209–229; Heidi Matiyow Rosenberg, “Federal Policy toward Delinquent Youth: Legislative and Programmatic Milestones from Kennedy to Ford, 1960–1976,” (PhD diss., University of Michigan, 2008), 94; Daniel Patrick Moynihan, *Maximum Feasible Misunderstanding: Community Action in the War on Poverty* (New York: Free Press, 1969), 14.
 12. Richard A. Cloward and Lloyd E. Ohlin, *Delinquency and Opportunity: A Theory of Delinquent Gangs* (1960; repr., Florence, KY.: Routledge, 2000); Flamm, *Law and Order*, Chapter chap. 1; Robert H. Terte, “Slums and Suburbs Provide: Deprived Need Specialists ‘Total’ Attack Begun to De-Fuse ‘Social Dynamite’ in Slums,” *New York Times*, April 9, 1963, pg. 33.
 13. Terte, “Slums and Suburbs Provide”; Frank Tannenbaum, *Crime and the Community* (New York: Columbia University Press, 1938), 16–20 (quotation

- from pg. 20); “50 Young Hoodlums Seized in Battle,” *Chicago Daily Tribune*, June 4, 1961, pg. 30.
14. Cloward and Ohlin, *Delinquency and Opportunity*, 211.
 15. See Alice O'Connor, *Poverty Knowledge: Social Science, Social Policy, and the Poor in Twentieth-Century U.S. History* (Princeton, NJ: Princeton University Press, 2001); May 31, 1962, “Report to the President Transmitted by President’s Committee on Juvenile Delinquency and Youth Crime,” folder “PCJD-OJD Background Materials, Key Internal Developments 1962,” box 4, Knapp Papers, JFKPL.
 16. February 7, 1969, interview with Francis Frances Fox Piven, folder “Notes: Misc,” box 7, Richardson White Papers, Box 7, JFKPL; November 27, 1961, “Causation of Delinquency,” an address given by David L. Hackett, Executive Director, PCJDYC before the Institute on Juvenile Delinquency, South Western Legal Foundation Dallas, Texas, November 27, 1961, folder 11/61, box 2, Richardson White Jr. Papers (Office of Juvenile Delinquency 1961–1968), JFKPL.
 17. Senate Committee on Labor and Public Welfare, *Extension of the Juvenile Delinquency Act: Hearings before the Subcommittee on Employment and Manpower*, 88th Cong., 1st sess. (August 8–9, 13, and 15–16, 1963), 20, 23 (Statement of Celebrezze); August 5, 1963, letter, “New Steps to Secure Extension of the Juvenile Delinquency Act,” from David L. Hackett to the Attorney General, folder “PCJD-OJD Background Materials, Key Internal Developments 1962,” box 4, Knapp Papers, JFKPL; “Delinquents Are People: Progress Report of the Federal Anti-Delinquency Program,” prepared by the Office of Juvenile Delinquency and Youth Development, Department of Health, Education, and Welfare, in cooperation with the PCJDYC April 1965,” folder “‘Delinquents Are People’ 4/65,” box 2, Knapp Papers Published Background Materials, Histories, JFKPL; May 31, 1963, memorandum to the Attorney General from David L. Hackett, Executive Director, subj.: “OMAT and the Federal Delinquency Program,” folder “Hackett: Memorandum and Notes (2),” box 7, Richardson White Jr. Papers (subject file), JFKPL.
 18. May 31, 1963, memorandum to the Attorney General from David L. Hackett, Executive Director, subj.: “OMAT and the Federal Delinquency Program,” folder, “Hackett: Memorandum and Notes (2),” box 7, Richardson White Jr. Papers (subject file), Box 7, JFKPL; see also William Finnegan, “New Haven,” chap. 1 in *Cold New World: Growing Up in a Harder Country* (New York: Modern Library, 1999), 1–92.
 19. “Delinquents Are People,” March 24, 1966, letter to Symington from Robert Johnson, folder, “Robert Jonson, Untitled Monograph, Section I, 1966,” box 3, Knapp Files Published Background Materials Histories, JFKPL; “Counter-Attack on Delinquency: The Program of the Federal Government to Stimulate

- Communities to Develop Rational Answers to a Growing Crisis,” prepared by the President’s Committee on Juvenile Delinquency and Youth Crime: The Attorney General, Chairman, The Secretary of HEW, The Secretary of Labor, folder, “Counter Attack on Delinquency 6/64,” box 2, Knapp Files Published Background Materials Histories, JFKPL.
20. Kennedy, *Message from the President Relative to Civil Rights*. Announcing a one-year, \$800,000 federal grant that the committee had awarded to a massive “human renewal” program in New Haven, Kennedy explained the rationale for his administration’s wide-ranging antidelinquency program. “These people find themselves in strange, alien surroundings. Many have the added problem of racial discrimination . . . they are surrounded by crime, illiteracy, illegitimacy, and human despair.” Kennedy cited overcrowded schools, substandard housing, and unemployment as the factors most directly responsible for this environment, and concluded: “Finding no work and little hope, too many of them turn to juvenile crime to obtain the material goods they think society has denied them. Others turn to drink and narcotics addiction. And soon the cycle repeats itself, as this dispossessed generation bears children little better equipped than their parents to cope with urban life.” November 27, 1961, “Causation of Delinquency” an address given by David L. Hackett, Executive Director, PCJDYC before the Institute on Juvenile Delinquency, South Western Legal Foundation Dallas, Texas, November 27, 1961, folder, “11/61,” box 2, Richardson White Jr. Papers (Office of Juvenile Delinquency 1961–1968), JFKPL; September 14, 1965, memorandum from Symington to Moyers; undated press release (likely October 18, 1963), President’s Office Files, Departments and Agencies, Committee on Juvenile Delinquency and Youth Crime, JFKPL, available at: <http://www.jfklibrary.org/Asset-Viewer/Archives/JFKPOF-093-007.aspx>.
 21. “Counter-Attack on Delinquency.”
 22. The total costs for Mobilization for Youth in its first three years amounted to \$12 million: \$6.3 million from the president’s committee, \$4.2 million from New York City, and \$2 million from the Ford Foundation. Bernard Gavzer, “Uncle Sam ‘Slumming’ in Lower East Side,” *Hartford Courant*, July 29, 1962, 24A2.
 23. February 21, 1969, interview with Lloyd Ohlin and Leonard Cottrell, folder “Notes: Misc,” box 7, Richardson White Papers, JFKPL; Ohlin quoted in O’Connor, *Poverty Knowledge*, 127; Matiyow Rosenberg, “Federal Policy,” 81; William Rice, “Progress Cited by President’s Delinquency Unit,” *Washington Post*, August 16, 1963, B6.
 24. David Miller, “Boys Seek a Clubhouse Deal with City,” *New York Herald Tribune*, March 10, 1960, 3; David Miller, “Things Get Going for the Boys,” *New York Herald Tribune*, August 19, 1961, 1.

25. Fassier quoted in Miller, "Boys Seek a Clubhouse Deal"; Joseph P. Fried, "News of Realty: Center for Boys," *New York Times*, May 11, 1967, 77.
26. John F. Kennedy, "Special Message to the Congress on the Peace Corps," March 1, 1961, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=8515>; "Counter-Attack on Delinquency"; Kennedy, "Special Message to the Congress on the Nation's Youth."
27. "Delinquents Are People," emphasis in original; Marylyn Bibb, "Gang-Related Services of Mobilization for Youth," in *Juvenile Gangs in Context: Theory, Research, and Action*, ed. Malcolm W. Klein (Englewood Cliffs, NJ: Prentice-Hall, 1967), 181–182; "An Agency Statement Regarding the General Objectives of Mobilization for Youth," adopted June 1963, folder "1/63–9/63," box 5, Knapp Papers (PCJD-OJD Background Materials, Key Internal Developments), JFKPL.
28. Gavzer, "Uncle Sam 'Slumming'"; "Precedents for Success," *Washington Post*, October 31, 1964, 24A2; "Counter-Attack on Delinquency"; "Delinquents Are People"; May 31, 1962, Remarks of the President to the President's Committee on Juvenile Delinquency and Youth Crime, folder "Remarks on Report of PCJDYC," box 38, President's Office Files, Speech Files, John F. Kennedy Library, digital identifier JFKPOF-038-033; Bibb, "Gang-Related Services," 179.
29. Rice, "Progress Cited," B6.
30. See Matiyow Rosenberg, "Federal Policy," 88; Abraham Tannenbaum, "Mobilization for Youth in New York City," in *Developing Programs for the Educationally Disadvantaged*, ed. Harry Passow (New York: Teacher's College Press, 1968); "Delinquents Are People"; G. K. Hodenfield, "Dropout Solution: Train the Tots," *Atlanta Journal-Constitution*, October 23, 1964, 6; Rice, "Progress Cited," B6.
31. On the disciplinary functions of social welfare programs, see especially Michel Foucault, *Discipline and Punish: The Birth of the Prison* (New York, 1977), pt. 4; Daryl Scott, *Contempt and Pity: Social Policy and the Image of the Damaged Black Psyche, 1880–1996* (Chapel Hill: University of North Carolina Press, 1997); Anthony M. Platt, "Saving and Controlling Delinquent Youth: A Critique," *Issues in Criminology* 5, no. 1. (Winter 1970): 1–25; Platt, *The Child Savers: The Invention of Delinquency* (New Brunswick, NJ: Rutgers University Press, 2009); Geoff Ward, *The Black Child Savers: Racial Democracy and Juvenile Justice* (Chicago: University of Chicago Press, 2012); "Delinquents Are People"; Bibb, "Gang-Related Services," 181–182; "Counter-Attack on Delinquency," 33, 39.
32. Hackett quoted in Moynihan, *Maximum Feasible Misunderstanding*, 71; "Delinquents Are People"; Bibb, "Gang-Related Services," 181–182.
33. "Counter-Attack on Delinquency"; June 14, 1962, memorandum from W. C. Lawrence to Dr. Lloyd Ohlin, subj.: "Youth Project St. Louis, Missouri," folder

- “Project Field Reports 6/11/62–6/15/62,” box 5, Knapp Papers (PCJD-OJD Background Materials, Key Internal Developments), JFKPL.
34. June 14, 1962, memorandum from Lawrence to Ohlin.
 35. “Minutes of the Demonstration Projects Review Panel Meeting February 13–15, 1964,” 20–21, folder “PCJD-OJD Background Materials Technical Review Panel, Meeting Minutes 2/64,” box 7, Knapp Papers, JFKPL.
 36. *Ibid.*; “Delinquents Are People.”
 37. January 30, 1969, Interview with Boone, folder “Notes: Misc,” box 7, Richardson White Papers, JFKPL.
 38. Heller quoted in O’Connor, *Poverty Knowledge*, 156.
 39. Lyndon B. Johnson, State of the Union Address, January 8, 1964, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=26787>.
 40. Congress allocated a total of \$962.5 million for the War on Poverty, dedicating \$340 million for Community Action Programs alone. Economic Opportunity Act of 1964; John F. Kennedy, Establishment of Peace Corps, March 1, 1961, The Miller Center, available at <http://millercenter.org/president/speeches/detail/3366>; Economic Opportunity Act of 1964; Sar A. Levitan, “The Community Action Program: A Strategy to Fight Poverty,” *Annals of the American Academy of Political and Social Science* 385 Evaluating the War on Poverty (1969): 63–75; O’Connor, *Poverty Knowledge*, 169.
 41. Kennedy in House Committee, *Economic Opportunity Act of 1964*, 312.
 42. “Delinquents Are People”; O’Connor, *Poverty Knowledge*, 170.
 43. Quoted in Stephen M. David, “Leadership of the Poor in Poverty Programs,” *Proceedings of the Academy of Political Science* 29, Urban Riots: Violence and Social Change (1968): 86–100, 93, 91; Noel A. Cazenave, *Impossible Democracy: The Unlikely Success of the War on Poverty Community Action Programs* (Albany: State University of New York Press, 2007).
 44. O’Connor, *Poverty Knowledge*, 171.
 45. Walsh quoted in Susan Abrams Beck, “The Limits of Presidential Activism: Lyndon Johnson and the Implementation of the Community Action Program,” *Presidential Studies Quarterly* 17, Bicentennial Considerations and the Eisenhower and L. B. Johnson Presidencies (1987): 541–557, 546; O’Connor, *Poverty Knowledge*, 171.
 46. House Committee, *Economic Opportunity Act of 1964*, 305; Richard K. Fenn, “The Community Action Program: An American Gospel?,” *Science and Society* 33 (1969): 209–222, 209.
 47. June 21, 1964 Report on “Juvenile Delinquency,” folder “Juvenile Delinquency,” box 40, Office Files of Bill Moyers, LBJPL.
 48. “Report of the President’s Task Force of the Los Angeles Riots”; Governor’s Commission to Investigate the Los Angeles Riots, *Violence in the City: An*

- End or a Beginning?* (December 1965), available at <http://www.usc.edu/libraries/archives/cityinstress/mccone/contents.html>.
49. “Text of Johnson Statement on Harlem Riots,” *Los Angeles Times*, July 22, 1964, 17; Johnson quoted in Douglas Kiker, “Johnson Vows to Halt Street Violence Anywhere in the Nation,” *Boston Globe*, August 13, 1964, 6.
 50. Johnson, “Special Message to Congress on Law Enforcement and the Administration of Justice.”
 51. President’s Task Force on Manpower Conservation, “One-Third of a Nation: A Report on Young Men Found Unqualified for Military Service,” January 1, 1964 (Washington, DC: U.S. Government Printing Office), 20–22, 3–5.
 52. Gunnar Myrdal, *An American Dilemma: The Negro Problem in Modern Democracy* (New York: Harper and Row, 1944), 929.
 53. Moynihan quoted in Lee Rainwater and William L. Yancy, *The Moynihan Report and the Politics of Controversy* (Cambridge, MA: MIT Press, 1967), 24.
 54. According to James T. Patterson, on March 15 the Department of Labor printed one hundred copies, “99 of which went into a safe.” James T. Patterson, *Freedom Is Not Enough: The Moynihan Report and America’s Struggle over Black Family Life from LBJ to Obama* (New York: Basic Books, 2010), 42; Daniel Patrick Moynihan, *The Negro Family: A Case for National Action* (Washington, DC: Office of Policy Planning and Research, U.S. Department of Labor, March 1965), 47, 137. See also Ta-Nehisi Coates, “The Black Family in the Age of Mass Incarceration,” *Atlantic Monthly*, October 2015, available at <http://www.theatlantic.com/magazine/archive/2015/10/the-black-family-in-the-age-of-mass-incarceration/403246/>.
 55. This view synthesized three decades of scholarship on the “Negro Problem,” particularly by the sociologists E. Franklin Frazier and Nathan Glazer. Moynihan drew heavily on the work of psychologist Kenneth Clark, who placed a perceived “tangle of pathology” in black urban communities at the center of his explanation for the breakdown in black family structure in *Dark Ghetto* (New York: Harper and Row, 1965). Though less influential on Moynihan himself, Oscar Lewis explained poverty in Mexico City in his 1961 book *The Children of Sanchez: Autobiography of a Mexican Family* (New York: Random House) through a “culture of poverty” lens, and many Americans were familiar with Michael Harrington’s argument in *The Other America* (New York: Macmillan, 1962), published three years before the release of *The Negro Family*. *The Other America* depicted economic discrepancies in the United States through the idea that poor people were culturally trapped in their status. See Moynihan, *Negro Family*, 9, 35, 41; Rainwater and Yancey, *Moynihan Report*, 26–27, 76; Moynihan quoted in Patterson, *Freedom Is Not Enough*, 43.

56. Lyndon Johnson, "Commencement Address at Howard University: To Fulfill These Rights," June 4, 1965, *Public Papers of the Presidents of the United States: Lyndon B. Johnson, 1965* (Washington, DC: U.S. Government Printing Office, 1966), vol. 2, entry 301, 635–640; See also chap. 1, "Doctor of Laws," in Ira Katznelson, *When Affirmative Action Was White: An Untold History of Racial Inequality in Twentieth-Century America* (New York: W. W. Norton, 2005), 1–24; Patterson, *Preface*.
57. Senate Committee, *Law Enforcement Assistance Act*, 34. Scheuer and Kennedy were not the only liberals involved in steering the Law Enforcement Assistance Act through Congress. Edwin E. Willis of Louisiana, the southern Democrat judged so liberal by his constituency that the more conservative Patrick Caffery defeated him after ten terms in Congress in the 1968 Democratic primary, chaired the House Committee on the Judiciary's hearings on the legislation. A special subcommittee oversaw the hearings, and included the moderate Republican John Lindsay of New York, Democrat James Corman of Los Angeles, and Roy McVicker of Colorado. On the Senate side, Birch Bayh of Indiana and moderate Republican Jacob Javits of New York joined Kennedy on the Senate Committee on the Judiciary, which oversaw its own set of hearings and reported the bill. House Committee on the Judiciary, *Law Enforcement Assistance Act: House Hearings before Subcommittee No. 3 Committee on the Judiciary*, 89th Cong., 1st sess. (May 20, 1965), 15 (Statement of James Scheuer); *ibid.*, 34 (Statement of Edward Kennedy).
58. House Committee on the Judiciary, *Law Enforcement Assistance Act: House Hearings before Subcommittee No. 3 Committee on the Judiciary*, 89th Cong., 1st sess. (May 20, 1965), 12 (Statement of Congressman James H. Scheuer).
59. Terms emerged at different times and in different political and social climates to describe the areas where racial and ethnic minorities lived in concentration, neighborhoods where residents were largely deprived of access to adequate food, sanitation facilities, health care, education, and other basic public services. In the 1960s and 1970s, "disadvantaged area," "inner-city," and "ghetto" came into political and academic use to describe these places, with "slum" remaining the default term throughout most of the twentieth century. All of these expressions embodied the cultural and behavioral assumptions policymakers and much of the American public had about racially marginalized citizens. Describing the black urban neighborhoods at the center of this study as what they were—areas of segregated poverty—is an attempt to avoid reproducing the racism and the pathological connotations intrinsic to the terms policymakers, public figures, and scholars used to describe these spaces and the people who lived within them.
60. Johnson, "Commencement Address at Howard University."

2. LAW AND ORDER IN THE GREAT SOCIETY

1. House Committee on Education and Labor, *Antipoverty Program in New York City and Los Angeles: House Hearing before the Committee on Education and Labor*, 89th Cong., 1st sess. (August 7, 1967), 115 (Statement of Alfred F. Cannon).
2. Gerald Horne, *Fire This Time: The Watts Uprising and the 1960s* (1995; repr., Cambridge, MA: Da Capo, 1997), 3.
3. August 19, 1965, Letter from Hruska to Katzenbach in Senate Judiciary Committee, *Report on the Law Enforcement Assistance Act of 1965*, 89th Cong., S. Rep. No. 672 (1965), 4.
4. House Committee, *Antipoverty Program*, 109 (Statement of Reverend H. H. Brookins); September 17, 1965, "Report of the President's Task Force on the Los Angeles Riots, August 11–15, 1965" (Revised Master), 6, folder "Califano: Los Angeles Riots, Ramsey Clark Report," box 47, Office Files of Joseph A. Califano, Lyndon Baines Johnson Presidential Library (hereafter, LBJPL).
5. "Report of the President's Task Force on the Los Angeles Riots," June 16, 1967, memorandum for President from Califano, 2, folder "Watts," box 58, Califano Files, LBJPL; Ralph McGill, "A White Ghetto Poverty Enigma," *Atlanta Constitution*, April 5, 1966, 1.
6. Horne, *Fire This Time*, Introduction; Governor's Commission to Investigate the Los Angeles Riots, *Violence in the City: An End or a Beginning?* (December 1965), available at <http://www.usc.edu/libraries/archives/cityinstress/mccone/contents.html>.
7. Some of the participants sent buildings and entire blocks into flame and smoke, but most of the so-called rioters simply seized the opportunity to obtain consumer goods that would have been otherwise unattainable. A woman dragged a couch through the streets but stopped at every intersection, waiting for a green light. A married couple in their sixties carried a couch to their home, periodically stopping on the sidewalk to rest along the way. A young mother and her children took a kitchen set but realized they neglected to take enough chairs for everyone to eat at the table. When the family went back out to retrieve the missing seat, each member was arrested. And when twelve-year-old Leo Kidd and his younger brother Randy went to buy Alka-Seltzer for their aunt and the boys decided to help themselves to food and refreshments—as everyone around them was doing—both children faced looting charges. See Bayard Rustin, "The 'Watts Manifesto' and the McCone Report," *Commentary Magazine*, March 1, 1966, 29–35; Ron Arias, "Rage and Reason in Watts," *People Magazine*, August 13, 1990; Brookins in "Watts: Riot or Revolt?," *CBS Reports*, Columbia Broadcasting System Television Network (December 7, 1965).

8. As Horne reminds us: “The Watts uprising was no mindless riot but rather a conscious, though inchoate, insurrection.” Horne, *Fire This Time*, 3; David O. Sears and John B. McConahay, *The Politics of Violence: The New Urban Blacks and the Watts Riot* (Boston: Houghton Mifflin, 1973), 13.
9. Yorty quoted in *Crips and Bloods: Made in America*, directed by Stacy Peralta (The Gang Documentary, Balance Vector Productions, Verso Entertainment, 2008); Horne, *Fire This Time*, 3.
10. Brown quoted in Art Berman, “Some Coast Violence Goes on as Governor Says ‘Worst Is Over,’” *Washington Post*, August 17, 1965, A1; Parker quoted in Otto Kerner et al., *Report of the National Advisory Commission on Civil Disorders* (New York: Bantam Books, 1968), 14; June 16, 1967 memorandum for President from Califano; “Riot Suits for \$4,330,000 Name City as Defendant,” *Los Angeles Sentinel*, June 23, 1966, A1.
11. All of the areas placed under curfew were at least 55 percent black. In the Watts district and other neighborhoods inside the central city, African Americans amounted to some 85 percent of the population. “Report of the President’s Task Force of the Los Angeles Riots”; Governor’s Commission to Investigate the Los Angeles Riots, *Violence in the City*.
12. The NAACP Legal Defense Fund stepped in, filing a suit on behalf of more than 4,000 residents who claimed they had no legal representation when they were arraigned for charges brought about during the Watts riot. Of those arraigned, 1,232 had no previous arrest record, and 1,164 had received minor citations before. The Supreme Court refused to hear the case. “Judge Says Riot Trials Stripped City of Police,” *Los Angeles Times*, July 8, 1966, sf9; Rustin, “Watts Manifesto”; “80 Percent of Watts Rioters Jailed,” *Baltimore Afro-American*, December 18, 1965, 17; Berman, “Some Coast Violence.”
13. Charles Hillinger, “Burning Buildings Symbolize Spirit of Hate Underlying Violent Rioting,” *Los Angeles Times*, August 14, 1965, 2; 75; Wallace Turner, “Discontent and Hate Viewed as Factors in Coast Violence,” *New York Times*, August 15, 1965, 1; quoted in Horne, *Fire This Time*, 36.
14. “Report of the President’s Task Force on the Los Angeles Riots,” 22–23. Johnson’s friend and Crime Commission appointee Leon Jaworski implicated civil rights laws in the rising crime rate by asking the National Conference of Bar Presidents: “If a civil rights leader . . . disobeys a law or court decree because it offends his moral beliefs of what is right . . . [and is] excused from obeying the law on such grounds, why shouldn’t members of the crime syndicate be granted similar exemption from obeying the law?” Believing that the actions of civil rights protesters would encourage widespread lawlessness and criminality, Jaworski warned: “A moral callousness of the preservation of what we now consider to be right and decent, reminiscent of the days of the fall of the Roman

- empire, may well follow.” I am also appropriating the language of Arizona senator Paul Fannin here, who believed federal social programs left residents “aimless, demoralized,” and with no other option but to engage in violent activity “in an environment which breeds crime and criminals.” See Senate Committee, *Controlling Crime*, 898; Jaworski quoted in Robert Wiedrich, “Growing Disrespect for Laws Called Threat to Our Nation,” *Chicago Tribune*, February 17, 1968, W18; Parker quoted in “Watts: Riot or Revolt?”; Evelle Younger, “Bill of Rights” in n.d. memorandum from Pollner to Mitchell, “Re: Anticipated Criminal Activity Facing New Administration and Proposed Action to Combat Same,” box 24, Martin Anderson Collection, Richard Nixon Presidential Library (hereafter, RNPL); *ibid.*, 23.
15. Jacob Javits quoted in Gareth Davies, *From Opportunity to Entitlement: The Transformation and Decline of Great Society Liberalism* (Lawrence: University Press of Kansas, 1999), 107; see also Chapter 4, “Watts and Its Aftermath: The Rise of Income Strategy,” in Davies; Lee Rainwater and William L. Yancey, *The Moynihan Report and the Politics of Controversy* (Cambridge, MA: MIT Press, 1967), chap. 5; James D. Calder, “Presidents and Crime Control: Kennedy, Johnson and Nixon and the Influences of Ideology,” *Presidential Studies Quarterly* 12, no. 4 (1982): 580; Lyndon B. Johnson, *National Strategy against Crime: A Proposed Three-Stage Strategy against Crime*, 89th Cong., 2nd sess., H. Doc 407, serial 12724-3 (March 9, 1966), 1209; John A. Averill, “Hit Poverty and Crime Will Fall, Johnson Says,” *Los Angeles Times*, October 16, 1966, 3.
 16. Michael W. Flamm, *Law and Order: Street Crime, Civil Unrest, and the Crisis of Liberalism in the 1960s* (New York: Columbia University Press, 2005), chap. 3; Vesla Mae Weaver, “Frontlash: Race and the Development of Punitive Crime Policy,” *Studies in American Political Development* 21 (Fall 2007): 230–265.
 17. See chap. 8 in Alice O’Connor, *Poverty Knowledge: Social Science, Social Policy, and the Poor in Twentieth-Century U.S. History* (Princeton, NJ: Princeton University Press, 2001), 196–210.
 18. “Behind the Riots: Family Life Breakdown in Negro Slums Sows Seeds of Race Violence; Husbandless Homes Spawn Young Hoodlums, Impede Reforms, Sociologists Say; Racing a Booming Birth Rate,” *Wall Street Journal*, August 16, 1965, 1; “Hot Summer,” *New York Times*, August 15, 1965, E1.
 19. “Behind the Riots.” CBS News went on to feature Moynihan in a special report on the unrest that aired in December 1965, less than four months after the disorder. See “Watts: Riot or Revolt?” In the wake of the uprisings in Newark and Detroit in July 1967, Moynihan also provided extensive commentary in NBC News’ own special report. See *NBC Special Reports*, National Broadcasting Company Television Network (September 15, 1967).

20. Brimmer in Draft Presidential Statement for Release with the Final Report to the Task Force on the Los Angeles Riots, folder “Los Angeles Riots: Ramsey Clark Report,” box 47, Califano Files, LBJPL; “Report of the President’s Task Force on the Los Angeles Riots,” 3; September 17, 1965, “Report of the President’s Task Force on the Los Angeles Riots, August 11–15, 1965” (Revised Master), folder “Califano: Los Angeles Riots, Ramsey Clark Report,” box 47, Office Files of Joseph A. Califano, 1, LBJPL; Robert Thompson, “Johnson Orders \$29 Million Watts Rehabilitation Work: First Phase to Focus on 45 Projects,” *Los Angeles Times*, September 3, 1965, 3. Thomas McDermott, the vice president of the Police Chiefs Association of Southeastern Pennsylvania, submitted an article to the Senate entitled “Gangs in the Streets” from the *Philadelphia Evening Bulletin* which concluded in the summer of 1966: “Those who . . . seek to understand and try to help correct the housing and other conditions which stir unrest cannot help but be both repelled and discouraged by the activity of roaming groups of hoodlums interested only in violence for the sake of violence.” By clinging to the idea that a marginal group of troubled slum “riff raff” engaged in rioting, politicians backing law enforcement measures could “strip from these outbreaks any legitimacy as a form of social or economic protest,” as a Philadelphia police captain testified. See Senate Committee, *Controlling Crime*, 1133; *ibid.*; Robert Bauman, “The Black Power and Chicano Movements in the Poverty Wars in Los Angeles,” *Journal of Urban History* 33, no. 2 (January 2007): 277–295.
21. “Concerns of the Office of Juvenile Delinquency and Youth Development” attached to November 10, 1965, memorandum from Bernard Russell Director to James Vorenberg, box 94, Records of the President’s Commission on Law Enforcement and the Administration of Justice: Series 6: Task Force on Juvenile Delinquency, LBJPL.
22. October 1, 1965, “President’s Committee on Juvenile Delinquency Briefing Booklet,” xiv–cont., box 104, Office Files of Bill Moyers, LBJPL.
23. *Ibid.*
24. George H. Esser Jr., “Widening the Horizons of the Culturally Deprived,” *ALA Bulletin* 60, Federal Library Legislation, Programs, and Services (1966): 175–178.
25. Stephen M. David, “Leadership of the Poor in Poverty Programs,” *Proceedings of the Academy of Political Science* 29, Urban Riots: Violence and Social Change (1968): 92–93. Schultze quoted in O’Connor, *Poverty Knowledge*, 172.
26. Milton Eisenhower et al., *To Establish Justice: To Insure Domestic Tranquility: Final Report on the National Commission on the Causes and Prevention of Violence* (Washington, DC: U.S. Government Printing Office, 1969), xiv, 19.
27. “Controlling Crime through More Effective Law Enforcement Hearings,” 44 (Statement of William A. Johnson, Superintendent of Police, Grand Rapids, MI and President, Michigan Association of Chiefs of Police); White House

- Press Release, “Text of the Remarks by the President at the Conference of State Committees on Criminal Administration,” October 15, 1966, folder “Crime Message #1,” LBSSA Files, LBJPL; John A. Averill, “Hit Poverty and Crime Will Fall, Johnson Says,” *Los Angeles Times*, October 16, 1966, 3.
28. Additional grants came from other executive departments, such as the Department of Health, Education, and Welfare, which sponsored much of the commission’s research on juvenile delinquency. Louis Dombrowski, “Urge ‘Revolution’ in Approach to Crime in U.S.,” *Chicago Tribune*, February 19, 1967, 28.
 29. These members were joined by attorney and member of the Pennsylvania Pardon Board Genevieve Blatt; Boston district attorney Garrett Byrne; and attorneys Ross L. Malone, Lewis Franklin Powell, Robert Gerald Storey, and William Pierce Rogers, as well as former New York City mayor Robert F. Wagner; July 28, 1966, Letter from Sam Yorty to the President, folder 27, “FG 273 President’s Commission on Law Enforcement and the Administration of Justice,” box 40, LBJ Confidential Files, LBJPL; Max Freedman, “National Crime Commission’s Strategy Has at Least One Flaw,” *Los Angeles Times*, August 5, 1965, A5.
 30. December 3, 1966, memorandum from James Vorenberg to Joseph A. Califano, 7, folder 1, “1966–67 Task Force on Crime,” box 1, Legislative Background Files Safe Streets Act of 1968, LBJPL; “Law Institute Suggests Code of Police Arrest Procedures,” *Hartford Courant*, March 6, 1966; John P. Mackenzie “‘Frisk’ Plan Snarls Law Institute,” *Washington Post*, May 18, 1966, A2.
 31. Johnson Asks Crime Panel for Answers,” *Chicago Tribune*, September 9, 1965, D23.
 32. Transcript of September 8, 1965, Meeting, 30–31, folder “Transcripts of Commission Meetings 9/8/65–11/11–12–66,” 1 of 3, box 55, Records of the President’s Commission on Law Enforcement and the Administration of Justice (hereafter, RPCLEAJ), Series 2, Executive Director James Vorenberg’s Files, LBJPL.
 33. Lyndon Johnson, *National Strategy against Crime: A Proposed Three-Stage Strategy Against Crime*, 89th Cong., 2nd sess., H. Doc 407, serial 12724-3 (March 9, 1966), 8; Monroe W. Karmin, “Combating Crime,” *Wall Street Journal*, December 28, 1966; Nicholas deB. Katzenbach et al., *The Challenge of Crime in a Free Society: A Report by the President’s Commission on Law Enforcement and Administration of Justice* (Washington, DC: U.S. Government Printing Office, 1967), 123.
 34. February 24, 1966, memorandum from Bruce J. Terris to James Vorenberg, subj.: “The Members of the Commission and Poverty,” box 214, RPCLEAJ, Series 12, Task Force on Assessment, LBJPL; Katzenbach in January 12, 1966, “The President’s Commission on Law Enforcement and the Administration of Justice,” folder “FG 763 PCLEAJ (Citizens Adv. Com) 8/19/65,” box 409, Field Group 763, February 21, 1961, LBJPL.

35. Judge Parsons offered up some of his experiences in federal court where he rarely encountered “slum youth.” Contrary to the Crime Commission’s general and final assessment, Parsons found juvenile delinquency to be a far greater problem “among the middle class and upper middle class people.” Transcript of December 29, 1966, Meeting, folder “Transcripts of Commission Meetings 1/11–12-66, 12/28–30-66, 1/21–22/67 3 of 3,” box 57, RPCLEAJ, Series 2 Executive Director James Vorenberg’s Files, LBJPL; Vorenberg and Parsons in November 12, 1966, Official Report of the Proceedings before the US DOJ in the Matter of the PCLEAJ, 403–404, folder “Transcripts of Commission Meetings 9/8/65–11/11–12/66 2 of 3,” box 55, RPCLEAJ Series 2, LBJPL.
36. Hoover in Transcript of September 8, 1965, Meeting, 16; Katzenbach et al., *Challenge of Crime*, 60, 63.
37. “Remarks by the President at the Conference of State Committees on Criminal Administration.”
38. By 1965, the FBI National Academy had trained 4,500 officers at all levels. The Department of Health, Education, and Welfare also provided vocational training for police, and the Treasury Department’s Bureau of Narcotics Training Schools gave instruction to narcotics enforcement officials. *Crime, Its Prevalence, and Measures of Prevention. Message from the President of the United States Relative to Comments on Crime, Its Prevalence, and Measures of Prevention*, 89th Cong., 1st sess., H. Doc. 103, serial 12677-3 (March 8, 1965), 4; “Law Enforcement Assistance Expenditures,” folder “Administrative History DOJ,” box 3, Administrative Histories, vol. 4, pt. 5 and 5a, Department of Justice, LBJPL; House Committee on the Judiciary, *Law Enforcement Assistance: Hearing before Subcommittee No. 3 of the Committee on the Judiciary*, 89th Cong., 1st sess. (May 20, 1965), 19–21 (Statement of Nicholas deB. Katzenbach, Attorney General).
39. Senate Committee on the Judiciary, *Law Enforcement Assistance Act: Senate Hearings before a Subcommittee of the Committee on the Judiciary*, 89th Cong., 1st sess. (July 23, 1965), 37 (Statement of Beverly Briley, Chairman of the League of Cities Law Enforcement Committee and Mayor of Nashville).
40. *Ibid.*, 32 (Statement of Katzenbach).
41. Senate Committee on the Judiciary, *Law Enforcement Assistance Act of 1965: Hearing before the Senate Committee on the Judiciary*, 89th Cong., 1st sess. (July 22, 1965), 4, 6 (Statement of Katzenbach); Gomberg quoted in “Plea for Federal Role in Crime Drive Hailed,” *Hartford Courant*, March 11, 1966, 4.
42. “Law Enforcement Assistance Expenditures.”
43. “Granting Activity 1965–1966,” folder “Volume IV, LEA Part V, LEA—Narrative History” [1 of 2], box 3, 42 LBJAHDOJ vol. 4, pt. 5 and Va., LBJPL; July 28, 1966, Letter from Katzenbach to President from AG, folder “Volume IV, LEA Part V,

- LEA—Documentary Supplement” [2 of 2], box 3, 52 LBJAHDOJ vol. 4, pt. 5 and Va., LBJPL; “War on Crime Theory: Make ‘Em Look Silly,” *Hartford Courant*, March 15, 1966, 11B.
44. According to the FBI Uniform Crime Report that year, Los Angeles had the highest crime rate in the nation, seen as a result of a severe lack of policemen on the city’s most troubled streets. “Project Sky Knight: A Demonstration in Aerial Surveillance and Crime Control,” box 26, Egil Krogh Collection, RNPL; “Administrative History of the DOJ,” folder “Administrative History of the DOJ,” box 3, LBJAHDOJ vol. 4, pt. 5 and Va., LBJPL.
 45. “Project Sky Knight: A Demonstration in Aerial Surveillance and Crime Control.”
 46. Senate Committee on the Judiciary, *Law Enforcement Assistance Act of 1965: Hearing before the Senate Committee on the Judiciary*, 89th Cong., 1st sess. (July 30, 1965), 67 (Statement of Congressman James H. Scheuer); *ibid.*, 8 (Statement of Katzenbach); “Granting Activity 1965–1966.”
 47. Leonard Downie Jr., “Police Explain ‘Dick Tracy’ Radio Plans,” *Washington Post*, March 12, 1966, B2; Alfred E. Lewis, “LBJ Names City Crime Commission,” *Washington Post*, July 17, 1965, A1.
 48. Alfred E. Lewis, “Police Training Planned at All Levels with Goal of ‘Model’ City Departments,” *Washington Post*, June 28, 1966, A1; Letter from Katzenbach to President.
 49. In the summer of 1968, 800 youth from South Central also went camping with LAPD officers at Camp Radford in the San Bernardino Mountains. This was part of an “effort to combat the anti-police attitudes learned in the inner city.” “Los Angeles Community Relations Program,” November 1968, folder “LAPD, Youth Service,” box 26, Krogh Files, RNPL. In “Los Angeles Police Department Community Relations Program—Youth Services Material”; News Clipping, “SRO Grant Contains No Surprise Curbs,” *Tucson Arizona Citizen*, August 2, 1966, in folder “Manpower Development and Training Act-Police Programs,” box 232, Crime Commission Records Task Force on Police Files, LBJPL; Brochure, “Portable Playstreets: An Answer to the Long Hot Summers,” folder “Cabinet Meeting 8/2/67” [3 of 4], Cabinet Papers, LBJPL.
 50. “Text of the Remarks by the President at the Conference of State Committees on Criminal Administration.”
 51. “President’s Committee on Juvenile Delinquency and Youth Crime Briefing Booklet.”
 52. Both the Economic Opportunity Act and the Secondary Education Act of 1965 amounted to ten times that of the programs instituted under the Law Enforcement Assistance Act. And the Johnson administration created a new cabinet-level agency that fall with the enactment of the Housing and Urban

Development Act, which received an initial \$7.5 billion allocation from Congress. *Housing and Urban Development Act of 1965*, Pub. L. No. 89-117, 79 Stat. 451 (1965); Economic Opportunity Act of 1964, 1967. “Crime, LEAA, The Law Enforcement Assistance Administration.” Issue Brief no. IB77024, Library of Congress Research Service, November 29, 1979; Senate Subcommittee on State, Justice, Commerce, and the Judiciary, *Hearings on Appropriations FY 81, Part 2*, 96th Congress, 2nd sess. (1980).

3. THE PREEMPTIVE STRIKE

1. Lyndon Johnson, “Annual Message to Congress on the State of the Union,” 1967, *Public Papers of the Presidents of the United States: Lyndon B. Johnson, 1968–69*, vol. 1, entry 14, pp. 25–33 (Washington, DC: Government Printing Office, 1970); Remarks by the President for Cabinet Meeting Wednesday, April 19 1967, folder “Cabinet Meetings,” box 58, Personal Papers of Ramsey Clark, Lyndon Baines Johnson Presidential Library (hereafter, LBJPL); 10-15-66 White House Press Release, Office of the White House Press Secretary, “Text of the Remarks by the President at the Conference of State Committees on Criminal Administration,” folder “1967 Crime Message #1,” box 3, Legislative Background Files SSA 1968, LBJPL; Nicholas deB. Katzenbach et al., *The Challenge of Crime in a Free Society: A Report by the President’s Commission on Law Enforcement and Administration of Justice* (Washington, DC: U.S. Government Printing Office, 1967), 6.
2. Economic Opportunity Act of 1966, Pub.L. No. 89-794, 95 Stat. 519 (1966); see also *Examination of the War on Poverty*, Staff and Consultant Reports, Prepared for the Sub-Committee on Employment, Manpower, and Poverty of the Committee on Labor and Public Welfare, U.S. Senate, vol. 3, September 1967, 797–798, quoted in Richard K. Fenn, “The Community Action Program: An American Gospel?” *Science and Society* 33, no. 2 (Spring 1969): 209–222, 216.
3. N/T, N/D Document p. 16, folder 1, “1966–67 Task Force on Crime,” box 1, Legislative Background Files SSA 1968, LBJPL; November 30, 1967, memorandum from Willard Wirtz to Joseph Califano, “A Summary of the Department of Labor’s Efforts Related to the Recommendations Made by the President’s Commission on Law Enforcement and the Administration of Justice,” p. 2, folder “1967 Crime Message Follow Up 3 of 3,” box 4, Legislative Background Files SSA 1968, LBJPL.
4. Juvenile Delinquency Prevention and Control Act of 1968, Pub. L. No. 90-445, 82 Stat. 462 (1968). The phrase “in danger of becoming delinquent” appears in the first paragraph of sec. 2 of the legislation.
5. Katzenbach et al., *Challenge of Crime*, vi.

6. Ibid., 6. The acknowledgment of structural racism often was used as a device to frame arguments for the expansion of American law enforcement. As North Carolina senator Sam Ervin stressed, “a nationwide war on crime is as imperative as our continuing war on poverty and unemployment.” Senator Edward Kennedy echoed Ervin’s sentiment by noting, “It has become increasingly recognized that criminal behavior is intertwined with social forces—that many who transgress the law have themselves been transgressed—by their home life, by their environment, by their lack of opportunity.” *The Law Enforcement Assistance Act of 1965 Hearings*, July 22, 1965, 4, 33.
7. Richard B. Stolley, “A Crisis Worse than Anyone Imagined: Report,” *Life* magazine, February 24, 1967, 24; Katzenbach et al., *Challenge of Crime*, 6, 59.
8. Katzenbach et al., *Challenge of Crime*, 95.
9. This language is from a Los Angeles Police Department Community Relations Program report. Police officers in the city came to interact with some 8,000 students a week. The report stated, “Police and school officials agree that this program, presented in an atmosphere of learning, is invaluable in creating a sense of concern for orderly behavior and responsibility for the maintenance of law and order.” The program involved the distribution of pamphlets from police officers to primary and secondary schoolchildren. This would “provide students with an appreciation of the role of the police and their own responsibilities as good citizens.” In 1968, more than 210,000 students from grade 1 through grade 12 were exposed to this program. “Los Angeles Police Department Community Relations Program,” November 1968, box 26, Egil Krogh Collection, Richard Nixon Presidential Library (hereafter, RNPL); Katzenbach et al., *Challenge of Crime*, 100.
10. Katzenbach et al., *Challenge of Crime*, 99, 98.
11. The statistics proved for commission members that urban centers, and urban centers alone, created the conditions that bred crime. “Burglary, robbery, and serious assaults occur in areas characterized by low income, physical deterioration, dependency, racial and ethnic concentrations, broken homes, working mothers, low levels of education and vocational skill, high unemployment, high proportions of single males, overcrowded and substandard housing, high rates of tuberculosis and infant mortality, low rates of home ownership or single family dwellings, mixed land use, and high population density,” the Crime Commission claimed. Ibid., 35, 59; August 18, 1966, “Meeting on Crime-Justice”; October 15, 1966, White House Press Release.
12. January 30, 1967, memorandum from Joe Califano to the President, folder “1967 Crime Message #1,” box 3, Legislative Background Files SSA 1968, LBJPL; Tom Lambert, “Johnson, 3 Senators Praise Crime Report,” *Los Angeles Times*, February 19, 1967, 8; Berry quoted in David Canfield, “Crime Study Reaction

- Good; Report Is Called Most Complete Study Ever,” *Chicago Tribune*, February 20, 1967, C11; William F. Buckley Jr., “Conservative Doesn’t Feel Society Owes the Criminal,” *Los Angeles Times*, January 30, 1967. The response that worried Johnson officials the most came from Americans of Italian descent. Organizations like the Sons of Italy wrote to the administration outraged over the report’s depiction of the Costra Nostra organized crime group as exclusively Italian (see Katzenbach et al., *Challenge of Crime*, 192). May 10, 1967, memorandum from Califano to the President, folder “FG 763 PCLWAJ (Citizens Adv. Com) 2/24/67–5/19/67,” box 409, EX FG 763, LBJPL.
13. December 3, 1966, memorandum from Vorenberg to Califano. November 24, 1966, Telegram from Ramsey Clark to the President “Re: Implementation of National Crime Commission Report,” folder “FG 135 DOJ (1967),” box 28, LBJ Confidential File FB 120 (1966), LBJPL.
 14. Monroe W. Karmin, “Combating Crime,” *Wall Street Journal*, December 28, 1966; Katzenbach et al., *Challenge of Crime*, 123; November 16, 1967, memorandum from HUD Secretary Robert C. Weaver to Califano, folder “1967 Crime Message Follow Up 3 of 3,” box 4, Legislative Background Files SSA 1968, LBJPL; “Report on Action Taken by Department of Health, Education, and Welfare Related to Recommendations of the President’s Commission on Law Enforcement and the Administration of Justice,” attached to memorandum received March 28, 1968, from HEW Secretary Wilbur J. Cohen to Joseph Califano, folder “1967 Crime Message Follow Up 3 of 3,” box 4, Legislative Background Files SSA 1968, LBJPL.
 15. November 27, 1967, memorandum from Califano to Warren Christopher, folder “1967 Crime Message Follow Up 3 of 3,” box 4, Legislative Background Files SSA 1968, LBJPL; Memorandum from Cohen to Califano.
 16. Katzenbach et al., “Challenge of Crime,” 16.
 17. For the most thorough account of the Detroit Rebellion, see Sidney Fine, *Violence in the Model City: The Detroit Riot, Race Relations, and the Detroit Riot of 1967* (East Lansing: Michigan State University Press, 2007). See also Dan Georgakas and Mavin Surkin, *Detroit: I Do Mind Dying* (1975; repr., Cambridge, MA: South End Press, 1998); Heather Ann Thompson, *Whose Detroit: Politics, Labor, and Race in a Modern American City* (Ithaca, NY: Cornell University Press, 2004); Minutes of 8/2/67 Cabinet Meeting, folder “Cabinet Meeting 8/2/67 [4 of 4],” box 9, Cabinet Papers, LBJPL.
 18. July 24, 1967, memorandum from Ben Wattenberg to the President, folder “7/24/67 Remarks to the Nation After Authorizing the Use of Federal Troops in Detroit,” box 243, Statements of LBJ July 6, 1967–July 29, 1967, LBJPL; Fine, *Violence in the Model City*; “Events of the Early Morning of July 24th (as taken from the wires),” folder “Detroit Chronology July 23–31 (2),” box 58, Office Files

- of Joseph A Califano, LBJP; July 24, 1967, Telegram from Governor George Romney to Attorney General Ramsey Clark, folder “1967 Riot Misc. Reports,” box 345, George Romney Gubernatorial Papers, University of Michigan Bentley Historical Library.
19. July 24, 1967, Remarks to the Nation after Authorizing the Use of Federal Troops in Detroit, folder “7/24/67 Remarks to the Nation after Authorizing the Use of Federal Troops in Detroit,” box 243, Statements of LBJ July 6, 1967–July 29, 1967, LBJPL. Johnson went on to state: “We seek peace based on one man’s respect for another man and upon mutual respect for the law. We seek a public order that is built on steady progress in meeting the needs of all of our people.” “Excerpts from President Lyndon B. Johnson’s Address to the Nation on Civil Disorders, July 27, 1967” in Otto Kerner et al., *Report of the National Advisory Commission on Civil Disorders* (New York: Bantam Books, 1968), 538–540, 323. Unlike the dominant perception of the Watts uprising, the average participant in Detroit’s unrest had a more diverse background. A federal research study revealed that most of the participants were in their twenties and thirties, only about a quarter were under twenty, and an additional quarter were over age thirty-five. Perhaps more significantly, four out of five of the participants had jobs and were employed at the time of the rebellion—even if the majority reported had been out of work at some time in the year leading up to it. The residents over age twenty-five were generally more educated than black Americans of the same age group. August 8, 1967, memorandum from Williard Wirtz to the President, folder “Detroit Chronology July 23–31 (1),” box 58, Office Files of Califano, LBJPL.
 20. Minutes of August 2, 1967, Cabinet Meeting, folder “Cabinet Meeting 8/2/67 [4 of 4],” box 9, Cabinet Papers, LBJPL; Ron Porambo, *No Cause for Indictment: An Autopsy of Newark* (New York: Holt, Rinehart and Winston, 1971); Kerner et al., *Report of the National Advisory Commission* (1968). See also Tom Hayden, *Rebellion in Newark: Official Violence and Ghetto Response* (New York: Vintage Books, 1967); Kevin Mumford, *Newark: A History of Race, Rights, and Riots* (New York: New York University Press, 2007).
 21. Minutes of August 2, 1967, Cabinet Meeting; Guardsmen quoted in Gene Roberts, “Troops Battle Detroit Snipers, Firing Machine Guns From Tanks,” *New York Times*, July 26, 1967, 1. Martin quoted in “The Newark Tragedy: A Week Long Inquiry,” *Washington Post*, July 24, 1967, A1; Homer Bigart, “Newark Riot Deaths at 21 as Negro Sniping Widens,” *New York Times*, July 16, 1967, 1.
 22. Beyond indiscriminate violence, state and local law enforcement authorities also joined in the looting and general destruction during the disorders. Black participants tended to spare those businesses identified as black-owned, but white Newark police officers took it upon themselves to shoot the windows of

- the stores with “Soul Brother” tags. According to testimony before the Governor’s Commission on the Newark riot, state troopers broke into a dry cleaners and smashed windows, threw clothes from racks, and emptied the cash register. These cases may have been exceptional, but in the end many police departments profited from the loot, selling televisions, sofas, guns, and liquor at auction. Minutes of August 2, 1967, Cabinet Meeting; Porambo, *No Cause for Indictment*; Kerner et al., *Report of the National Advisory Commission* (1968); Guardsmen quoted in Roberts, “Troops Battle Detroit Snipers”; Officer quoted in “The Newark Tragedy”; Wayne Thomis, “Detroit Holocaust: Why Wheels Stopped in Motor City,” *Chicago Tribune*, July 28, 1967, 4. See Mumford, *Newark*, 125; Russell Sackett, “In a Grim City, a Secret Meeting with the Snipers,” *Life* magazine, July 28, 1967, 27; “New Jersey Panel Assesses Police of Racial Prejudice during Newark Riot,” *Wall Street Journal*, February 12, 1968, 8; Jerry M. Flint, “National Guard Leaving Detroit,” *New York Times*, July 29, 1967, 1.
23. This administration and Johnson’s Crime Commission relied instead on FBI studies concluding that “matters of police brutalities, for the most part, have little merit,” based on the 3 percent conviction rate of accused officers. Transcript of December 28, 1966 Meeting, 708, folder “Transcripts of Commission Meetings 1/11/–12-66, 12/28–30-66, 1/21–22/67 3 of 3,” box 57, Records of the President’s Committee on Law Enforcement and the Administration of Justice, Series 2, LBJPL. Transcript of September 8, 1965, Meeting, 107.
 24. Furr quoted in Dale Wittner, “Billy Furr, Caught in the Act of Looting Beer,” *Life* magazine, July 28, 1967, 21–22 (dialect in article); August 8, 1967, memorandum from Wirtz to the President.
 25. Remarks of the President before the IACP; Minutes of August 2, 1967, Cabinet Meeting; Ward Churchill and Jim Vander Wall, *The COINTELPRO Papers: Documents from the FBI’s Secret War against Dissent* (New York: South End Press, 1990), 92.
 26. Minutes of August 2, 1967, Cabinet Meeting. For the most thorough discussion of Stokely Carmichael and his role in the Black Power Movement, see Peniel Joseph, *Stokely: A Life* (New York: Basic Books, 2014), especially Chapter 12, “The World Stage: London, Cuba, and Vietnam, July 13–September 5, 1967;” Carmichael quoted in “Sniping,” *Washington Post*, July 28, 1967, A16.
 27. Minutes of August 2, 1967, Cabinet Meeting.
 28. Letter from President Johnson to Honorable Mike Mansfield, U.S. Senate, Washington, DC, folder “1967 Crime Message Follow Up 2 of 3,” box 4, Legislative Background Files SSA 1968, LBJPL; “E. Large City Special Grants,” folder “OLEP (Gen 1969),” Records of the Law Enforcement Assistance Administration, National Archives, College Park, Maryland.
 29. Fulwood and Murphy, quoted in “2d Neighborhood Center Opened by D.C. Police,” *Washington Post*, September 7, 1968, B2.

30. "Los Angeles Police Department Community Relations Program Report," November 1968, folder "LAPD Youth Services," box 26, Krogh Files, RNPL.
31. When federal policymakers, law enforcement, and criminal justice officials used the term "delinquency" or "delinquent," they often took the concept as a given, without clearly defined parameters. A Juvenile Delinquency report from 1967 defined delinquents as "children who get into trouble with the law," but on the whole delinquency was defined spatially, endemic to "slum areas, where delinquency is highest," as Johnson officials put it. The definition used in the text comes from the January 11, 1967, Letter to Arthur Rossett from Charles Schinitzky, Attorney in Charge, The Legal Aid Society, Family Court Branch, folder "Correspondence Re Task Force Report," box 93, RPCLEAJ Series 6: Task Force on Juvenile Delinquency, LBJPL. See also July 21, 1964, Report on "Juvenile Delinquency," folder "Juvenile Delinquency," box 40, Office Files of Bill Moyers, LBJPL; N/T, N/D Document p. 12, Legislative Background, SSA 1968; Symington quoted in Cliff Sessions, "Poor Moms, Dads Can Be Replaced," *Chicago Defender*, October 26, 1965, 11; Lyndon Johnson, "Special Message to the Congress Recommending a 12-Point Program for America's Children and Youth," February 8, 1967, American Presidency Project, available at <http://www.presidency.ucs.edu/ws/?pid=28438>; Wirtz in Minutes of 8/2/67 Cabinet Meeting; June 16, 1967, memorandum from Califano to the President, pg. 3, folder "Watts," box 58, Office Files of Califano, LBJPL.
32. November 29, 1966, memorandum from Hugh M. Durhan, Criminal Division to James C. Gaither, White House Liaison Officer for Task Force on Law Enforcement and Administration of Justice, 27, folder 2, "1966–67 Task Force on Crime II," box 1, Legislative Background Files SSA 1968, LBJPL.
33. Symington quoted in Sessions, "Poor Moms, Dads Can Be Replaced"; *Chicago Defender*, October 26, 1965, 11; Lyndon Johnson, "Special Message to the Congress Recommending a 12-Point Program for America's Children and Youth"; Jaworski and Parsons in Transcript of September 21, 1966, Crime Commission Meeting, 25, 46, folder "Transcripts of Commission Meetings 6/27–29/66, 9/20–21/66 1 of 3," box 56, RPCJEAJ Series 2, LBJPL.
34. Roughly two thirds of the bureaus were located in black urban areas. The theoretical seeds of the Youth Service Bureaus came from President Kennedy's Committee on Juvenile Delinquency and Youth Crime, which included staff and leadership that went on to serve on the Crime Commission in addition to Symington. Although the President's Committee had disbanded, its ideas found new energy during the Johnson administration in the Crime Commission's recommendations. Johnson, "Special Message to the Congress Recommending a 12-Point Program"; U.S. Department of Health, Education, and Welfare, Social and Rehabilitative Service, Youth Development and Delinquency Prevention Administration *Youth Service Bureaus and*

- Delinquency Prevention* (Washington, DC: U.S. Government Printing Office, 1973), 3; California Youth Authority, *National Study of Youth Service Bureaus*, 45–47; Sessions, “Poor Moms, Dads”; California Youth Authority, *National Study of Youth Service Bureaus; Final Report to the Youth Development and Delinquency Prevention Administration* (Washington, DC: Youth Development and Delinquency Prevention Administration, 1973), 45–47.
35. Johnson, “Special Message to the Congress Recommending a 12-Point Program.”
 36. Johnson’s Crime Commission noted of the bureau design, “It is essential that acceptance of the bureau’s services be voluntary; otherwise the dangers and disadvantages of coercive power would merely be transferred from the juvenile court to it.” Katzenbach et al., *Challenge of Crime*, 83.
 37. *Ibid.*, 20.
 38. Juvenile Delinquency Prevention and Control Act of 1968.
 39. U.S. Department of Health, Education, and Welfare, Social and Rehabilitative Service, Youth Development and Delinquency Prevention Administration *Youth Service Bureaus and Delinquency Prevention* (Washington, DC: U.S. Government Printing Office, 1973). Excerpts from “Juvenile Delinquency and Youth Crime,” Task Force Report to the President’s Commission on Law Enforcement and Administration of Justice, 1967, 396–399, app. B, 44–45. California Youth Authority, *National Study of Youth Service Bureaus*, 66.
 40. “Introduction” in Robert L. Woodson, ed., *Youth Crime and Urban Policy: A View from the Inner City* (Washington, DC: American Enterprise Institute for Public Policy Research, 1981), 6; California Youth Authority, *National Study of Youth Service Bureaus*, 159–160.
 41. California Youth Authority, *National Study of Youth Service Bureaus*, 86.
 42. *Ibid.*, 183–184, 175–176, vii.
 43. The California Youth Authority offered both commissions an early example of such a program. With money from Kennedy’s Juvenile Delinquency programs and state funds, in 1961, the Youth Authority started testing community treatment alternatives by bringing juvenile offenders into community centers for counseling and therapy. *Ibid.*, 175–176.
 44. Officials in the Department of Health, Education, and Welfare were concerned about the underlying pathological assessments and the punitive emphasis of the Youth Service Bureaus, which relied “heavily on the relationship between low family economic status and delinquency and, concomitantly, giving short shrift to the issues of middle-class and suburban delinquency.” While individual, social, and family pathologies were “clearly a major concern,” the administration’s view of the issue overlooked “the importance of fundamental changes in structure and expansion of efforts” in public institutions. House Committee on Education and Labor, *Juvenile Delinquency and*

- Prevention Act of 1967 Hearings before the General Subcommittee on Education*, 90th Cong., 1st sess. (May 10, 1967), 328 (Statement of Executive Director James Vorenberg, President's Commission on Law Enforcement and the Administration of Justice); January 3, 1967, letter from Lisle C. Carter Jr., Assistant Secretary Individual and Family Services, HEW, to Jim Vorenberg, folder "Correspondence Re: Task Force Report," box 93, RPCLEA Series 6, LBJPL.
45. Although data on juvenile incarceration rates before 1990 are inconsistent, the rate of incarceration was 241 per 100,000 youth in 1975; by 1979, it had reached a rate of 251 per 100,000 youth; and by 1983, it had soared to 290 per 100,000 youth (peaking in 1995 at a rate of 381 per 100,000 youth). See Bradford Smith, "Children in Custody: 20-Year Trends in Juvenile Detention, Correctional, and Shelter Facilities," *Crime and Delinquency* 44 (1998): 526–543; Annie E. Casey Foundation, "Reducing Youth Incarceration in the United States," February 2013, available at <http://www.aecf.org/m/resourcedoc/AECF-DataSnapshotYouthIncarceration-2013.pdf>. On the racial disparities within the American criminal justice system, see Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York: New Press, 2011), 16; Heather C. West, William J. Sabol, and Sarah J. Greenman, "Prisoners in 2009," *Bureau of Justice Statistics Bulletin*, rev. October 27, 2011, U.S. Department of Justice; Bruce Western, *Punishment and Inequality in America* (New York: Russell Sage Foundation, 2006); Katzenbach et al., *Challenge of Crime*, 59.
 46. To underscore the importance of the commission's work, Johnson warned: "The Civil Peace has been shattered in a number of cities. The American people are deeply disturbed. They are baffled and dismayed by the wholesale looting and violence that has occurred both in small towns and great metropolitan centers." Johnson, "Remarks upon Signing the Order Establishing the National Advisory Commission on Civil Disorders, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/index.php?pid=28369>; and "Appendix B: Remarks of the President upon Issuing an Executive Order Establishing a National Advisory Commission on Civil Disorders, July 29, 1967," Kerner et al., *Report of the National Advisory Commission* (1968), 536. Roy Reed, "President Calls for Free Inquiry on Nation's Riots," *New York Times*, July 30, 1967, 1; "Appendix J: A Statement on Methodology," Kerner et al., *Report of the National Advisory Commission* (1968), 574; October 1, 1968, memorandum from Califano for the President from Joe Califano, folder "FG 763 PCLEAJ (Citizens Adv. Comt.) 1/1/68," box 409, EX FG 763 2/21/61, LBJPL.
 47. Kerner et al., *Report of the National Advisory Commission* (1968), 1. Anthony Platt provides an excellent analysis of the politics of these various presidential task forces. See Anthony Platt, *The Politics of Riot Commissions, 1917–1970: A Collection of Reports and Critical Essays* (New York: Collier Books, 1971).

48. Hugh Davis Graham, "On Riots and Riot Commissions: Civil Disorder in the 1960s," *Public Historian* 2, no. 4 (1980): 7–27, 19.
49. Kerner et al., *Report of the National Advisory Commission* (1968), 223, 218, 224, 222.
50. *Ibid.*, 219 (emphasis in original).
51. *Ibid.*; Kerner et al., *Report of the National Advisory Commission on Civil Disorders* (Washington, DC: U.S. Government and Printing Office, 1967), 160, 162, 159; Kerner et al., (1968), 319.
52. Kerner et al., (1967), 158, 165, 167; Kerner et al., *Report of the National Advisory Commission* (1968) 319.
53. Kerner et al., *Report of the National Advisory Commission* (1968) 304, 307; Katzenbach et al., *Challenge of Crime*, 95. Moreover, paraphrasing the Crime Commission, Kerner Commission members suggested that if police departments remained "lily-white," "a feeling may develop that the community is not being policed to maintain civil peace but to maintain the status quo." Kerner et al., (1968), 315. Black police officers would not only increase the stability of black families, according to members, but also make residents more comfortable with new levels of law enforcement personnel in their everyday lives.
54. Kerner et al., (1967), 167.
55. *Ibid.*, 168.
56. Kerner et al., (1967), 158; Kerner et al., (1968), 300.
57. Kerner et al., (1967), 21, 392; Katzenbach et al., *Challenge of Crime*, 57; James Yuenger "Commission Sought and Got Facts on Urban Riots: Kerner," *Chicago Tribune*, March 1, 1968, 1.
58. The cabinet largely blamed the outbreak on delinquency problems. "School truancy can be very dangerous," Clark commented at a cabinet meeting on April 3. "There have been as many as 17,000 truants from Negro schools on that day in Memphis." Minutes of April 3, 1968, Cabinet Meeting, folder "Cabinet Meeting 4/3/68 [1 of 4]," box 13, Cabinet Papers, LBJPL; March 29, 1968, Remarks of the President before the Philadelphia Police Athletic League, folder "3-29-68 Remarks of the President before the Philadelphia Police Athletic League," box 270, Statements of LBJ July 6, 1967–July 29, 1967, LBJPL.
59. Shriver Quoted in Gareth Davies, *From Opportunity to Entitlement: The Transformation and Decline of Great Society Liberalism* (Lawrence: University Press of Kansas, 1999), 191.
60. Robert Wiedrich, "Growing Disrespect for Laws Called Threat to Our Nation," *Chicago Tribune*, February 17, 1968, W18.

4. THE WAR ON BLACK CRIME

1. Richard Nixon, "Toward Freedom from Fear" (Nixon for President Committee, 1968).
2. For the best discussion of block grants and partisanship as they relate to the politics of crime control and race, see Vesla Mae Weaver, "Frontlash: Race and the Development of Punitive Crime Policy," *Studies in American Political Development* 21 (Fall 2007): 230–265; Martha J. Bailey and Nicolas J. Duquette, "How Johnson Fought the War on Poverty: The Economics and Politics of Funding at the Office of Economic Opportunity," *Journal of Economic History* 74, no. 2 (June 2014): 351–388.
3. Phillips quoted in Gareth Davies, *From Opportunity to Entitlement: The Transformation and Decline of Great Society Liberalism* (Lawrence: University Press of Kansas, 1999), 217.
4. July 13, 1970, memorandum for Bud Krogh, *no author*, "Review of 'Brainstorming Session' Outlining Administration Responses and Initiatives towards the Crime Problem for the Next Year (Santarelli, Kallen, Persce-Drug Issue Not Discussed)," box 25, Egil Krogh Files, Richard Nixon Presidential Library (hereafter, RNPL); Peter Stuart, "Revolt in Law Enforcement?" *Christian Science Monitor*, April 21, 1970, 2.
5. Michelle Alexander provides an excellent discussion of criminal justice discretion in Chapter 3, "The Color of Justice," in *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York: New Press, 2011), 97–139; See also James Vorenberg, "Narrowing the Discretion of Criminal Justice Officials," *Duke Law Journal* 4 (September 1976): 661–697.
6. Nixon, "Toward Freedom from Fear"; Vesla Mae Weaver, "Frontlash: Race and the Politics of Punishment" (PhD diss., Harvard University, 2007), 54.
7. Although black voters secured Agnew's victory in the 1966 Maryland gubernatorial race, he lost much of this initial support after he attributed the cause of the 1968 Baltimore riot to the shortcomings of black leaders in the community. Nixon, "Toward Freedom from Fear"; "Complete Text of the 1968 Republican Platform," *Congressional Quarterly Almanac* 24 (1968): 987–994.
8. Thomas E. Cronin, Tamia Z. Cronin, and Michael E. Millakovich, *U.S. v. Crime in the Streets* (Bloomington: Indiana University Press, 1981), 60–61; Elliott Currie and James Q. Wilson, "The Politics of Crime: The American Experience," in *The Politics of Crime Control*, ed. Kevin Stenson and David Cowell (London: Sage Publications, 1991), 33–61, 34; James D. Calder, "Presidents and Crime Control: Kennedy, Johnson and Nixon and the Influences of Ideology," *Presidential Studies Quarterly* 12, no. 4 (1982): 574–589; Nixon, "Toward Freedom from Fear"; Mitchell quoted in Nancy Marion, *A History*

- of *Federal Crime Control Initiatives, 1960–1993* (New York: Praeger, 1994), 70; “Complete Text of the 1968 Republican Platform”; Mitchell quoted in Ronald J. Ostrow, “Richardson to Shift Focus at Justice Department,” *Los Angeles Times*, June 17, 1973, H1.
9. Dean quoted in Cronin et al., *U.S. v. Crime in the Streets*, 76. See John Dean, *Blind Ambition* (New York: Pocket Books, 1970), 389–390.
 10. Muskie quoted in “U.S. Can’t Put a Wall around Negro,” *Chicago Tribune*, September 16, 1968, 5. See also Weaver, “Race and Politics,” 84. Popular vote totals are based on “Congressional Quarterly’s Guide to U.S. Elections,” 4th Ed. (2001). On the 1968 election, see Rick Perlstein, *Nixonland: The Rise of a President and the Fracturing of America* (New York: Scribner, 2008); Warren F. Kimball, “The Election of 1968,” *Diplomatic History* 28, no. 4: 513–528.
 11. The council included former LAPD police chief Thomas Reddin, Professor Walter Murray (who served as special consultant to the Watts Area Re-development and Rehabilitation Project), and a number of U.S. attorneys, district attorneys, and members and former presidents of the International Association of Chiefs of Police, the National Law Enforcement Association, and the American Bar Association. Richard Nixon’s Advisory Council on Crime and Delinquency—Recommendations. Attached to December 20, 1968, letter from Martin Pollner to Martin Anderson, folder “Crime 3 of 3,” box 24, Martin Anderson Files, RNPL; undated policy brief for President-Elect Nixon, “Improving State and Local Law Enforcement and Criminal Justice,” box 24, John Dean Collection, RNPL.
 12. H. R. Haldeman, *The Haldeman Diaries: Inside the Nixon White House* (New York: G. P. Putnam and Sons, 1994), 66. This particular diary entry received much attention from the national news media and scholars, but it is worth repeating.
 13. August 1, 1970, memorandum from Egil Krogh to the president in “Law Enforcement Assistance Administration Denver Trip by President Monday August 3, 1970,” box 47, Egil Krogh Files, RNPL; May 8, 1970, “Draft Remarks for President Before the Regional Meeting of State Planning Agencies of Region VII of the LEAA Phoenix, AZ,” folder “Proposals—President’s LEAA Trip (1970),” box 26, Krogh Files, RNPL; May 1, 1970, memorandum from Skoler to Rogovin, Velde, and Coster, subj.: “Policy Statements—LEAA Technical Assistance Responsibilities,” folder “OLEA (Gen) 1970,” box 37, Records of the Law Enforcement Assistance Administration (hereafter, RLEAA), National Archives II; May 1, 1970, memorandum from Skoler to Rogovin, Vede, and Coster, subj.: “Policy Statements—LEAA Technical Assistance Responsibilities,” folder “OLEA (Gen) 1970,” box 37, RLEAA.
 14. California, Connecticut, Delaware, Florida, Georgia, Illinois, Iowa, Kentucky, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, New

- Jersey, New Mexico, New York, North Dakota, Ohio, Pennsylvania, Rhode Island, Utah, Washington, West Virginia, and Wisconsin all had state criminal justice planning agencies underway before Nixon took office. Omnibus Crime Control and Safe Streets Act of 1968, Pub. L. No. 90-351, 82 Stat. 197 (1968).
15. August 2, 1970, presentation by Richard W. Velde, for President's Meeting in Denver, folder "LEAA Trip—August," box 21, Krogh Files, RNPL; August 1, 1970, memorandum from Krogh to the President; Professor quoted in Paul Houston, "Safe Streets: Is U.S. Money Helping Win War on Crime?" *Los Angeles Times*, April 4, 1971, F1.
 16. June 23, 1969, address by Charles H. Rogovin before the National Association of Attorneys General at the College of the Virgin Island Charlotte Amalie, St. Thomas, Virgin Islands, box 25, Krogh Files, RNPL; friend quoted in Deirdre Carmody, "He Loves Cops: Charles Howard Rogovin," *New York Times*, July 23, 1970, 16; Charles Rogovin, "The Genesis of the Law Enforcement Assistance Administration: A Personal Account," *Columbia Human Rights Law Review* 5 (1973): 9–26.
 17. Edith Flynn, "Report on the Task Force on Corrections," 4th National Symposium on Law Enforcement Science and Technology May 1–3, 1972, Washington, DC, box 19, RLEAA.
 18. On the relationship between the LEAA and the HUD, see "Housing Authority Sets Up Own 72-Man Security Force," *New Pittsburgh Courier*, January 29, 1972, 1; "U.S. Crime Probe Gets HUD Funds," *Chicago Daily Defender*, September 15, 1970, 15. On the LEAA and the CIA and the army, see Stuart Schrader, "American Streets, Foreign Territory: How Counterinsurgent Police Waged the War on Crime" (PhD diss., New York University, 2015); Paul G. Edwards, "Area Police Confirm CIA Aid," *Washington Post*, February 7, 1973, D1; Thomas Lippman, "D.C. Police Now Free of White House," *Washington Post*, June 22, 1975, 1; Three CIA consultants received a \$166,000 grant from the LEAA to help the department reorganize its intelligence files. *Ibid.*; David Burnham, "C.I.A. Will Curb Training It Provides Police Forces," *New York Times*, March 6, 1973, 29. Legal issues concerning the CIA's relationship with local police departments have recently resurfaced, and the agency launched an internal investigation in the fall of 2011 to determine whether its work with the New York Police Department after the September 11 attack violated laws prohibiting intelligence-gathering at home. See Mark Mazzetti, "C.I.A. Examining Legality of Work with Police Dept.," *New York Times*, September 13, 2011, A31. On the LEAA and Law Enforcement Education Programs, see August 2, 1970, presentation by Richard W. Velde, for President's Meeting in Denver, folder "LEAA Trip—August," box 21, Krogh Files, RBPL; Weaver, "Race and Crime Policy," 257; "ECSU Law Enforcement Program Set," *New Journal and Guide*, August 30, 1969, B13. On the LEAA and public relations programs

- promoting the crime issue, see Jim Carmody, “A Series in the Name of Justice,” *Washington Post*, October 11, 1974, B8; John C. Waugh, “Mitchell Hints Plan for ‘Massive Citizen War on Crime,’” *Christian Science Monitor*, February 12, 1969, 4; “California to Get New Law Grant,” *New York Times*, August 27, 1974, 30.
19. Planning did not originate with the Nixon administration, as Johnson appointed more commissions and task forces than any other president. But with respect to crime control, White House officials and state bureaucrats steered the course of the law enforcement revolution. The top LEAA administrators viewed planning as “the process of consciously exercising rational control over the development of the physical environment and of certain aspects of the social environment, in light of a common scheme of values, goals, and assumptions.” If insufficient planning created mismanagement of the War on Poverty, policymakers hoped that by carefully developing programs, encouraging experimentation, and supporting academic research, the War on Crime would prove far more “successful.” “Planning Assistance: Problems and Implications” LEAA box 37 OLEP (Gen) 1970, RLEAA; Cronin et al., *U.S. v. Crime in the Streets*, 79.
 20. N.d. memorandum from Pollner to Mitchell, “Re: Anticipated Criminal Activity Facing New Administration and Proposed Action to Combat Same,” Anderson Files, box 24, RNPL.
 21. Paul W. Valentine, “Police Auditors Criticized,” *Washington Post*, October 26 1972, A1. Elsewhere, the New York City firm Touche Ross and Company received \$2.1 million from the city of Detroit and \$1 million for law enforcement consulting services in other cities. The International Association of Chiefs of Police gave enthusiastic testimony in congressional hearings as soon as the federal government began to take an interest in crime control in the mid-1960s, and the association quickly evolved into a lucrative law enforcement consulting institution. The LEAA found the group to have highly questionable practices, but awarded it multimillion-dollar grants to cover its hefty consulting fees. “Police Lose Funds for Helicopters,” *Washington Post*, January 22, 1972, A3; Glen Elsasser, “Vast Waste of Funds Charged,” *Chicago Tribune*, April 7, 1972, 3.
 22. Glen Elsasser, “U.S. Finds Alabama Misused Funds for Fight on Crime,” *Chicago Tribune*, April 30, 1972, 5; Kenneth Reich, “U.S. Refuses to Hold Back Alabama Funds,” *Los Angeles Times*, February 20, 1971, A7.
 23. Both Rogovin and Ruth remained on as private consultants for the agency, however, until Ruth stepped in to serve as special prosecutor during the Watergate investigation with former Crime Commission member James Vorenberg. John Herbers, “Senators Seek to Divert Anticrime Funds to Cities,” *New York Times*, November 22, 1969, 38; Peter Stuart, “Revolt in Law Enforcement?” *Chris-*

- tian Science Monitor*, April 21, 1970, 2; Paul G. Edwards, “Deputy Ruth Says Job Was Depressing,” *Washington Post*, October 13, 1974, A16.
24. Patricia Sullivan, “Jerris Leonard: Justice Department Official,” *Washington Post*, August 3, 2006, B6; Fred P. Graham, “Head of I.T.T. Denies Link of Suits and Aid to G.O.P.,” *New York Times*, March 16, 1972, 1. On the murder of Fred Hampton, see Jeffrey Haas, *The Assassination of Fred Hampton: How the FBI and the Chicago Police Murdered a Black Panther* (Chicago: Chicago Review Press, 2011); Rod Bush, *We Are Not What We Seem: Black Nationalism and the Class Struggle in the American Century*, rev. ed. (New York: New York University Press, 2000); Ward Churchill and Jim Vander Wall, *Agents of Repression: The FBI’s Secret Wars against the Black Panther Party and the American Indian Movement* (New York: South End Press, 2001). On the Kent State killings, see William W. Scranton et al., *Report of the President’s Commission on Campus Unrest* (Washington, DC: U.S. Government Printing Office, 1970); I. F. Stone, *The Killings at Kent State: How Murder Went Unpunished* (New York: Vintage Books, 2nd printing, 1971) Dean J. Kotlowski, *Nixon’s Civil Rights: Politics, Principle, and Policy* (Cambridge, MA: Harvard University Press, 2002).
 25. Leonard doubled the size of the LEAA’s auditing staff to supervise grant expenditures and the flow of federal funds. To support projects that Leonard determined had the potential to “revolutionize criminal justice,” he established another bureaucratic layer to the national law enforcement apparatus by creating regional offices that gave final approval for anticrime plans. March 31, 1971, memorandum from Trubow to Jerris Leonard, subj.: “Fund Flow and Expenditure Problems,” folder “OLEP (Gen) 1971,” box 38, RLEAA; Robert Smith, “U.S. Crime Agency Is Decentralized” *New York Times*, May 19, 1971, 28; Walter R. Gordon, “Problems Sinking Law Agency,” *Baltimore Sun*, March 29, 1971, A1.
 26. John Herbers, “Senators Seek”; March 13, 1970, memorandum from Norval C. Jespersen to Skoler, subj.: “Policy: Role of LEAA in Operation Settings,” folder “OLEP (Gen) 1970,” box 37, RLEAA; Kenneth Reich, “U.S. Funds Misused in Florida, Audit Charges,” *Los Angeles Times*, June 10, 1971, 28.
 27. A separate bathroom was customary practice for “an executive level three grade earning \$40,000 a year,” a \$2,000 raise over Rogovin’s salary at the agency. “Lush and Plush,” *Washington Post*, October 13, 1972, B10; Cronin et al., *U.S. v. Crime in the Streets*, 92–93.
 28. “Arkansas Studies Crime Funds’ Use,” *New York Times*, January 2, 1972, 63; Kotz and Woodward, “U.S. Adrift in Crime Fight”; “The Nation,” *Los Angeles Times*, July 29, 1971, 2.
 29. “Sarasin Hits Monagan Record,” *Hartford Courant*, August 29, 1972, 11; Sullivan, “Jerris Leonard.”

30. “Planning Assistance: Problems and Implications”; undated letter to Speaker of the House from the Attorney General (likely January 28, 1970), Egil Krogh Collection, box 21, RNPL.
31. Mayors of Flint, Kalamazoo, Urbana, and Madison, among other cities, signed the petition, and Democrats from the Midwest, the Northeast, and the Sun Belt all cosponsored Harke’s amendment, including Senators Alan Bible (Nevada), Howard Cannon (Nevada), Ralph Yarborough (Texas), Joseph Tydings (Maryland), and Birch Bayh (Illinois). John Herbers, “Senators Seek to Divert Anticrime Funds to Cities,” *New York Times*, November 22, 1969, 38; The National Institute of Law Enforcement and Criminal Justice gave Maryland a grant in excess of \$1 million, the bulk of which went to other federal agencies and nearly half of which went to the Army. One such collaboration involved a \$175,000 grant to the Army to develop a homemade-bomb neutralizer. The Army contributed a mere \$30,000 to the project for domestic crime control, but received seven of the eight neutralizers, with the final device going to the Department of Justice. The project was designed to counter what Ralph Miller, the chief of munitions support at the U.S. Army Explosion Ordinance Center, called “the radical threat” by injecting a chemical into a package containing a homemade bomb. Kotz and Woodward, “U.S. Adrift in Crime Fight.”
32. “Planning Assistance: Problems and Implications,” folder “OLEP (Gen) 1970,” box 37, RLEAA; undated memorandum, “How Do We Accomplish Mobilization of All Our Human Resources for an All-Out War on Crime?” folder (n.d. 68–70, “‘Crime’ 3 of 3,” box 24, Anderson Files, RNPL; March 20, 1970, memorandum from Huston to Krogh, folder “Internal Security,” box 14, Krogh Files, RNPL.
33. May 10, 1969, “Program Announcement: Special Grants for Crime Control Projects in Largest Cities,” DOJ, LEAA; LEAA, folder “OJEP (Gen) 1969,” box 37, RLEAA; “E. Large City Special Grants,” n.d., folder “OLEP (Gen) 1969,” box 37, RLEAA; December 14, 1970, memorandum, subj.: “Discretionary Funds Program for FY 1971,” from Velde and Coster to Attorney General, folder “OLEP (Gen) 1971,” box 38, RLEAA.
34. “City Asks U.S. Approval of 6 Anticrime Projects,” *Washington Post*, June 7, 1969, B4; “President Pledges War on D.C. Crime,” *Washington Post*, January 28, 1969, A1.
35. “The Breakdown in law and order may be attributed to wrong-headed public policies,” the House wrote in its Committee Report of the DC Bill (submitted by South Carolina’s John McMillan), implicitly condemning Great Society programs, which seemingly operated under “the notion that sympathy should be shown to bad men” who demonstrated an “innate hostility toward, and

defiance of, the police,” resulting in a “failure on the part of many citizens to discharge their civic responsibilities” that demanded a set of punitive strategies. “D.C. Crime,” in *CQ Almanac* 1967, 23rd ed. (Washington, DC: Congressional Quarterly, 1968), “Statement of the President upon Signing the District of Columbia Crime Bill,” December 27, 1967, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=28644>. The work of James Forman Jr. and Lauren Pearlman provides comprehensive accounts of the politics of crime control in DC. See James Forman Jr., “Racial Critiques of Mass Incarceration: Beyond the New Jim Crow,” *NYU Law Review* 87, no. 1 (2012): 101–146; Lauren Pearlman, *Democracy’s Capital: Local Protest, National Politics, and the Struggle for Civil Rights in Washington, D.C.* (Chapel Hill: University of North Carolina Press, forthcoming).

36. “Remarks of the Attorney General: End-of-the-Year Briefing to RN” (December 1969), box 17, Krogh Files, RNPL; Richard Nixon, State of the Union Address, January 22, 1970, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=2921>; Lyndon Johnson, “Statement of the President upon Signing the District of Columbia Crime Bill,” December 27, 1967, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=28644>; Cronin et al., *U.S. v. Crime in the Streets*, 94–95; June 19, 1970, memorandum from John Dean to Egil Krogh, “Administration Position on Various Crime Bills,” folder “John Dean—Responses to Crime Bill 1970–71,” box 23, Krogh Files, RNPL; “City Asks U.S. Approval of 6 Anticrime Projects,” *Washington Post*, June 7, 1969, B4; “President Pledges War on D.C. Crime,” *Washington Post*, January 28, 1969, A1.
37. The “narcotics addict” category received special attention from members of Nixon’s domestic council, who labored to turn drug abuse into a criminal issue. As Nixon’s chief crime control strategist Bud Krogh asserted: “Probably no more predictable person exists than the addict who must raise money to feed his habit. . . . Only when the addict appears to have ‘graduated’ to crimes of violence can he be subjected to pretrial detention.” June 19, 1970, memorandum from Dean to Krogh. District of Columbia Court Reorganization Act of 1970, Pub. L. 91-358, 84 Stat. 473 (1970); Herbert L. Packer, “A Special Supplement: Nixon’s Crime Program and What It Means,” *New York Review of Books*, October 22, 1970; “City Asks U.S. Approval of 6 Anticrime Projects,” *Washington Post*, June 7, 1969, B4; “T.R.B. Comments: Home-Grown Police State,” *Boston Globe*, August 10, 1969, A6.
38. On the rise and long-term impact of these sentencing measures, within the federal system and beyond, see Alfred Blumstein, Jacqueline Cohen, Susan E. Martin, and Michael H. Tonry, eds., *Research on Sentencing: The Search for Reform*, vol. 1 (Washington, DC: National Academies Press, 1983); Marc

- Mauer, *Race to Incarcerate* (New York: New Press, 2006); Charles J. Ogletree Jr. and Austin Sarat, eds., *Life without Parole: America's New Death Penalty* (New York: New York University Press, 2012); Franklin Zimring, "Sentencing Reform in the United States: Some Sobering Lessons from the 1970s," *Northern Illinois University Law Review* 2 (1981): 1–18; Fauntroy quoted in Terrance Wills, "Policeman against Citizen: 'The Law of the Jungle: No-Knock Bill Stirs Heat from Senate to Pulpit,'" *Globe and Mail*, May 18, 1970, 3; District of Columbia Court Reorganization Act of 1970; Philip Warden, "Crime Bill Seen as U.S. Model," *Chicago Tribune*, July 24, 1970, 5; June 19, 1970, memorandum from Dean to Krogh; Packer, "Special Supplement"; "T.R.B. Comments."
39. Wills, "Policeman against Citizen"; "6 Seized in Yonkers in a Numbers Raid," *New York Times*, February 18, 1970, 35; Heather Thompson, "Why Mass Incarceration Matters: Rethinking, Decline, and Transformation in Postwar American History," *Journal of American History* 97 (2010): 703–758; Julilly Kohler-Hausmann, "'The Attila the Hun Law': New York's Rockefeller Drug Laws and the Making of the Punitive State," *Journal of Social History* 44 (2010): 71–95; Jeffrey Fagan and Martin Guggenheim, "Preventive Detention and the Judicial Prediction of Dangerousness for Juveniles: A Natural Experiment," *Journal of Criminal Law and Criminology* 86 (1996): 415–448; Adam Klein and Benjamin Wittes, "Preventive Detention in American Theory and Practice," *Harvard National Security Journal* 2 (2011): 85–191.
 40. "E. Large City Special Grants," n.d., folder "OLEP (Gen) 1969," box 37, RLEAA; December 14, 1970, memorandum from Velde to Coster, subj.: "Discretionary Funds Program for FY 1971," folder "OLEP (Gen) 1971," box 38, RLEAA.
 41. The decision to focus on street crime and burglary in these smaller cities reflected the sense that robbery occurred more frequently than any other violent crime. N.d. memorandum from Leonard to Ehrlichman, 1971, "High Impact Program" attached to October 5, 1972, memorandum for Bud Krogh from Geoff Shepard, "LEAA High Impact City Program," Krogh Files, RNPL.
 42. Danziger quoted in Cronin et al., *U.S. v. Crime in the Streets*, 97.
 43. Eleanor Chelimsky, *High Impact Anti-Crime Program: National Level Evaluation Final Report*, vol. 2 (Washington, DC: Department of Justice, National Institute of Law Enforcement and Criminal Justice, Law Enforcement Assistance Administration, 1976), 101; Author interview with Ann Goetchus and Carol Kaplan, November 2, 2011. Initially, Atlanta did not make the short list of cities eligible for funds, but Mayor Sam Massell presented a strong appeal to the Justice Department by demonstrating how closely his law enforcement measures aligned with the larger objectives of the War on Crime. F. C. Jordan Jr., The Mitre Corporation, "National Impact Program

- Evaluation: A History of the Cleveland Impact Program” (Washington, DC: U.S. Department of Justice, Law Enforcement Assistance Administration, 1975), xiii; Leonard to Ehrlichman, 1971, “High Impact Program.”
44. N.d. memorandum from Leonard to Ehrlichman, 1971, “High Impact Program”; Chelimsky, *High Impact Anti-Crime Program*, 190–191; Jack Anderson and Les Whitten, “Crime War Lags in Targeted Cities,” *Washington Post*, November 29, 1975, B10. High Impact efforts included police training and tuition incentives, salary increases, and increase in administrative staff. High Impact funds in Atlanta went toward improving police training and education by introducing tuition incentives and psychological testing as a modernization program. To professionalize the force, the federal grants supported a 22 percent increase in patrolmen’s salaries and enabled the Atlanta police chief to hire an administrative assistant and redesign report forms to ease the completion process for policemen. Baltimore also used High Impact funds to focus on police desk work, and employed civilians in order to free officers for street patrol at a cost of nearly half a million dollars. “First Installment,” *Baltimore Sun*, October 27, 1972, A11.
 45. Jordan, “National Impact Program Evaluation,” 50, 60; Chelimsky, *High Impact Anti-Crime Program*, 293.
 46. National Security Center Report quoted in Mitchell C. Lynch, “Federal Law Enforcement Aid,” *Wall Street Journal*, July 7, 1976, 14; Jack Anderson and Les Whitten, “Crime War Lags”; Chelimsky, *High Impact Anti-Crime Program*, chap. 10, Summary; *ibid.*
 47. This was the second and only time the prison population dropped. Between 1940 and 1950, state and federal prison authorities decarcerated by 7,543 inmates before restoring previous levels in the 1950s. Justice Policy Institute Analysis of U.S. Department of Justice Data, “The Punishing Decade: Prison and Jail Estimates at the New Millennium,” May 2000, Justice Policy Institute, available at http://www.justicepolicy.org/images/upload/00-05_rep_punishingdecade_ac.pdf. The federal government had established a tepid approach to the national prison system until the Nixon administration. Before the 1890s, persons convicted on federal charges were confined in state prisons. The federal government created a law enforcement apparatus of its own in the 1920s, via Prohibition and the rise of the FBI in 1924. Under Hoover’s control, as the federal government began investigating crimes previously restricted to local agencies, the three federal prisons operating out of the Department of Justice evolved into the Bureau of Prisons in 1939. Construction on a new federal prison system began, and by the end of the 1940s, thirteen new correctional facilities opened. On the rise of the Department of Justice and the Bureau of Prisons, see Rebecca McLennan, *The Crisis of Imprisonment: Protest,*

- Politics, and the Making of the American Penal State, 1776–1941* (New York: Cambridge University Press, 2008); Lisa McGirr, *The War on Alcohol: Prohibition and the Rise of the American State* (New York: W. W. Norton, 2015); see also Margaret Werner Cahalan, “Historical Corrections Statistics in the United States, 1850–1984,” U.S. Department of Justice, Bureau of Justice Statistics (Washington, DC: U.S. Government Printing Office, 1986), 69.
48. November 13, 1969, memorandum for Attorney General Mitchell from Nixon, folder “Corrections 1 of 3 1970–71,” box 11, Krogh Files, RNPL.
 49. June 2, 1969, letter from John Mitchell to John Ehrlichman, box 46, Clapp Files, RNPL; December 30, 1972, address by Richard W. Velde, before the American Association for the Advancement of Science, box 19, RLEAA; William G. Nagel, “An American Archipelago: The United States Bureau of Prisons,” presented at the luncheon general session, National Institute for Crime and Delinquency; Statler-Hilton Hotel, Boston, June 25, 1974, folder 14, box 78, Noel Sterrett—Issues Office Files, Jimmy Carter Presidential Library (hereafter, JCPL).
 50. House Committee on the Judiciary, *Prison Construction Plans and Policy: Hearings before the Subcommittee on Courts, Civil Liberties, and the Administration of Justice*, 94th Cong., 2nd sess. (July 30, 1975), 103 (Statement of Carlson). The Bureau of Prisons director cited Norval Morris, *The Future of Imprisonment* (Chicago: University of Chicago Press, 1974) and James Q. Wilson, *Thinking about Crime* (New York: Basic Books, 1975) to argue against rehabilitative programs in his testimony.
 51. Carlson, in House Committee on the Judiciary, *Prison Construction Plans and Policy*, 112.
 52. Carlson, *ibid.*, 466.
 53. Fogel, *ibid.*, 77; Carlson, *ibid.*, 101–101; September 17, 1971, memorandum from Egil Krogh to John Ehrlichman re: Corrections, folder “Corrections 1 of 3 1970–71,” box 11, Krogh Collection, RNPL.
 54. Carlson, House Committee on the Judiciary, *Prison Construction Plans and Policy*. The commission estimated that the average daily population in corrections would balloon from 1.3 million in 1965 to some 1.8 million by the mid-1970s. Nicholas deB. Katzenbach et al., *The Challenge of Crime in a Free Society: A Report by the President’s Commission on Law Enforcement and Administration of Justice* (Washington, DC: U.S. Government Printing Office, 1967), 160; Otto Kerner et al., *Report of the National Advisory Commission on Civil Disorders* (New York: Bantam Books, 1968), 392; National Advisory Commission on Criminal Justice Standards and Goals, *Task Force Report on Corrections* (Washington, DC: U.S. Government Printing Office, 1973).
 55. September 17, 1971, memorandum from Egil Krogh to John Ehrlichman Re: Corrections, folder “Corrections 1 of 3 1970–71,” box 11, Krogh Collection,

RNPL. The average sentence in 1945 was 16.5 months; by 1965 it had jumped to nearly three years, and by 1975 incarcerated Americans served an average of just under four years. December 30, 1972, address by Velde; February 8, 1978, open letter to Attorney General Griffin Bell from Milton G. Rector, President of National Council on Crime and Delinquency, folder 16, box 11, Gutierrez Files, JCPL; “Functions of the National Clearinghouse for Correctional Programming and Architecture,” box 38, Office of Criminal Justice Administration 1972, RLEAA; “Long Range Master Plan”; William G. Nagel, “On Behalf of a Moratorium on Prison Construction,” *Crime and Delinquency* 23: 154 (1977): 154–171; Cahalan, “Historical Corrections Statistics in the United States, 1850–1984,” 72.

56. The data on the number of Latino inmates in the federal and state prison system remain incomplete. The Bureau of Justice Statistics, which itself formed in 1980 and has since set the standard for correctional counts, did not consistently account for Latino prisoners until the early 1990s. Most of the statistics available from prior to this period use the categories of black, white, and “other races” to reflect racial compositions. Since Latino inmates represented more than the 1 percent to 3 percent of those attributed to the latter category, we can assume they were counted as either black or white. N.d. memorandum from Pollner to Mitchell “Re: Anticipated Criminal Activity Facing New Administration and Proposed Action to Combat Same,” 39, Anderson Files, box 24, RNPL. December 6, 1971, address by AG Mitchell, “New Doors, Not Old Walls,” at the National Conference on Corrections, Williamsburg, VA, 1971, Krogh Files, box 15, RNPL.
57. Key discussions of the prisoners’ rights movement in the 1960s and 1970s can be found in Dan Berger, *Captive Nation: Black Prison Organizing in the Civil Rights Era* (Chapel Hill: University of North Carolina Press, 2014); Robert Chase, “We Are Not Slaves: Rethinking the Rise of Carceral States through the Lens of the Prisoners Rights Movement,” *Journal of American History* 102 (June 2015): 73–86; and Robert Chase and Norwood Andrews, eds., *Sunbelt Prisons and Carceral States: Incarceration, Immigration Detention/Deportation, and Resistance* (Chapel Hill: University of North Carolina Press, forthcoming); Garrett Felber, “Those Who Know Don’t Say: The Nation of Islam and the Forgotten Politics of the Civil Rights Era” (PhD diss., University of Michigan, 2016); and Heather Thompson, *Blood in the Water: The Attica Uprising of 1971 and Its Legacy* (New York: Pantheon, 2016). For narrative accounts of the prison uprisings during this period, see Charles E. Silberman, *Criminal Violence, Criminal Justice* (New York: Vintage, 1978); Bert Useem and Peter Kimball, *States of Siege: U.S. Prison Riots, 1971–1986* (New York: Oxford University Press, 1989). Carlson in “Prison Construction Plans and Policy” Hearings,

- 107; memorandum from Pollner to Mitchell, “Re: Anticipated”; November 13, 1969, “Statement by the President,” box 30, Anderson Files, RNPL.
58. Lawrence Meyer, “Prison Plans to Skirt Rehabilitation,” in Appendix to “Prison Construction Plans and Policy” Hearings, 296–304, 298.
59. Quoted in Bob Kuttner, “Virginia Prison Tests Behavior Modification,” *Washington Post*, August 1, 1974, B1.
60. Meyer, 297, “Prison Construction Plans and Policy” Hearings, 300.
61. Mitchell, “New Doors, Not Old Walls.”
62. Doyle quoted in opening remarks of Chairman Robert W. Kastenmeier in “Prison Construction Plans and Policy” Hearings, 2; Policy Statement, Board of Directors, National Council on Crime and Delinquency, “The Nondangerous Offender Should Not Be Imprisoned,” in “Prison Construction Plans and Policy” Hearings, Appendix: 380–384. Liberal criminologists in the 1970s joined the growing chorus challenging the construction of new prisons. See Erik Olin Wright, ed., *The Politics of Punishment* (New York: Harper and Row, 1973); Alvin J. Bronstein, “Reform without Change: The Future of Prisoners’ Rights,” *Civil Liberties Review* 4, no. 3 (September–October 1977); Andrew Von Hirsch, *Doing Justice: The Choice of Punishments: Report of the Committee for the Study of Incarceration* (New York: Hill and Wang, 1976); Twentieth Century Fund, *Fair and Certain Punishment: Report of the Twentieth Century Fund Task Force on Criminal Sentencing* (New York: McGraw-Hill, 1976).
63. Omnibus Crime Control and Safe Streets Act of 1970, Pub. L. 91-644, 84 Stat. 1880 (1971); December 30, 1972, Address by Velde; “Prison Construction Plans and Policy” Hearings, 301.
64. April 20, 1970, memorandum to Krogh from Velde, folder “Prisoner Rehabilitation,” box 18, Krogh Files, RNPL. Law Enforcement Assistance Administration, U.S. Department of Justice, *Sage Streets: The LEAA Program at Work* (Washington, DC: U.S. Government Printing Office, 1971); Weaver, “Race and Crime Policy,” 248; December 30, 1972, address by Velde; n.d. memorandum from Dave Miller to Bud Krogh, subj.: “LEAA Region 6: Meetings with Ed LaPedis and Staff,” February 18, 1970, box 25, Krogh Files, RNPL; Cronin et al., *U.S. v. Crime in the Streets*, 87; September 17, 1971, memorandum from Egil Krogh to John Ehrlichman Re: Corrections, folder “Corrections 1 of 3 1970–71,” box 11, Krogh Collection, RNPL.
65. Fogel in “Prison Construction Plans and Policy” Hearings, 77; “Magnitude of the Wave of Jail and Prison Construction in the United States during the 1970s,” National Moratorium on Prison Construction, January 1977, folder 1, box 11, Gutierrez Files, JCPL. “Strategies for Controlling Crime: A Position Paper,” prepared by the Administration of Justice Division, National Urban

- League, March 1978, folder 8, box 12, Gutierrez Files, JCPL; Nagel, "On Behalf of a Moratorium," 162.
66. Nagel, "On Behalf of a Moratorium," 159.
 67. Nagel, "An American Archipelago," as appendix to "Prison Construction Plans and Policy" Hearings, 399, "Magnitude of the Wave."
 68. There has yet to be established any direct correlation between incarceration and crime, as leading sociologists have consistently demonstrated in recent years. See especially Bruce Western, James Austin, and Tony Fabelo, "The Diminishing Returns of Increased Incarceration: A Blueprint to Improve Public Safety and Reduce Costs" (Washington, DC: JFA Institute, 2004); Robert H. Defina and Thomas M. Arvanites, "The Weak Effect of Imprisonment on Crime: 1971–1998," *Social Science Quarterly* 53 (2002): 407–420; Jenni Gainsborough and Marc Mauer, "Diminishing Returns: Crime and Incarceration in the 1990s" (Washington, DC: The Sentencing Project, 2000); Dan Kahan, "Social Influence, Social Meaning, and Deterrence," *Virginia Law Review* 83 (1997): 349–395; Ryan S. King, Marc Mauer, and Malcolm C. Young, "Incarceration and Crime: A Complex Relationship" (Washington, DC: The Sentencing Project, 2005); James P. Lynch and William J. Sabol, "Assessing the Effects of Mass Incarceration on Informal Social Control in Communities," *Criminology and Public Policy* 3 (2004): 267–294. Nagel, "On Behalf of a Moratorium," 159.
 69. The Congressional Research Service argued that unemployment rates "could describe 82% of the year-to-year variation in new admissions to prisons." "Prison Population and Costs—Illustrative Projections to 1980," Library of Congress Congressional Research Service," in Appendix to "Prison Construction Plans and Policy" Hearings, 430–469, 435; Hearings, 8.
 70. "Magnitude of the Wave."
 71. "Prison Construction Plans and Policy" Hearings, 297, 301.
 72. Richard Nixon, "Annual Address of the State of the Union Delivered to a Joint Session of the Congress, 1971," American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=3110>.
 73. Nixon also transferred many programs administered by the OEO to other federal departments. In one of his most controversial appointments, Nixon positioned Howard Phillips to succeed Donald Rumsfeld as director of the OEO and ordered Phillips to withhold community action funds in anticipation of the agency's dissolution. However, a federal district court forced the unconfirmed Phillips to resign and ruled that the president could not withhold funds that had been allocated by Congress. Even though the court ruling kept the agency alive, Ford officially closed the office in 1975 and replaced it with the Civil Services Administration. Bill Hazlett, "Concern over Crime Causing Widening Crack in Fiscal Dam," *Los Angeles Times*, April 3, 1973, E1; "The

Fading of the New Federalism,” *Washington Post*, August 13, 1973, A22; Lou Cannon and David S. Broder, “Nixon’s ‘New Federalism’ Struggles to Prove Itself,” *Washington Post*, June 17, 1973, A1.

5. THE BATTLEFIELDS OF THE CRIME WAR

1. January 16, 1970, memorandum from Daniel Patrick Moynihan to the President, folder “Black Vote (72),” box 10, Egil Krogh Files, Richard Nixon Presidential Library (hereafter, RNPL).
2. Edward C. Banfield, “Why Government Cannot Solve the Urban Problem,” *Daedalus* 97 (1968): 1231–1241, 1232; Joel Lieske, “Book Review: *The Unheavenly City*,” *American Journal of Sociology* 80 (1974): 765–767, 765; Richard Bernstein, “E. C. Banfield, Maverick on Urban Policy Issues, Dies,” *New York Times*, October 8, 1999, C21; Edward C. Banfield, *The Unheavenly City* (Boston: Little Brown, 1970) and *The Unheavenly City Revisited* (1974; repr. Prospect Heights, IL: Waveland Press), 281.
3. George F. Will, “A Gold Medal Thinker,” *Washington Post*, March 3, 2012, A17.
4. Wilson’s doctoral thesis argued that while the constraints of municipal government limited black political leaders from accomplishing many of their objectives, formal political participation was necessary to build a black middle class. See James Q. Wilson, “Negro Leaders in Chicago” (PhD diss., University of Chicago, 1959); James Q. Wilson, *Negro Politics: The Search for Leadership* (New York: Free Press, 1960); Edward C. Banfield and James Q. Wilson, *City Politics* (New York: Vintage, 1963), 333, 348; Banfield quoted in Megan French-Marcelin, “Community Underdevelopment: Federal Aid and the Rise of Privatization in New Orleans” (PhD diss., Columbia University, 2014), 40–41.
5. James Q. Wilson, *Varieties of Police Behavior* (Cambridge, MA: Harvard University Press, 1968), 299, 16 (emphasis in original), 3.
6. The Executive Directors of the International Association of the Chiefs of Police, the Vera Institute, and the International Sheriffs’ Association all sat on the board of the Police Foundation in 1970. Anne Hebal, “Foundation to Upgrade Police Units,” *Washington Post*, September 15, 1970, C2.
7. The New York City Police Department was modeled after the Metropolitan Police Service in London, instituted in 1829. Patrick V. Murphy, “The Development of Urban Police,” *Current History* 70 (1976): 245–248.
8. Murphy quoted in David Burnham, “Neighborhood Police,” *New York Times*, December 31, 1970, 7; Douglas Robinson, “Murphy Plans Innovations for Police,” *New York Times*, September 18, 1970, 1; Rudy Johnson, “Murphy to Set up Area ‘Police Chiefs,’” *New York Times*, November 16, 1970, 14.

9. Atlanta also had a “decoy squad” which led to the death of seven people; “Solution to Crime Is Police Professionalism—Murphy,” *Atlanta Daily World*, May 3, 1974, 1.
10. Murphy quoted in Robinson, “Murphy Plans Innovations”; C. Gerald Fraser, “Police to Expand Two-Man Plainclothes Patrols,” *New York Times*, March 4, 1971, 39.
11. Murphy quoted in Fraser, “Police to Expand”; Joyce quoted in Lawrence Van Gelder, “New Crime Patrol Walks in Shadows,” *New York Times*, November 13, 1970, 38; “Police Kill Man in Queens Holdup,” *New York Times*, November 19, 1970, 37.
12. Officer quoted in Eric Pace, “Street Crime Cut by Disguise Artists,” *New York Times*, September 3, 1972, 24.
13. Fraser, “Police to Expand”; Robert D. McFadden, “‘Defensive’ Police Shots Kill a Girl, 16,” *New York Times*, January 28, 1973.
14. Pace, “Street Crime Cut”; Murphy quoted in “Solution to Crime Is Police”; Robinson, “Murphy Plans Innovations.”
15. Law Enforcement Assistance Administration, 3rd Annual Report of the Law Enforcement Assistance Administration Fiscal Year 1971 (Washington, DC: U.S. Government Printing Office, 1972), 172–173; Austin McCoy, “Left City Politics: Progressive Responses to Economic Crisis in the Midwest, 1967–1987” (PhD diss., University of Michigan, 2016).
16. Nichols refused to disclose specific numbers or information about the unit because he believed exposure would lessen the program’s “psychological impact” by depriving it of “the major effect, which is a deterrent effect.” House Select Committee on Crime, *Street Crime in America: The Police Response: Hearings before the House Select Committee on Crime*, 93rd Cong., 1st sess. (April 12, 1967), 385 (Statement of John F. Nichols); Kathleen Schultz and Ann Bruetsch, *Detroit under STRESS* (Detroit: From the Ground Up Organization, 1973), Labadie Special Collections, University of Michigan; Frances Ward, “Crime in the Streets: Detroit Solution Provokes Controversy,” *Los Angeles Times*, January 22, 1973, A1. See Heather Ann Thompson, *Whose Detroit?: Politics, Labor, and Race in a Modern American City* (Ithaca, NY: Cornell University Press, 2001), chaps. 4 and 6, for a discussion of STRESS and the social movement to abolish it. *Street Crime in America Hearings*, 382, 385, 408 (Statement of Nichols); *Ibid.*, 392 (Statement of James Bannon); Ward, “Crime in the Streets”; *Street Crime in America Hearings*, 392 (Statement of James Bannon).
17. “Detroit (Mich) Police Department Analysis of STRESS, Submitted by John F. Nichols, Commissioner,” in *Street Crime in America Hearings*, 418.
18. Thompson explores these cases in greater detail in *Whose Detroit?*; see chap. 6; “Detroit (Mich) Police Department Analysis of STRESS,” 418; Michael Graham, “How the City of Detroit Tries to Make Its Streets Safe,” *Chicago*

- Tribune*, December 26, 1971, A8; Ward, “Crime in the Streets”; “Detroit (Mich) Police Department Analysis”; *Street Crime in America Hearings*, 394, 387 (Statements of John P. Ricci and Nichols); *Ibid.*, 392 (Statement of Bannon).
19. Robert L. Pisor, “Detroit Policeman Is Charged with Murder in 6th Killing,” *Washington Post*, March 23, 1973, A3; Peterson quoted in Michael Graham, “How the City of Detroit Tries to Make Its Streets Safe,” *Chicago Tribune*, December 26, 1971, A8.
 20. “Detroit Policemen Accused in Slaying,” *New York Times*, March 23, 1973, 34; “Officer with Busy Gun Held in Killing,” *New Journal and Guide*, March 31, 1973, 1.
 21. *Street Crime in America Hearings*, 387 (Statement of Nichols); Jenkins quoted in Agis Salpukas, “Black Police Ask Detroit End Unit,” *New York Times*, March 11, 1972, 14; Henderson quoted in Thompson, *Whose Detroit?*, 99; Agis Salpukas, “3 Detroit Policemen Charged in Shooting,” *New York Times*, March 25, 1972, 62.
 22. Agis Salpukas, “Detroit Altering Decoy Operation,” *New York Times*, March 18, 1972, 28; Ward, “Crime in the Streets”; “Detroit Police Mistake Deputies for Gamblers,” *Globe and Mail*, March 10, 1972, 3; Agis Salpukas, “A Cops ‘n’ Cops Story,” *New York Times*, March 12, 1972, E2.
 23. *Street Crime in America Hearings*, 390–391 (Statements of Nichols and Bannon).
 24. Jerry M. Flint, “Detroit Manhunt Stirs Controversy,” *New York Times*, January 8, 1973, 26; “Another STRESS Cop Dies, 1 Critical,” *Chicago Daily Defender*, December 28, 1972, 5; Nichols quoted in “Police Angered by STRESS Killing,” *Baltimore Afro-American*, January 6, 1973, 1; Brown quoted in Thompson, *Whose Detroit?*, 147.
 25. *Street Crime in America Hearings*, 404 (Statement of Ronald Martin); Flint, “Detroit Manhunt Stirs”; William Richards, “Police Search Tactics Enrage Blacks in Detroit,” *Washington Post*, January 12, 1973, A3; Pastor Leroy Cannon quoting officers in “Angry Crowd Protests Manhunt,” *Baltimore Afro-American*, January 20, 1974, 3.
 26. Richards, “Police Search Tactics Enrage.”
 27. Petition quoted in Ward, “Crime in the Streets”; “Detroit Police Chief Defends STRESS Unit,” *Baltimore Afro-American*, April 28, 1973, 3.
 28. *Street Crime in America Hearings*, 386, 410 (Statement of Nichols); *ibid.*
 29. Letter to *Detroit News* quoted in Thompson, *Whose Detroit?*, 100; Letter to Nichols quoted in “Detroit (Mich) Police Department Analysis of STRESS, submitted by John F. Nichols, Commissioner,” 421; *Street Crime in America Hearings*, 386 (Statement of Nichols).
 30. Bannon quoted in Ward, “Crime in the Streets”; William K. Stevens, “Tactics of an Elite Police Unit Election Issue in Detroit,” *New York Times*, June 11, 1973, 30.

31. Stevens quoted in Stevens, "Tactics of an Elite"; Flint, "Detroit Manhunt Stirs"; Ward, "Crime in the Streets."
32. Spokesman quoted in Len Lear, "Anti-Crime Team (ACT) Lowers Crime Rates in North and West Phila.," *Philadelphia Tribune*, July 7, 1973, 1; "U.S. to Probe Police 'Breach,'" *Baltimore Sun*, August 7, 1974, C22; *Street Crime in America Hearings*, 387; "Mayor Young Kills STRESS in Detroit," *Baltimore Afro-American*, March 16, 1974, 3; Lear, "Anti-Crime Team."
33. "Mayor Young Kills STRESS"; "Detroit's STRESS Unit Abolished by Mayor Young," *Philadelphia Tribune*, March 19, 1974, 5.
34. Reginald Stuart, "Detroit Recalling Police in Wave of Youth Crime," *New York Times*, August 17, 1976, 1; James Campbell, "Detroit Street Crime Up: Mayor Imposes Curfew to Curb Teen Crime," *Baltimore Afro-American*, July 9, 1983, 1.
35. *Street Crime in America Hearings*, 404 (Statement of Congressman Sam Steiger).
36. Johnson officials rejected Edward M. Kennedy's proposal for a "West Point" academy for police officers for this reason in 1968. January 5, 1968, memorandum from Joe Califano to the President, folder "1968 Follow Up," box 2, Legislative Background Files Safe Streets Act of 1968, Lyndon Baines Johnson Presidential Library.
37. "The Federal Role in Crime Prevention," Republican Committee on Planning and Research—Task Force on Crime, box 24, Martin Anderson Files, RNPL.
38. June 15, 1971, Policy Statement, folder "Special Action Office for Drug Abuse Prevention," box 31, Egil Krogh Files, RNPL.
39. Ambrose had previously supervised the Secret Service and the Bureaus of Narcotics and Customs at the Treasury Department in the late 1950s, and the anti-narcotics trafficking measures he instituted at the borders rendered him an apt man for the job. Christian Parenti, *Lockdown America: Police and Prisons in the Age of Crisis* (New York: Verso, 2000), 13; Radley Balko, *Rise of the Warrior Cop: The Militarization of America's Police Forces* (New York: Public Affairs, 2013), 105; June 15, 1971, Policy Statement; Robert M. Smiths, "New Drug Agency to Fight Pushers on Lower Levels," *New York Times* January 19, 1972, 1; Ambrose quoted in Andrew H. Malcolm, "Violent Drug Raids against the Innocent Found Widespread," *New York Times*, June 25, 1973, 1.
40. Senate Select Committee, *Final Report of the Select Committee to Study Governmental Operations with Respect to Intelligence Activities: Supplementary Staff Reports on Intelligence Activities and the Rights of Americans*, Book 3, 94th Cong., 2nd sess., S. Rep. No. 94-755 (April 23, 1976), 5; memorandum from G. C. Moore to W. C. Sullivan, February 29, 1968, quoted in *Final Report of the Select Committee to Study Governmental Operations with Respect to Intelligence Activities*, 3–4.
41. Initially, COINTELPRO-BLACK HATE directed its efforts at Martin Luther King's Southern Christian Leadership Conference, the Student Nonviolent

- Coordinating Committee, the Nation of Islam, and the Revolutionary Action Movement; December 15, 1969, memorandum from San Diego Field Office to FBI Headquarters, in *Final Report of the Select Committee*, 221–222; Balko, *Rise of the Warrior Cop*, 76. See also Roy Wilkins and Ramsey Clark, *Search and Destroy: A Report by the Commission on Inquiry into the Black Panthers and Police* (Washington, DC: Metropolitan Applied Research Center, 1973) for a detailed discussion of COINTELPRO activities leading to the murder of Hampton and Clark.
42. December 1, 1969, memorandum, Los Angeles Field Office to FBI Headquarters, in *Final Report of the Select Committee*, 222; Hoover quoted in Huey P. Newton, “War against the Panthers: A Study of Repression in America” (PhD diss., University of California, Santa Cruz, 1980), 108–109; Hoover quoted in Elaine Brown, *A Taste of Power: A Black Woman’s Story* (New York: Anchor Books, 1993), 211.
 43. Parenti, *Lockdown America*, 22; Balko, *Rise of the Warrior Cop*, 79, 132; Dial Torgerson, “Police Seize Panther Fortress in 4-Hour Gunfight, Arrest 13,” *Los Angeles Times*, December 9, 1969, 1.
 44. Parenti, *Lockdown America*, 12.
 45. Nixon quoted in James Markham “President Calls for ‘Total War’ on U.S. Addiction,” *New York Times*, March 21, 1972, 1; Malcolm, “Violent Drug Raids,” 1; Balko, *Rise of the Warrior Cop*, 121, 119.
 46. “Police Drug Task Force Activated,” *Los Angeles Sentinel*, October 5, 1972, C15; Quotes in Malcolm, “Violent Drug Raids.”
 47. G. R. Newman, “Sting Operations,” Community Oriented Policy Services, *Problem Oriented Guide for Police Response Guides Series*, U.S. Department of Justice No. 6, 2007, 1.
 48. Klose and Shaffer, “New Chapter.”
 49. The warehouse was located at 2254 25th Place, NE. Ruth Jenkins, “The Sting II: ‘Got Ya Again’ Police Trick Gets ‘Fencers,’” *Baltimore Afro-American*, July 17, 1976, 15; Ben A. Franklin, “Police ‘Part’ Is a Trap for 60 Thieves,” *New York Times*, March 8, 1976, 18; Ron Shaffer, “Business Was Brisk: ‘The Italian Connection’ Worked Well for Police Fences,” *Washington Post*, March 2, 1976, A1.
 50. Ron Shaffer and Alfred E. Lewis, “Police Fencing Ring Works after Couple of False Starts,” *Washington Post*, March 2, 1976, B1. “Bonano” quoted in Rufus King, “Looking for the Lost Mafia,” *Harpers*, January 1, 1977, 68.
 51. “Detective quoted in Ben A. Franklin, “Police ‘Part’ Is a Trap”; “Larocca” quoted in “D.C. Police Stage Dragnet,” *Human Events*, March 13, 1976, 5; Klose and Shaffer, “New Chapter”; Sally Quinn, “Mustard, Tabasco, Easy on the Hamburger: A Touch of Tabasco with a Sting,” *Washington Post*, March 5, 1976, B1.
 52. Klose and Shaffer, “New Chapter”; Quinn, “Mustard, Tabasco, Easy on the Hamburger.”

53. “Corleone” quoted in Ron Shaffer, “‘Bless You, My Son,’ ‘Don’ Told Suspects,” *Washington Post*, March 5, 1976, C1; “D.C. Police Stage Dragnet”; Quinn, “Mustard, Tabasco, Easy on the Hamburger”; Klose and Shaffer, “New Chapter.”
54. Lill quoted in Shaffer, “Business Was Brisk”; Sanford Ungar, “Tempting the Criminal,” *Washington Post*, December 26, 1976, 79; Jenkins, “Sting II.”
55. Silbert quoted in Klose and Shaffer, “New Chapter”; Jenkins, “Sting II”; Velde quoted in Klose and Shaffer, “New Chapter.”
56. Kevin Klose and Ron Shaffer, *Surprise! Surprise! How the Lawmen Conned the Thieves* (New York: Viking, 1977); Klose and Shaffer, “New Chapter in Crime War,” *Washington Post*, July 8, 1976, A1; Velde quoted in Ungar, “Tempting the Criminal”; Jeff Prugh, “Police ‘Fences’ Buy 1.5 Million in Stolen Goods,” *Los Angeles Times*, October 6, 1976, A7; “Federal Funds Used Break up Fencing Operation,” *Christian Science Monitor*, October 21, 1976, 14.
57. Sandy Banisky, “‘Bear Trap II’ Snares 47 in Stolen-Goods Ruse,” *Baltimore Sun*, November 27, 1979, A1; “‘Sting’ Operation Thrives in Eight Months with Aid of Thieves, Burglars,” *New Journal and Guide*, August 11, 1978, 11; “100 Seized, More Arrests Expected in ‘Operation Sting’ in Nashville,” *New York Times*, November 10, 1977, 33.
58. “‘Sting’ Operation Thrives.”
59. “Crime Control and Law Enforcement: Political Position for 1970 Elections,” n.d., box 25, Krogh Files, RNPL.
60. *Final Report of the Select Committee*, 188; Balko, *Rise of the Warrior Cop*, 100.

6. JUVENILE INJUSTICE

1. The original name for the CRASH unit was TRASH (for “Total Resources Against Street Hoodlums). Sanchez quoted in Barry P. Grier, “‘Death Envelope’ Sparks TRASH Program,” *Los Angeles Sentinel*, December 6, 1973, A3; Nancy Boyarsky, “Justice and the 10 O’Clock Curfew,” *Los Angeles Times*, January 26, 1975, E1; Committee on Education and Labor, *Hearings before the Subcommittee on Equal Opportunities on Juvenile Justice and Delinquency Prevention and Runaway Youth*, 93rd Cong., 2nd sess. (March 29, April 21, May 1, 2, 8, and 21, 1974), 22 (Statement of Los Angeles Police Chief Ed Davis).
2. Boyarsky, “Justice and the 10 O’Clock Curfew.”
3. Ibid.
4. A special amendment to the 1974 act strengthened the influence of the federal government and private consultants at all levels of the prison system. The legislation created a National Institute of Corrections, which brought together an advisory board from the spectrum of federal law enforcement and criminal justice agencies and private-sector groups to set priorities within carceral institutions and award contracts to firms to implement those priorities. Designed

to operate as a small consultant group appointed by the attorney general and removed from public accountability in the Bureau of Prisons, the institute served as an information clearinghouse and trained law enforcement and social service personnel. In order to equip penal authorities with stronger tools to manage unprecedented numbers of inmates, the institute supported research on a range of pressing issues, including correctional security, classification systems, and gang control programs. Along with the Office of Juvenile Delinquency Prevention also created by the 1974 Act, the National Institute of Corrections has endured as a legacy of the punitive reforms of this period. “Juvenile Delinquency,” *CQ Almanac*, 30th ed., 1974, 278–282, available at <http://library.cqpress.com/cqalmanac/cqal74-1224674>.

5. Juvenile Justice and Delinquency Prevention Act of 1974, Pub. L. No. 93-415, 88 Stat. 1109 (1974), 9–10. This amounts to roughly \$850 million in today’s dollars. Beth Lynch, *Dollars and Sense of Justice*; “The Justice Department’s Fight against Youth Crime: A Review of the Office of Juvenile Justice and Delinquency Prevention of the Law Enforcement Assistance Administration,” prepared by Robert W. Woodson, Consultant to the House Subcommittee on Crime, House Subcommittee on Crime of the Committee on the Judiciary, 95th Cong., 2nd sess. (December 1978), 3; Senate Committee on the Judiciary, *Ford Administration Stifles Juvenile Justice Program: Hearing before the Subcommittee to Investigate Juvenile Delinquency*, 94th Cong., 1st sess. (April 29, 1975), 95.
6. “The Justice Department’s Fight against Youth Crime,” 3; Joseph G. Weis and John Sederstrom, “The Prevention of Serious Delinquency: What to Do?” (Washington, DC: U.S. Department of Justice, Office of Juvenile Justice and Delinquency Prevention, National Institute for Juvenile Justice and Delinquency Prevention, 1982), 2. The terms “hard core delinquent” and “acting out youth” are from “Rural Programs,” prepared for the Office of Juvenile Justice and Delinquency Prevention, Law Enforcement Assistance Administration, Department of Justice, May 1979, 9. Health, Education, and Welfare funded 90 percent of the cost for special programs and facilities for runaways. Steven Nicholas, Associate Director of Focus Runaway House in Las Vegas in House Committee on Education and Labor, *Juvenile Delinquency Prevention and Runaway Youth Hearings before the Subcommittee on Equal Opportunities*, 93rd Cong., 2nd sess., held in Los Angeles, March 29; Washington, DC, April 21, May 1, 2, 8, and 21, 1974, 272.
7. Matthew Lassiter has powerfully demonstrated the ways in which state institutions and politicians successfully “insulated most white youth from the carceral state” by positioning white youth, suburban middle-class white youth in particular, as “innocent victims” who must be shielded from criminal laws.

- See “Impossible Criminals: The Suburban Imperatives of America’s War on Drugs,” *Journal of American History* 102 (June 2015): 126–140.
8. Juvenile Justice and Delinquency Prevention Act of 1974.
 9. The Department of Labor defined “disadvantaged” as “those on public assistance and those whose family income levels are below the poverty guidelines established under criteria issued by the Office of Management and Budget.” April 8, 1976, “Summer Youth Employment Programs Fact Sheet,” Gerald Ford Presidential Library (hereafter, GFPL), Richard Parsons Collection, box 17, “Summer Jobs for Urban Youth”; *ibid.*; National Advisory Commission on Criminal Justice Standards and Goals, “Report of the Task Force of Juvenile Justice and Delinquency Prevention” (Washington, DC: U.S. Government Printing Office, 1976), 23.
 10. In 1974, juveniles accounted for one third of all felony arrests nationwide and almost 50 percent of arrests in cities. Moreover, police departments with at least seventy-five officers were required to establish a juvenile investigation unit as part of the state-level criminal justice planning agency. National Advisory Commission on Criminal Justice Standards and Goals, “Report of the Task Force of Juvenile Justice and Delinquency Prevention” (Washington, DC: U.S. Government Printing Office, 1976), 1; Federal Bureau of Investigation, *Uniform Crime Reports, 1974* (Washington, DC: U.S. Government Printing Office, 1975); Larry Carson, “An Ever Costlier Battle against Juvenile Crime,” *Baltimore Sun*, September 14, 1975, K2; Senate Committee on the Judiciary, *Ford Administration Stifles Juvenile Justice Program*, 2; Menlo Park Police Chief Victor I. Cizancas quoted in Bill Hazlett, “Police Urged to Place More Emphasis on ‘People Problems,’” *Los Angeles Times*, October 11, 1973, OC1; Paul A. Strasburg, “Recent National Trends in Serious Juvenile Crime,” in *Violent Juvenile Offenders: An Anthology*, ed. Robert A. Mathias et al. (San Francisco: National Council on Crime and Delinquency, 1984), 9.
 11. May 15, 1975, memorandum to Jonathan Rose, Douglas Marvin, Jack Fuller from Malcolm Barr, Director Office of Public Relations, subj.: “Draft Papers for Consideration in Preparation of the Presidential Crime Message,” GFPL, Parsons Collection, box 3, “Crime Message of 6-19-75—Action Memoranda May 1–8 1975”; National Advisory Commission on Criminal Justice Standards and Goals, “Report of the Task Force on Juvenile Justice and Delinquency Prevention” (Washington, DC: U.S. Government Printing Office, 1976), 4.
 12. As measured by the FBI’s crime index, large cities witnessed a 12 percent crime increase in 1974, while suburban and rural areas reported a 20 percent crime increase that year. Federal Bureau of Investigation, *Uniform Crime Reports, 1974* (Washington, DC: U.S. Government Printing Office, 1975), sec. 2, “Crime and the Offender.”

13. Marvin Wolfgang, Robert M. Figlio, and Thorsten Sellin, *Delinquency in a Birth Cohort* (Chicago: University of Chicago Press, 1972), 22; Marvin E. Wolfgang, University of Pennsylvania, “Youth and Violence,” HEW Report (Washington, DC: U.S. Government Printing Office, 1970).
14. In addition to the work of Moynihan and James Q. Wilson, other influential works that saw delinquency and black crime in this fatalistic view and that strongly influenced national policymakers and officials included Walter Miller, *Violence by Youth Gangs and Youth Groups as a Crime Problem in Major American Cities* (Washington, DC: U.S. Department of Justice, Office of Juvenile Justice and Delinquency Prevention, 1975) and Wolfgang et al., *Delinquency in a Birth Cohort*. The RAND Corporation in California and the National Institute of Law Enforcement and Criminal Justice also contributed a number of influential reports on black juvenile delinquency and violence. For a historical perspective on this problem, see “Fortress California,” chap. 2 in Donna Murch, *Living for the City: Migration, Education, and the Rise of the Black Panther Party in Oakland, California* (Chapel Hill: University of North Carolina Press, 2010); Marvin E. Wolfgang, “Seriousness of Crime and a Policy of Juvenile Justice,” in *Delinquency, Crime, and Society*, ed. James F. Short (Chicago: University of Chicago Press, 1976), 273; Senate Committee on the Judiciary, *Implementation of the Juvenile Justice and Delinquency Prevention Act of 1974 Hearings before the Subcommittee on Juvenile Delinquency*, 95th Cong., 1st sess. (September 27, 1977), 12 (Statement of Charles Work); Wolfgang, “Seriousness of Crime,” 22.
15. Wolfgang, “Seriousness of Crime.”
16. Juvenile Justice and Delinquency Prevention Act of 1974.
17. Charles Work in March 29, 1974, Hearings.
18. Wolfgang, “Seriousness of Crime”; Bayh in Senate Committee on the Judiciary, *Ford Administration Stifles Juvenile Justice Program*, 117; *Implementation of the Juvenile Justice and Delinquency Prevention Act Hearings*; House Committee on Education and Labor, *Juvenile Delinquency Prevention and Runaway Youth Hearings before the Subcommittee on Equal Opportunities*, 93rd Cong., 2nd sess., held in Los Angeles, March 29; Washington, DC, April 21, May 1, 2, 8, and 21, 1974.
19. “Juvenile Justice and Delinquency Prevention and Runaway Youth,” 99 (Statement of Kirtkpatrick).
20. “Message to Congress: Johnson on Children and Youth,” in *Congressional Quarterly Almanac* 1967, 23rd ed., 20-54-A-20-58-A (Washington, DC: Congressional Quarterly, 1968).
21. “Juvenile Delinquency.”
22. By serving on the House Select Committee, Chisholm hoped to “protect the most powerless and helpless in this entire situation, the juveniles who have

been just cast aside at the bottom of everybody's priorities because they are not a real power group in the sense of the word to be reckoned with in our country in terms of money and grants." In Hearings before the Subcommittee on Equal Opportunities of the Committee on Education and Labor, House of Representatives, 93rd Cong., 2nd sess., on HR 6265 and HR 9298, held in Los Angeles, March 29, and Washington, DC, April 21, May 1, 2, 8, and 21, 1974, 434; Steiger quoted *ibid.*

23. On July 1, an overwhelming majority (329 to 20) approved the bill. Albert H. Quie, the Republican from Minnesota, argued that "juvenile justice and delinquency prevention programs are not separate entities and should not be treated separately," and introduced an amendment that shifted responsibility to the LEAA from HEW. The House rejected the transfer, with only 114 Republicans and thirty Democrats supporting the measure. "Juvenile Delinquency," *Congressional Quarterly Almanac 1974* (Washington, DC: Congressional Quarterly, 1975), 278–282.
24. *Implementation of the JJDPA Hearings*, September 28, 1977, 68, 69 (Statement of Robin S.); *ibid.*, 70, 71 (Statement of Jeff M.).
25. *Implementation of the JJDPA Hearings*, 69 (Statement of Robin S.); Senate Committee on the Judiciary, *Ford Administration Stifles Juvenile Justice Program*, 27 (Statement of Bayh in Exhibit No. 3).
26. Daniel D. Smith, Associate Director, National Center for Juvenile Justice, "A Summary of Reported Data Concerning Young People and the Juvenile Justice System, 1975–1977," app. in Senate Committee on the Judiciary, *Hearings before the Senate Committee on the Judiciary on the Reauthorization of the Juvenile Delinquency and Prevention Act of 1974*, 96th Cong., 2nd sess., March 28, 1980, 454.
27. *Ibid.*, 455; "Street Girls of the 70s," *The Nation*, April 20, 1974, 486–488.
28. Juvenile Delinquency and Prevention Act of 1974, 27; *Hearings before the Senate Committee on the Judiciary on the Reauthorization of the JJDPA*, 248; March 7, 1978, Oversight Hearing on the Runaway Youth Act 59, 77–79.
29. Even in areas with significant black populations, private and nonprofit organizations tended to focus on white youth, Boston's Bridge, Inc. program (short for "Bridge over Trouble Waters") was established in 1970 to help "wandering" or homeless children. By 1978, the organization and its streetwork team served some 21,458 youth with medical and dental services and counseling. But in a city with a 22 percent black population, only 11 percent of the youth who benefited from Bridge, Inc.'s rehabilitative and preventive services were black. Marget B. Saltonstall, The Bridge, Inc., "Greater Boston Street Youth: Their Characteristics, Incidence, and Needs," app. in March 28, 1980, Hearings, 499–501; judge quoted in Arnold Binder, "Putting the Rod

- Back in Parental Hands: 'Diversion' Programs Take Old-New Approach to Disciplining Errant Youth," *Los Angeles Times*, July 21, 1976, E7.
30. Kenneth quoted in "Runaways Tell Senate Panel of Ordeal in Adult Jails," *Miami Herald*, September 12, 1973; U.S. General Accounting Office, "Federally Supported Centers Provide Needed Services for Runaways and Homeless Youths" (Washington, DC: U.S. Government Printing Office, September 26, 1983), March 28, 1980, Hearings, 185.
 31. The National Statistical Survey on Runaway Youth found that Latino youth had the highest incidence of running away, at a rate of 4.6 percent, with black youth following closely behind at a rate of 3.2 percent, and white youth the lowest at a rate of 2.9 percent. National Statistical Survey on Runaway Youth Part 1, prepared under contract for HEW (Princeton, NJ: Opinion Research Corporation, March 7, 1978); Oversight Hearing on the Runaway Youth Act, 276; "Rural Programs," prepared for the Office of Juvenile Justice and Delinquency Prevention (Law Enforcement Assistance Administration, Department of Justice, May 1979), 9.
 32. Carol Osmon, "Mini-bikes Help 'Rescue' Juvenile Offenders," *Christian Science Monitor*, February 25, 1976, 19; April 29, 1975, Hearings, 73; Senate Committee on the Judiciary, *Ford Administration Stifles Juvenile Justice Program*, 73.
 33. "Children in Custody: Advance Report on the 1977 Census of Private Juvenile Facilities," U.S. Department of Justice, Law Enforcement Assistance Administration, National Criminal Justice Information and Statistics Service; Smith, "Summary of Reported Data," 455.
 34. The Nixon administration attempted to completely phase out the Office of Economic Opportunity in 1973 and severely cut its funding. Governor Ronald Reagan of California led other states in slashing the budget for social programs, trimming \$80 million from social welfare and environmental programs in the state. On the basis of "reduced caseload projections," public assistance programs were hit the hardest, with a \$16 million reduction, in addition to cutting the Head Start program in half, giving the preschool program for low-income youth enough funds to continue its operations for an additional six months while state planners developed "stronger" regulations for participation. Bill Robertson, "Public Aid Programs Are Hardest Hit by Budget Slash," *Los Angeles Sentinel*, July 5, 1973, A4.
 35. May 15, 1975, memorandum to Jonathan Rose, Douglas Marvin, Jack Fuller from Malcolm Barr, Director Office of Public Relations, subj.: "Draft Papers for Consideration in Preparation of the Presidential Crime Message," GFPL, Parsons Collection Box 3, "Crime Message of 6-19-75—Action Memoranda May 1–8 1975."
 36. David Rosenzweig, "Black Principal Describes School as 'Ft. Crenshaw'; Terror Makes Learning Impossible, Supervisors Told; Crackdown Urged Principals

- Call for Help on Violence in Schools,” *Los Angeles Times*, December 19, 1972, 3A; John, Kendall, “A Ghetto Is Slow to Die,” *Los Angeles Times* (1886–Current File), 1975, B1; Thompson quoted in Jack V. Fox, “Atmosphere of Fear Was So Thick You Could Cut It,” *Los Angeles Sentinel*, January 25, 1973, A9; Davis in “Juvenile Justice and Delinquency and Runaway Youth Hearings,” 18, 21 (Statement of Davis).
37. “Violence—Growing Blot that Hurts U.S. Schools,” *Christian Science Monitor*, August 26, 1976, 13.
 38. On the policing of urban public schools, see Thompson, “Why Mass Incarceration Matters: Rethinking Crisis, Decline, and Transformation in Postwar American History,” *The Journal of American History*, Vol. 97, No.3 December 2010: 703–58, 710–11. The legacy of these early school disciplinary programs and surveillance measures has endured in what some have termed the “School-to-Prison Pipeline,” whereby the “zero tolerance policies,” special anti-truancy forces, and other school disciplinary and patrol practices have funneled disturbing numbers of low-income youth out of schools and into juvenile detention and prisons in recent decades. See Aaron Kupchick, *Homeroom Security: School Discipline in an Age of Fear* (New York: New York University Press, 2010); Monique Morris, “Race, Gender, and the School-to-Prison Pipeline: Expanding Our Discussion to Include Black Girls,” African American Policy Forum, New York, 2012; American Civil Liberties Union, “Locating the School-to-Prison Pipeline,” available at https://www.aclu.org/files/images/asset_upload_file966_35553.pdf; April 29, 1975, Hearings, 105 (Statement of Bayh); National Institute of Education, U.S. Department of Health, Education, and Welfare, “Violent Schools—Safe Schools: The Safe School Study Report to Congress” (Washington, DC: U.S. Government Printing Office, 1978), 2.
 39. Principal quoted in Gene Weingarten, “East Bronx Story—Return of the Street Gangs,” *New York Magazine*, March 27, 1972; Iver Peterson “Student Violence and Teacher Militance Are Plaguing the Nation’s Schools,” *New York Times*, October 14, 1974, 25.
 40. As a former New York City public school teacher, Congresswoman Shirley Chisholm made her colleagues aware of the connections between youth crime and school disciplinary measures. “When school systems are not able to cope with the uniqueness and specific needs of black children,” Chisholm explained as she opened the Subcommittee on Equal Opportunity’s hearings on juvenile delinquency, “we find the development of discipline problems.” House Committee on Education and Labor, *Hearings before the Subcommittee on Equal Opportunities on Juvenile Justice Delinquency Prevention and Runaway Youth*, 93rd Cong., 2nd sess. (May 21, 1974), 455, 472 (Statements of Chisholm and Leon Hall, Director, Southern Regional Council).

41. March 29, 1974, Hearings (Statement of Kenneth E. Kirkpatrick).
42. National Advisory Commission on Criminal Justice Standards and Goals, "Report of the Task Force of Juvenile Justice and Delinquency Prevention" (Washington, DC: U.S. Government Printing Office, 1976), 789.
43. "Justice Department's Fight against Youth Crime," 3.
44. Ibid.
45. Quoted in Maurice Carroll, "Carey Urges Harsher Law against Juvenile Violence," *New York Times*, December 10, 1975, 1. On the Willie Bosket Case, see Simon I. Singer, Jeffrey Fagan, and Akiva Liberman, "The Reproduction of Juvenile Justice: A Case Study of New York's Juvenile Offender Law," in *The Changing Borders of Juvenile Justice: Transfer of Adolescents to the Criminal Court*, ed. Jeffrey Fagan and Franklin E. Zimring (Chicago: University of Chicago Press, 2000), 353–377.
46. Brooks in *Black Perspectives on Crime and the Criminal Justice System*, ed. Robert L. Woodson (Boston: G. K. Hall, 1977), 156; Sister Fattah, *ibid.*, 158; Jerome G. Miller, "The Issue of Violent Juvenile Crime," in *Violent Juvenile Offenders: An Anthology*, ed. Robert A. Mathias et al. (San Francisco: National Council on Crime and Delinquency, 1984) 381–382; excerpted from the statement of Jerome G. Miller, July 9, 1981, at the hearing before the Subcommittee on Juvenile Justice of the Committee on the Judiciary, U.S. Senate, 97th Cong., 1st sess., on "The Problem of Juvenile Crime" (Washington, DC: U.S. Government Printing Office, 1981), 175–182.
47. Robert Martinson, "What Works?—Questions and Answers about Prison Reform," *Public Interest* 35 (1974): 22–54, 27, 50, 49; Robert Martinson, "The Paradox of Prison Reform—I: The 'Dangerous Myth,'" *New Republic*, April 1, 1972, 23–25, 25; Robert Martinson, "The Paradox of Prison Reform—II: Can Corrections Correct?," *New Republic*, April 8, 1972, 13–15; Robert Martinson, "The Paradox of Prison Reform—III: The Meaning of Attica," *New Republic*, April 15, 1972, 17–18; Robert Martinson, "The Paradox of Prison Reform—IV: Planning for Public Safety," *New Republic*, April 29, 1972, 21–23; Selwyn Raab, "Study Finds Recidivism Rate of Convicts Lower than Expected," *New York Times*, November 7, 1976, 60; Jerome G. Miller, "Rehabilitating Criminals: Is It True That Nothing Works?," available at <http://www.prisonspolicy.org/scans/rehab.html>; *Mistretta v. United States*, 488 U.S. 361 (1989).
48. Most notably, the criminologist Elliot Currie exposed the flaws in Murray and Cox's argument. Charles Murray and Louis A. Cox, *Beyond Probation: Juvenile Corrections and the Chronic Delinquent* (New York: Sage Publications, 1979); James Q. Wilson, "'What Works?' Revisited: New Findings on Criminal Rehabilitation," *Public Interest* 61 (1980): 3–18, 13, 17; Jerome G.

- Miller, *Search and Destroy: African-American Males in the Criminal Justice System* (Cambridge: Cambridge University Press, 1996), 123–124.
49. Office of Juvenile Justice and Delinquency Prevention, “Project New Pride” (July 1979), available at <https://www.ncjrs.gov/pdffiles1/Digitization/59017NCJRS.pdf>; Ward Morehouse III, “Child Crime: Community-Based Programs Can Make a Difference,” *Christian Science Monitor*, June 20, 1978, 14; “Denver Project to Aid Delinquents Is Hailed,” *New York Times*, December 12, 1977, 28; Janice Joseph, *Black Youths, Delinquency, and Juvenile Justice* (New York: Praeger, 1995), 141.
 50. Thomas S. James and Jeanne M. Granville, “Practical Issues in Vocational Education for Serious Juvenile Offenders,” in *Violent Juvenile Offenders: An Anthology*, ed. Robert A. Mathias et al. (San Francisco: National Council on Crime and Delinquency, 1984), 338, 340–341; “Denver Project to Aid Delinquents,” 28.
 51. James and Granville, “Practical Issues in Vocational Education,” 338, 345; “LEAA Reports on Crime Projects; Denver Succeeds, Cincinnati Fails,” *Afro-American*, December 31, 1977, 16.
 52. Saxbe quoted in Ronald J. Ostrow, “Criminal Rehabilitation ‘a Myth,’ Saxbe Says,” *Los Angeles Times*, October 1, 1974, A4; National Advisory Commission on Criminal Justice Standards and Goals, “Report of the Task Force of Juvenile Justice and Delinquency Prevention” (Washington, DC: U.S. Government Printing Office, 1976), 13.
 53. May 5, 1975, memorandum to Jonathan Rose et al.
 54. Ibid.; Senate Committee on the Judiciary, *Part II Career Criminals: Hearing before the Subcommittee on Criminal Laws and Procedures*, 95th Cong., 2nd sess., September 27, 1978, 12.
 55. On the targeted removal of low-income urban residents, the material impact of this process, and the growth of American penal populations, see Todd Clear, *Imprisoning Communities: How Mass Incarceration Makes Disadvantaged Neighborhoods Worse* (Oxford: Oxford University Press, 2009) and Amy E. Lerman and Vesla Weaver, *Arresting Citizenship: The Democratic Consequences of American Crime Control* (Chicago: University of Chicago Press, 2014); May 15, 1975, memorandum to Jonathan Rose et al.; Senate Committee on the Judiciary, *Part II, Career Criminals: Hearing before the Subcommittee on Criminal Laws and Procedures*, 95th Cong., 2nd sess. (September 27, 1978), 12; Anthony M. Platt, “Saving and Controlling Delinquent Youth: A Critique,” *Issues in Criminology* 5, no. 1 (Winter 1970): 1–25, 3.

7. URBAN REMOVAL

1. Reading Copies of Presidential Speeches and Statements, folder “September 24, 1974 International Association of Chiefs of Police,” box 1, Gerald Ford Presidential Library (hereafter, GFPL); June 17, 1975, memorandum for Jim Connor from Dick Cheney, folder “Crime Message (2),” box 9, James E. Connor Files, GFPL.
2. “Elements of a Program,” April 11, 1975, attachment to memorandum from Parsons to Cannon, subj.: “Crime Program,” Parsons Files, box 4, “Crime Message of 6/19/1975—Background materials, Feb 15–May 14 1975,” GFPL; Remarks of the President at the Yale Sesquicentennial Convocation Dinner, Yale Law School, Parsons Collection, box 4, “Crime Message of 6-19-75—Background materials, Feb 15–May 14 1975,” GFPL.
3. After chatting with his former professor Myers McDougal, who interviewed the future president before he was admitted to Yale Law, Ford started his address just before 10:00 p.m. May 15, 1975, memorandum to Jonathan Rose, Douglas Marvin, Jack Fuller from Malcolm Barr, Director, Office of Public Relations, subj.: “Draft Papers for Consideration in Preparation of the Presidential Crime Message,” Parsons Collection, box 3, “Crime Message of 6-19-75—Action Memoranda May 1–8 1975,” GFPL; April 25, 1975, Remarks of the President at the Yale Sesquicentennial Convocation Dinner.
4. Federal policymakers relied heavily upon the work of James Q. Wilson to justify their attack on repeat offenders. The May 15 memorandum read: “As it is clear that most crimes are committed by repeaters (J. Q. Wilson) there will be a reduction in the crime rate simply through incapacitation.” April 25, 1975, Remarks of the President at the Yale Sesquicentennial Convocation Dinner, May 15, 1975; memorandum to Jonathan Rose et al.
5. James Naughton, “Ford Safe as Guard Seizes a Gun Woman Pointed at Him on Cast; Follower of Manson Is Charged,” *New York Times*, September 6, 1975, 49.
6. May 15, 1975, memorandum to Jonathan Rose, Douglas Marvin, Jack Fuller from Malcolm Barr, Director, Office of Public Relations, subj.: “Draft Papers for Consideration in Preparation of the Presidential Crime Message,” Parsons Collection, box 3, “Crime Message of 6-19-75—Action Memoranda May 1–8 1975,” GFPL.
7. Edward M. Kennedy, “Punishing the Offenders,” *New York Times*, December 6, 1975, 29.
8. Excerpts of Remarks by Governor Ronald Reagan: Citizens Committee for Law Enforcement Needs, Los Angeles, August 1, 1973, OA 190 Research Files: Legal Affairs, Law and Order RR Statements (3/3), Ronald Reagan Gubernatorial Files, Ronald Reagan Presidential Library (hereafter, RRPL).

9. Work in Hearings before the Subcommittee on Criminal Laws and Procedures of the Committee on the Judiciary, U.S. Senate, 95th Cong., 2nd sess. on S.28 and S.3216, pt. 2, Career Criminals (September 27, 1978), 7.
10. Ibid.; “Elements of a Program”; “Some Random Notes on Crime and Corrections/ Sykes Memo,” folder “Crime and Criminal Justice [4],” box 33, Issues Office-Bleicher, 1976 Campaign Files, Jimmy Carter Presidential Library (hereafter, JCPL); Curtis in May 17, 1978, Hearings, 14; “Magnitude of the Wave of Jail and Prison Construction in the United States during the 1970s,” National Moratorium on Prison Construction, January 1977, folder 1, box 11, Gutierrez Files, JCPL; “Jimmy Carter on Prisons,” sent as a memorandum to Sam Bleicher. Re: Paper on Prisons, folder “Crime and Criminal Justice [4],” box 33—Issues Office Bleicher, 1976 Campaign Files, JCPL; February 8, 1978, Open Letter to Attorney General Griffin Bell from Milton G. Rector, President of National Council on Crime and Delinquency, folder 16, box 11, Gutierrez Files, JCPL; Justice Policy Institute, “The Punishing Decade: Prison and Jail Estimates at the Millennium” (Washington, DC: Justice Policy Institute, May 2000).
11. Joseph G. Weis and John Sederstrom, “The Prevention of Serious Delinquency: What to Do?” (Washington, DC: U.S. Department of Justice, Office of Juvenile Justice and Delinquency Prevention, National Institute for Juvenile Justice and Delinquency Prevention, 1982), 18.
12. “Elements of a Program.”
13. Saxbe quoted in “Prosecute More Felons,” *Chicago Defender*, October 7, 1974, 4; and quoted in Joel Weisman, “Saxbe Sees Prospect of U.S. Police,” *Washington Post*, August 28, 1974, A1.
14. “Prisons Urged for 15% of Young Felons,” *Los Angeles Times*, August 21, 1975, 2.
15. Ford Speech before the International Association of Chiefs of Police, Washington Hilton Hotel, Washington, DC, Tuesday, September 24, 1974. Reading Copies of Presidential Speeches and Statements, 1974–1977, older “September 24, 1974 IACP,” box 1, GFPL; “Picture Painted of a Criminal,” *Los Angeles Times*, September 28, 1976, A1; Nicholas von Hoffman, “Throwing Money at Crime: The Multibillion-Dollar Nightstick,” *Washington Post*, October 8, 1976, B3; quoted in Judith Cummings, “Funds to End Youth-Gang Violence Termed Misspent,” *New York Times*, October 29, 1976, 92.
16. Senate Committee of the Judiciary, *Hearings before the Subcommittee on Criminal Laws and Procedures on S. 28 and S. 3216 Part II Career Criminals*, 95th Cong., 2nd sess. (September 27, 1978), 33 (Statement of Earl Silbert).
17. Ibid. (Statement of Carol S. Vance, DA of Harris County, Texas).
18. George C. Smith, Chairman, *National District Attorneys Association—Career Criminal Committee Report for Year 1977* in Joint Economic Committee,

- Hearing before the Subcommittee on Economic Growth and Stabilization on Urban Crime Policy*, 95th Cong., 2nd sess. (May 17, 1978).
19. James J. Kilpatrick, "Rehabilitation Be Hanged: Lock Career Criminal Up," *Baltimore Sun*, November 21, 1976, K5.
 20. September 27, 1978, Hearings, 63 (Statement of James F. Kelley, Prosecuting Attorney for the 19th Judicial Circuit, Indianapolis).
 21. Mahoney quoted in "Urban Crime Policy: Hearing before the Subcommittee on Economic Growth and Stabilization," 95th Cong., 2nd sess. (May 17, 1978), 32 (Statement of George C. Smith, Prosecuting Attny., Columbus, chairman of National CC committee, National District Attnys. Assoc).
 22. "New Crime Game," *Afro-American*, October 5, 1974, 4; "\$37 Million for Juvenile Crime but Minority Groups Ignored," *Baltimore Afro-American*, December 30, 1978, 8.
 23. May 17, 1978, Hearings, 26 (Statement of Smith); James J. Kilpatrick, "Rehabilitation Be Hanged: Lock Career Criminal Up," *Baltimore Sun*, November 21, 1976, K5; September 27, 1978, Hearings (Statement of William A. Hamilton, President, Institute for Law and Social Research); Peter W. Greenwood, "Career Criminal Prosecution: Potential Objectives," *Journal of Criminal Law and Criminology* 71, no. 85 (1980): 85–88; National Institute of Justice, "National Directory of Career Criminal Programs" (Rockville, MD: National Criminal Justice Reference Service, 1980).
 24. Silbert in September 27, 1978, Hearings, 29.
 25. In Mathias testimony, May 17, 1978, Hearings, 48.
 26. September 27, 1978, Hearings, 29 (Statement of Silbert); May 17, 1978, Hearings, 48 (Statement of Mathias), 2 (Statement of Smith).
 27. African Americans in Watts and Compton between the ages of sixteen and nineteen had a 62 percent rate of unemployment; Davis in March 29, 1974, Hearings, 25–26; Rosenzweig, "Black Principal Describes School as 'Ft. Crenshaw'"; Yusuf Jah and Sister Shah'Keyah, *Uprising: Crips and Bloods Tell the Story of America's Youth in the Crossfire* (New York: Touchstone Books, 1997), 26; quoted in Joseph B. Treaster, "Violence of Youth Gangs Is Found at a New High," *New York Times*, May 1, 1976, 42.
 28. May 15, 1975, memorandum to Jonathan Rose et al.
 29. Walter B. Miller, *Violence by Youth Gangs and Youth Groups as a Crime Problem in Major American Cities* (Washington, DC: U.S. Government Printing Office, 1975), 44.
 30. A 1973 study conducted by the Bureau of Alcohol, Tobacco, and Firearms traced the source of half of the firearms used in New York City to South Carolina, Georgia, Florida, and Virginia. For sociological considerations of the use of criminal law to contain the threat marginalized groups posed to state

power, see Georg Rusche, “Labor Market and Penal Sanction,” *Crime and Social Justice* 10 (Fall–Winter, 1978): 2–8 (orig. 1933); Richard Quinney, *Criminal Justice in America: A Critical Understanding* (Boston: Little, Brown, 1974); Steven Spitzer, “Toward a Marxian Theory of Deviance,” *Social Problems* 22 (1975): 638–651; Bruce Western, *Punishment and Inequality in America* (New York: Russell Sage Foundation, 2006), 55; National Advisory Commission on Criminal Justice Standards and Goals, “Report of the Task Force of Juvenile Justice and Delinquency Prevention” (Washington, DC: U.S. Government Printing Office, 1976), 152; William Claiborne, “N.Y. Guns Traced to South,” *Washington Post*, December 18, 1973, A3.

31. House Committee on Appropriations, *Hearings before the Subcommittees of the Committee on Appropriations—Supplemental Appropriations of FY 1976*, 94th Cong., 1st sess., pt. 2 (Tuesday, October 21, 1975), 691. Here, the United States was unique. Unlike most of Western Europe and Asia, licensing and registration were required to possess a handgun, and a number of European, Asian, and African countries prohibited handgun possession altogether.
32. Ibid; “Introduction of S. 2186 (Ford gun control bill) by Senator Fong,” July 26, 1975 (extract from the Congressional record) and “S. 2186, a bill to ban the importation, manufacture, sale, and transfer of Saturday Night Specials, to improve the effectiveness of the Gun Control Act of 1968, to ban possession, shipment, transportation, and receipt of all firearms by felons, and for other purposes,” 94th Cong., 1st sess. Included in Senate Judiciary Committee, *Hearings before the Subcommittee to Investigate Juvenile Delinquency*, 94th Cong., 1st sess. (April 23, July 22, October 26, 1975), 985–1021.
33. “Memorandum on the Problem of the Criminal Use of Handguns,” March 26, 1975. Included in April 23, July 22, October 26, 1975 Hearings, 616–707, 12.
34. October 21, 1975 Hearings, 616 (Statement of Rex Davis); “Gun Control Unit Faces Shakeup,” *Washington Post*, December 1, 1976, C25.
35. Juan Williams and Alfred Lewis, “1,100 Illegal Guns Seized in Raids,” *Washington Post*, November 19, 1976, C2; Bureau of Alcohol, Tobacco, and Firearms, “Significant Criminal Enforcement Project,” supplemental material in October 21, 1975, Hearings, 654–655.
36. “Gun Control Unit Faces Shakeup.”
37. Joan Petersilia and Peter W. Greenwood, “Mandatory Prison Sentences: Their Project Effects on Crime and Prison Population” (Santa Monica, CA: RAND Corporation, October 1977). Petersilia worked as a research associate at RAND, while Greenwood served as the director of RAND’s Criminal Justice program and coauthored work on Criminal Careers and Habitual Felons. Both James Q. Wilson and Daniel Glaser reviewed drafts of the article. In September 27, 1978, Hearings, 411.

38. See Robert L. Woodson, ed., *Black Perspectives on Crime and the Criminal Justice System* (Boston: G. K. Hall, 1977), for further critique of Miller's methodology.
39. Miller quoted in "Gun-Toting Teen Gangs Called Threat to Schools," *Chicago Tribune*, May 1, 1976, 6; and quoted in Joseph B. Treaster, "Violence of Youth Gangs Is Found at a New High," *New York Times*, May 1, 1976, 42; Claudia Luther, "L.A. Called One of 3 Cities with Youth Gang Crisis," *Los Angeles Times*, November 20, 1975, C1.
40. Miller estimated there were as many as 2,700 gangs with 81,500 members in the six largest cities in the United States, figures he said were conservative. The greatest concentrations appeared to be in "New York, with 315 gangs, 8,000 verified members and another 20,000 alleged members." Los Angeles and Philadelphia had "the highest proportion of gang members . . . six out of every 100 male youths in those cities were associated with a gang or a group . . . most of the victims continue to be members of gangs"; Miller quoted in Cummings, "Funds to End"; and quoted in Treaster, "Violence of Youth Gangs"; and Clayton Jones, "Target: Youth Gang Violence," *Christian Science Monitor*, June 22, 1976, 3.
41. "Gun-Toting Teen Gangs"; Harry Kelly, "Teen Criminals Deserve Adult Penalties: Ford," *Chicago Tribune*, September 28, 1976, 6; George Skelton, "Ford Proposes Adult Punishment for Juveniles Who Commit Vicious Crimes," *Los Angeles Times*, September 28, 1976, B5.
42. Wilson in Woodson, *Black Perspectives*, 51; "The Justice Department's Fight against Youth Crime: A Review of the Office of Juvenile Justice and Delinquency Prevention of the Law Enforcement Assistance Administration," prepared by Robert W. Woodson, Consultant to the House Subcommittee on Crime. House Subcommittee on Crime of the Committee on the Judiciary, 95th Cong., 2nd sess. (December 1978).
43. December 7, 1973, Policy/Position Paper, subj.: "Crime, Crimes of Violence," (3A 2a) Governor's Office—Cabinet Office Files, RRPL.
44. Gerald Ford, *Special Message to Congress on Crime*, June 19, 1975, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=5007>; "Elements of a Program"; December 7, 1973, Policy/Position Paper.
45. "Excerpts of Remarks by Governor Ronald Reagan California Sheriff's Association, Palo Alto, June 12, 1974," Governor's Office 181- RF- H and W- Drug Abuses (2/2), RRPL.
46. Statement by Charles Johnson, Special Narcotics Prosecutor in New York, in Woodson, *Black Perspectives*, 162.
47. National Advisory Commission on Criminal Justice Standards and Goals, "Report of the Task Force of Juvenile Justice and Delinquency Prevention" (Wash-

- ington, DC: U.S. Government Printing Office, 1976), fig. 6: Total Population of U.S. State and Federal Prisons, 1962–1976, 12; “Some Random Notes on Crime and Corrections/ Sykes Memo,” folder “Crime and Criminal Justice [4],” box 33, Issues Office-Bleicher, 1976 Campaign Files, JCPL; Curtis in May 17, 1978, Hearings, 14; “Magnitude of the Wave of Jail and Prison Construction in the United States During the 1970s”; box 11, “Jimmy Carter on Prisons”; February 8, 1978, open letter to Attorney General Griffin Bell; Justice Policy Institute, “The Punishing Decade: Prison and Jail Estimates at the Millennium” (Washington, DC: Justice Policy Institute, May 2000).
48. Eric G. Woodbury, “Prison Overcrowding and *Rhodes v. Chapman*: Double-Celling by What Standard?,” *Boston College Law Review* 23, no. 3 (May 1, 1982), 713–760; Malcolm M. Feely and Edward L. Rubin, *Judicial Policy Making and the Modern State: How the Courts Reformed America’s Prisons* (New York: Cambridge University Press 2000).
 49. *Rhodes v. Chapman*, 452 U.S. 344 (1981).
 50. September 27, 1978, Hearings, 87, 89 (Statement of Lloyd Bentsen).
 51. African Americans have experienced higher rates of victimization for all crimes since at least 1973, and for homicides since 1976. By 1985, the possibility of becoming a homicide victim was 1 in 21 for black males and 1 in 131 for white males. James Allen Fox and Marianne W. Zawitz, *Homicide Trends in the United States* (U.S. Bureau of Justice Statistics, 2007), available at <http://www.bjs.gov/index.cfm?ty=pbdetail&iid=966>; Marshall DeBerry and Anita Timrots, *Criminal Victimization in the United States*, 1983 (National Crime Victimization Survey, Bureau of Justice Statistics, 1985), available at <http://www.bjs.gov/index.cfm?ty=pbdetail&iid=3503>; Bill Boyarsky, “Carter, in Detroit, Scores Ford on Crime, Then Offers 16-Point Plan to Reduce It,” *Los Angeles Times*, October 16, 1976, A23.

8. CRIME CONTROL AS URBAN POLICY

1. Eugene Meehan, *The Quality of Federal Policymaking: Programmed Failure in Public Housing* (Columbia: University of Missouri Press, 1979), 71; Katharine G. Bristol, “The Pruitt-Igoe Myth,” *Journal of Architectural Education* 44, no. 3 (May 1991): 163–171; Simon Winchester, “They’ve Come a Long Way in St. Louis,” *The Guardian*, May 15, 1974, 16; Stanley Ziemba, “Faced with a ‘Cabrini,’ St. Louis Tore It Down,” *Chicago Tribune*, April 26, 1981, B10.
2. “The Urban Crisis,” n.d.; 1976 Presidential Campaign-Issues Office—Noel Sterrett; folder “Memoranda (Nodak),” box 88, Jimmy Carter Presidential Library (hereafter, JCPL); March 31, 1980, “Urban Initiatives Anti-Crime Program First Annual Report to Congress in Response to the Public Housing

- Demonstration Act of 1978 and as Part of the President's National Urban Policy," Administration—Staff Offices, Ethnic Affairs, folder "Anti-Crime Program [Lynn A. Curtis]," box 1, JCPL; Jimmy Carter radio interview with Bill Moyers on the 1976 campaign, Public Broadcasting Systems, May 6, 1976; quoted in Thomas E. Cronin, Tamia Z. Cronin, and Michael E. Millakovich, *U.S. v. Crime in the Streets* (Bloomington: Indiana University Press, 1981), 120.
3. Thirteen percent of black Americans were unemployed at the end of 1976. Moreover, by 1977, the typical woman prisoner in the United States was black and under the age of thirty, according to a \$289,025 study by the LEAA and the California Youth Authority. The agencies interviewed some 3,000 women in fifteen state prisons and forty-two local jails for the project. "Strategies for Controlling Crime: A Position Paper," Prepared by the Administration of Justice Division, National Urban League, March 1978, folder 8, box 12, Gutierrez Files, JCPL; "LEAA Study Shows: High Numbers of Women Prisoners Are Young Blacks," *Philadelphia Tribune*, August 13, 1977, 4; "Typical State Inmate Called Black, 26, Dropout," *Baltimore Sun*, May 1, 1977, B2.
 4. Jimmy Carter, "National Urban Policy Message to the Congress," March 27, 1978. American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=30567>.
 5. Ibid.
 6. Curtis in May 17, 1978, Hearings before the Subcommittee on Economic Growth and Stabilization of the Joint Economic Committee, 95th Cong., 1st sess., 7, 14.
 7. April 4, 1978, memorandum from Curtis to Gregg Gutierrez, folder 8, box 25, JCPL; press release, LEAA/ACTION Launch Urban Crime Prevention Program, December 2, 1980, folder 7, "Community Anti-Crime Legislation," box 3, White Files, JCPL; "More LEAA Funds Sought," *Baltimore Sun*, May 23, 1978, A9.
 8. In 1965, the nation spent \$4.6 billion on criminal justice; by 1977, the figure had reached \$23 billion, or roughly \$17 billion in constant 1965 dollars. Spending at the state and local levels followed the federal government's example and grew 87 percent from 1971 to 1976. Federal government spending more than doubled (101.6 percent), state government spending was up by 94.1 percent, and the local government increase was 81.6 percent. January 4, 1978, memorandum to Annie Gutierrez from Bill Albers, subj.: "LEAA/NIJ Proposal," folder 8, box 25, Gutierrez Files, JCPL; "US DOJ LEAA News Release 2-2-78," folder 11, "Crime Statistics," box 12, Gutierrez Files, JCPL; see also "Expenditure and Employment Data for the Criminal Justice System," 1976; General Briefing of the LEAA, Department of Justice April 1977, folder 10, "LEAA [3]," box 25, Gutierrez Files, JCPL; July 19, 1976, letter to Arnold

- Sagalyn, Coordinator, Task Force on Crime and Criminal Justice from Daniel Glaser, Professor, 1976 Campaign Issues Office-Sam Bleicher, folder “Law Enforcement—Arnold Sagalyn,” box 26, JCPL; September 18, 1976, letter to Governor Carter from Sam Bleicher Thru Stu Eizenstat Re: Re-authorization of the LEAA, folder “Law Enforcement,” box 36, JCPL; “The Future Role of the Law Enforcement Assistance Administration: A Draft NCSCJPA Policy Statement—Revised January 31, 1977,” folder 12, box 25, Gutierrez Files, JCPL.
9. The LEAA’s budget exceeded even the FBI’s \$513 million allocation by nearly a quarter of a billion dollars. July 10, 1978, letter to Congress from Office of the White House Press Secretary, folder 1, box 25, Neustadt Files, JCPL; September 18, 1976, letter to Governor Carter from Sam Bleicher; John M. Goshko, “LEAA’s Fate Weighed at Justice Dept.,” *Washington Post*, April 9, 1977, A1; March 28, 1977, memorandum for Peter Flaherty, Deputy Attorney General from Bill Albers, subj.: “LEAA Recommendations,” folder 10, box 25, Gutierrez Files, JCPL; “In the Nation,” *Baltimore Sun*, June 21, 1977, A9; John M. Goshko, “LEAA’s Fate Weighed at Justice Dept.,” *Washington Post*, April 9, 1977, A1; July 19, 1976, letter to Arnold Sagalyn; September 18, 1976, Letter to Governor Carter from Sam Bleicher; Boyarsky, “Carter, in Detroit.”
 10. November 2, 1977, memorandum for Attorney General from Vice President, subj.: “Crime Message,” folder 4, box 164, Eizenstat Files, JCPL. Carter sent the request to the attorney general in a September 16, 1977, memorandum for his cabinet officials. “Crime Program,” folder 2, box 164, Eizenstat Collection, JCPL; Roger Twigg, “Pomerleau Faults LEAA Study Release,” *Baltimore Sun*, April 17, 1977, B8; “A Good Concept Gone Awry,” *Los Angeles Times*, July 28, 1977, D6.
 11. The complainants included the Police Legal Office Program, a Farm Equipment and Theft Program, a Multi-Agency Narcotic Unit Manual, a Labor Relations Training Program, a National Law Enforcement Equipment Information Center, an Organized Crime Bulletin, and the Uniform Crime Report Validation Program. Document, n.t., n.d., folder 6, “National Minority Advisory Council on Criminal Justice,” box 17, White Files, JCPL; “Consensus Statement Resulting from Criminal Justice Leaders’ Meeting,” December 20, 1977, Columbia, Maryland, folder 8, box 25, Gutierrez Files, JCPL; January 27, 1978, letter to the President from Noel C. Bufe, Chairman, National Conference of State Criminal Justice Planning Administrators, folder 8, box 25, Gutierrez Files, JCPL.
 12. July 10, 1978, letter to Congress from Office of the White House Press Secretary, folder 1, box 25, Neustadt Files, JCPL; February 25, 1978, memorandum for Stu Eizenstat from Annie M. Guiterrez, subj.: “President’s Response to Bourne Memo on Crime Rate,” folder 1, “Civil Rights-Court Reform-Crime

- Issues,” box 164, Eizenstat Files, JCPL; “Bell Updates Crime Data Unit,” *Chicago Tribune*, August 22, 1977, 7.
13. January 4, 1978, memorandum to Annie Gutierrez from Bill Albers, subj.: “LEAA/NIJ Proposal,” folder 8, box 25, Gutierrez Files, JCPL; Margaret Gentry, “LEAA Study Challenges ’74–’75 FBI Crime Data,” *Washington Post*, May 25, 1977, A5; December 31, 1977, memorandum to Annie Gutierrez, Domestic Policy Staff, from Bill Albers, Consultant to ACTION, subj.: “The Crime Rate,” folder 8, box 25, Gutierrez Files, JCPL; February 25, 1978, memorandum for Stu Eizenstat; January 4, 1978, memorandum to Annie Gutierrez.
 14. The Senate voted to eliminate the agency 67 to 8. “Senate Votes to Permit Wider Local Choices in Spending LEAA Funds,” *Baltimore Sun*, May 22, 1979, A8; “The Future Role of the Law Enforcement Assistance Administration”; January 25, 1978, letter to LEAA Officials from George L. Hanbury, City Manager City of Virginia Beach, folder 8, “LEAA [1],” box 25, Gutierrez Files, JCPL; July 10, 1978, letter to Congress from Office of the White House Press Secretary, folder 1, Neustadt Files, box 25, JCPL; August 3, 1977, letter from James M. H. Gregg, Assistant Administrator Office of Planning and Management to Honorable William F. Hyland, AG State of New Jersey Trenton, NJ, folder 8, “LEAA [1],” box 25, Gutierrez Files, JCPL; “Attorney General to Delay Filling Top LEAA Posts,” *Washington Post*, March 3, 1978, C6; Thomas B. Edsall, “Lawmen Link LEAA to Chaos in Plans,” *Baltimore Sun*, May 2, 1978, D3. June 20, 1977, DOJ Press Release, folder 10, “LEAA [3],” box 25, Gutierrez Files JCPL; “Good Concept Gone Awry,” D6; July 10, 1978, letter to Congress from Office of the White House Press Secretary.
 15. July 10, 1978, letter to Congress from Office of the White House Press Secretary.
 16. June 20, 1977, Department of Justice Press Release, folder 10, “LEAA [3],” box 25, Gutierrez Files, JCPL; “Good Concept Gone Awry,” D6; July 10, 1978, letter to Congress from Office of the White House Press Secretary.
 17. On July 19, 1978, Carter announced his intention to make public housing a major part of his national urban policy. July 10, 1978, letter to Congress from Office of the White House Press Secretary; Patricia Harris speaking in July 10, 1978, “Remarks of the President upon Announcement of LEAA Reorganization,” folder 1, box 25, Neustadt Files, JCPL; “Urban Initiatives Anti-Crime Program First Annual Report to Congress,” 2; Langley Carlton Keyes, *Strategies and Saints: Fighting Drugs in Subsidized Housing* (Washington, DC: Urban Institute Press, 1992) 28.
 18. The Public Housing Security Act of 1978 was included under Title II of the Housing and Community Development Act of 1978. “Urban Initiatives Anti-Crime Program”; July 1, 1980, letter to Stephen R. Aiello, Special Assis-

- tant to the President for Ethnic Affairs, from Lynn A. Curtis, Director, Urban Initiatives Anti-Crime Program, Ethnic Affairs-Aiello, folder “Urban Anti-Crime Initiatives [Meeting] Shoreham Hotel 7-15-80,” box 10, JCPL; July 10, 1978, letter to Congress from Office of the White House Press Secretary; September 27, 1979, press release, “HUD Announces Finalists in Urban Initiatives Anti-Crime Program,” HUD News, Washington, DC, folder 7, “Community Anti-Crime Legislation [1],” box 3, White Files, JCPL; March 31, 1980, “Urban Initiatives Anti-Crime Program First Annual Report to Congress.”
19. July 1, 1980, letter to Stephen R. Aiello; “Urban Initiatives Anti-Crime Program First Annual Report to Congress.”
 20. “Urban Initiatives Anti-Crime Program First Annual Report to Congress,” i.
 21. While the housing projects were originally conceived under “a vision of the new contemporary man no longer tied to his own individual hearth and garden,” Newman argued that by the early 1970s, the effect of this environment was to “produce crime, fear, and decay instead of freedom.” Newman found that in New York City, a massive high-rise project and a modest six-story unit across the street from one another and virtually identical in size, population density, and social demographics experienced markedly different levels of violence: the high-rise had a 56 percent higher crime rate than the project across the street. Oscar Newman, *Design Guidelines for Creating Defensible Space* (Washington, DC: National Institute of Law Enforcement and Criminal Justice, Law Enforcement Assistance Administration, Department of Justice, 1976), 18, 35; “Architects Scored on Housing Projects,” *New York Times*, July 19, 1976, 31; “Crime Fight Study Turns to New Field,” *Los Angeles Times*, March 22, 1973, L12.
 22. “Crime Fight Study Turns to New Field”; Newman, *Design Guidelines for Creating Defensible Space*, 17, 23; “‘Utopian’ Projects Fail by Design,” *Washington Post*, July 24, 1976, D1; Newman quoted in “Aged Mixed with Young Blamed for Project Crime,” *Chicago Tribune*, July 19, 1976, 5.
 23. In his history of the development and decline of public housing from the 1930s to the present, Lawrence J. Vale describes the incorporation of architectural design and urban planning into public policy as “design politics.” See *Purging the Poorest: Public Housing and the Design of Twice Cleared Communities* (Chicago: University of Chicago Press, 2013). “Crime Fight Study Turns to New Field”; Newman, *Design Guidelines for Creating Defensible Space*, 17, 23; “‘Utopian’ Projects Fail by Design,” D1; Newman quoted in “Aged Mixed with Young Blamed,” 5; May 15, 1975, memorandum to Jonathan Rose, Douglas Marvin, Jack Fuller from Malcolm Barr, Director Office of Public Relations, subj.: “Draft Papers for Consideration in Preparation of the Presidential Crime Message,” Parsons Collection, box 3, “Crime Message of 6-19-75—Action Memoranda May 1–8 1975,” Gerald Ford Presidential Library (hereafter, GFPL); see James Q.

- Wilson and George L. Kelling, 'Broken Windows: The Police and Neighborhood Safety,' *Atlantic Monthly*, March 1982, available at www.theatlantic.com/politics/crime/windows.htm.
24. "Aged Mixed with Young Blamed," 5; "\$450,000 Grant to Boost Policing of Low Income Areas," *Atlanta Daily World*, June 25, 1974, 1; "Housing Force in Operation"; "Revised Housing Authority Security Force OKed," *New Pittsburgh Courier*, December 29, 1973, 29.
 25. Work quoted in "LEAA Puts \$2 Million for New Anti-Crime Plans," *Baltimore Afro-American*, May 25, 1974, 5; Police Foundation, "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD Case Study" (John F. Kennedy School of Government for U.S. Department of Housing and Urban Development, Office of Policy Development and Research, 1984).
 26. Tense relations between the security guards and tenants led the Housing Authority to modify the program to allow resident security aides to sit with the guard in the booth. The aides were screened by the Housing Authority and received six months of classes and six months of on-the-job training. Meanwhile, the Housing Authority created Security Coordinator and Security Operations Supervisor positions to advise both the contractual guard companies and the Baltimore City Police Department. "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD," 7, 8.
 27. March 31, 1980, "Urban Initiatives Anti-Crime Program First Annual Report to Congress," 8.
 28. March 31, 1980, "Urban Initiatives Anti-Crime Program First Annual Report to Congress"; April 4, 1978, "Coordination of Anti-Crime Programming Between LEAA and HUD," memorandum from Lynn A. Curtis to James M. H. Gregg, folder 8, "LEAA [1]," box 25, Gutierrez Files, JCPL; April 4, 1978, memorandum from Curtis to Gregg.
 29. "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD," 14, 25.
 30. In the event that an uninvited guest should attempt to enter the housing project, a "man trap" feature was installed into the entrances, which now included two sets of doors that closed automatically after a matter of seconds (the system was shortly altered after it was installed after residents were frequently caught between the two doors). *Ibid.*, 10, 14, 25.
 31. In New York City, where no tenant patrols existed in 1968, by the time the Carter administration introduced its public housing program, there existed 156 such patrols in 251 housing projects throughout the city. In the Johnson Housing Project in Harlem, twenty teenagers formed a special group in the larger 300-person volunteer tenant patrol. They alerted the adults when they observed crime, such as burglary, in their hallways and on the streets sur-

- rounding the project. "Urban Initiatives Anti-Crime Program First Annual Report to Congress"; Ward Morehouse III, "FOCUS: Tenants Mount Crime Vigils," *Christian Science Monitor*, March 23, 1978, 2.
32. "Summary: ACTION-LEAA Anti-Crime Proposal," May 8, 1978, folder 8, box 3, White Files, JCPL; December 29, 1978, "LEAA/ACTION Memorandum of Agreement for the Urban Crime Prevention Program," folder 7, box 3, White Files, JCPL; Clarence Page, "Taylor Homes Residents Declare War on Crime," *Chicago Tribune*, February 13, 1978, C14; Edith Herman, "A 'Forgotten' Story of Pain in the Inner City," *Chicago Tribune*, July 15, 1979, M3.
 33. "Urban Initiatives Anti-Crime Program First Annual Report to Congress"; U.S. Department of Justice, LEAA Grant Manager's memorandum, Project Summary, Jack Watson—Cabinet Secretary Stephen Page, folder 2, "Community Crime Prevention Grants /930–10/1/1980," box 126, JCPL; see also folders 7 and 8, "Community Anti-Crime Legislation," box 3, White Files, JCPL.
 34. "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD," 9; "Urban Initiatives Anti-Crime Program First Annual Report to Congress"; Morehouse, "FOCUS."
 35. Memorandum for Honorable Anne Wexler, subj.: "Weekly Urban Policy Report, June 7, 1978, from John G. Kester, Special Assistant to the Secretary of Defense," Office of Anne Wexler, folder "Department of Defense: Program to Target Procurement to High Unemployment Areas," box 113, Jane Hartley's Urban Policy Files, JCPL; "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD," 10.
 36. "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD," 11.
 37. "New Orleans, LA Public Housing Agency," Office of Congressional Liaison Moore, folder "HUD Anti-Crime 9-25-79," box 80, Grants File, JCPL; "Detroit, MI Public Housing Agency," Office of Congressional Liaison Moore, folder "HUD Anti-Crime 9-25-79," box 80, Grants File, JCPL.
 38. "Chicago, IL Public Housing Agency," Office of Congressional Liaison Moore, folder "HUD Anti-Crime 9-25-79," box 80, Grants File, JCPL.
 39. Ibid.
 40. "Urban Initiatives Anti-Crime Program First Annual Report to Congress."
 41. "Evaluation of the Urban Initiatives Anti-Crime Program: Baltimore, MD," 38.
 42. July 7, 1975, memorandum to Cannon from Aldrich, subj.: "Summer Urban Youth Project: New York City Trip," Parsons Collection, box 17, "Summer Jobs for Urban Youth," GFPL.
 43. Moynihan noted that in New York City the fire alarm rate tripled from 69,700 alarms to 240,000 alarms between 1965 and 1969. January 16, 1970, memorandum, For the President from Daniel P. Moynihan, folder "'Black Vote'

- (72)” (underline Moynihan’s), box 10, Krogh Collection, Richard Nixon Presidential Library; Stephen E. Nordlinger, “Arson ‘Epidemic’ Stirs U.S. to Take Lead in Crackdown,” *Baltimore Sun*, January 2, 1979, A1; Statement of G. R. Dickerson, Director, Bureau of Alcohol, Tobacco, and Firearms, April 28, 1979, Arson Problems in New York Hearings before the Subcommittee on Treasury, U.S. Postal Service, and General Government Appropriations, House Committee on Appropriations, 96th Cong., 1st sess., 10; May 2, 1979, letter to Congressman Addabbo from Stephen T. Boyle, Director, Office of Congressional Liaison, included in April 28, 1979 Hearings, 43.
44. “Arson and More Arson,” *Washington Post*, April 20, 1979, A14; Lois Timnick, “‘Spite’ Blamed for Most of Arson in L.A. Last Year,” *Los Angeles Times*, December 10, 1980, 3; May 2, 1979, letter to Congressman Addabbo; Nordlinger, “Arson ‘Epidemic’ Stirs.”
 45. January 16, 1970, memorandum for the president from Daniel P. Moynihan.
 46. Manning Marable, “Miami and the Fire This Time,” *In These Times*, May 28–June 3, 1980, 3; John Conyers Jr., “Police Violence and Riots,” *Black Scholar* 12 (January–February 1981): 2–5; Bruce Porter and Marvin Dunn, *The Miami Riot of 1980: Crossing the Bounds* (Lexington, MA: Lexington Books, 1984).
 47. Marable, “Miami and the Fire This Time”; Marable, “Small Changes Come to Dade County,” *In These Times*, July 2–15, 1980, 6.
 48. After Carter’s first year in office, white unemployment dropped to 5.6 percent, while black unemployment rose to 12.5 percent. Chuck Stone, “Carter’s Paternalistic Racism and the Inept Presidency,” *Black Scholar* 9 (March 1978): 39–41. Leo R. Ribuffo, “Jimmy Carter: Beyond the Current Myths,” *OAH Magazine of History* 3, no. 3–4 (Summer–Fall 1988): 19–23; Bruce J. Schulman, “Slouching towards the Supply-Side: Jimmy Carter and the New American Political Economy,” in *The Carter Presidency: Policy Choices in the Post-New Deal Era*, ed. Gary M. Fink and Hugh Davis Graham (Lawrence: University Press of Kansas, 1998): 51–71.
 49. Manning Marable, “The Fire This Time: The Miami Rebellion, May 1980,” *The Black Scholar* 11 (July–August 1980): 2–18, 3; Marable, “Small Changes Come to Dade County,” 6.
 50. See Porter and Dunn, *Miami Riot of 1980*; Melissa Patterson and Robert Samuels, “McDuffie Riot Memories Fade in Liberty City, but Neighborhood Still Bears Deep Scars,” *Miami Herald*, May 16, 2010; Briefing Summary, Justice System Improvement Act: Reorganization Proposal, August 28, 1979, folder 6, box 17, White Files, JCPL.
 51. “South Bronx Fiasco,” *New York Amsterdam News*, February 10, 1979, 18; Iwan Morgan, “Jimmy Carter, Bill Clinton, and the New Democratic Economies,” *Historical Journal* 47, no. 4 (December 2004): 1015–1039; Kennedy quoted in

- William E. Lechtenburg, *In the Shadow of FDR: From Harry Truman to Ronald Reagan*, rev. ed. (Ithaca, NY: Cornell University Press, 1985).
52. Ruth Wilson Gilmore, *Golden Gulag: Prisons, Surplus, Crisis, and Opposition in Globalizing California* (Berkeley: University of California Press, 2007); Judith Stein, *Pivotal Decade: How the United States Traded Factories for Finance in the Seventies* (New Haven, CT: Yale University Press, 2011). See also Jefferson Cowie, *Stayin' Alive: The 1970s and the Last Days of the Working Class* (New York: New Press, 2010); Daniel Rodgers, *Age of Fracture* (Cambridge, MA: Harvard University Press, 2011); Bruce Schulman, *The Seventies: The Great Shift in American Culture, Society, and Politics*, repr. ed. (New York: Da Capo, 2002); Robert O. Self, *All in the Family: The Realignment of American Democracy since the 1960s* (New York: Hill and Wang, 2013).
 53. Police Foundation, "Evaluation of the Urban Initiatives Anti-Crime Program: Dade County, FL Case Study" (John F. Kennedy School of Government, prepared for Department of Housing and Urban Development, Office of Policy Development and Research, 1984), 18, 23, 33–34.
 54. Bradford D. Hunt provides one of the best descriptions of this process in *Blueprint for Disaster: The Unraveling of Chicago Public Housing* (Chicago: University of Chicago Press, 2009). Patricia Roberts Harris, "A New Look at HUD," *Black Scholar* 9, no. 2 (October 1977): 15–21; Newman, *Design Guidelines for Creating Defensible Space*, 17.

9. FROM THE WAR ON CRIME TO THE WAR ON DRUGS

1. On the rise of conservatism during the 1960s and 1970s, see Gary Gerstle and Steve Fraser, "Introduction," in *The Rise and Fall of the New Deal Order, 1930–1980*, ed. Steve Fraser and Gary Gerstle (Princeton, NJ: Princeton University Press, 1989), ix–xxv; Matthew D. Lassiter, *The Silent Majority: Suburban Politics in the Sunbelt South* (Princeton, NJ: Princeton University Press, 2006); Lisa McGirr, *Suburban Warriors: The Origins of the New American Right* (Princeton, NJ: Princeton University Press, 2001); Robert O. Self, *American Babylon: Race and the Struggle for Postwar Oakland* (Princeton, NJ: Princeton University Press, 2003).
2. During the 1976 primary, Reagan asserted this view when discussing the law and order issue, appearing even tougher on crime than Ford. "What is the cause of crime in America?" Reagan asked during the campaign. "If one should listen to the Congress of the U.S., its most vocal voices, you will hear the old refrain, 'Poverty is the root cause of crime.' But time *has* proven these people wrong—dead wrong in too many cases." Thomas E. Cronin, Tamia Z. Cronin, and Michael E. Millakovich, *U.S. v. Crime in the Streets* (Bloomington:

- Indiana University Press, 1981), 119. See Edward Banfield, *Moral Basis of a Backward Society* (New York: Free Press, 1967) and Edward Banfield, *The Unheavenly City: The Nature and Future of Our Urban Crisis* (New York: Little, Brown, 1970); Milton Friedman, *Capitalism and Freedom: Fortieth Anniversary Edition* (Chicago: University of Chicago Press, 2002); Oscar Lewis, *The Children of Sanchez: Autobiography of a Mexican Family* (New York: Vintage Books, 1979); Charles Murray, *Losing Ground: American Social Policy, 1950–1980* (New York: Basic Books, 1984). Scholarship on the so-called “underclass” includes Douglas Glasgow, *The Black Underclass: Unemployment and Entrapment of Ghetto Youth* (New York: Random House, 1980); Lawrence Mead, *Beyond Entitlement: The Social Obligations of Citizenship* (New York: Free Press, 1986); Herbert J. Gans, *The War against the Poor: The Underclass and Antipoverty Policy* (New York: Basic Books, 1995); Michael Katz, ed., *The “Underclass Debate”: Views from History* (Princeton, NJ: Princeton University Press, 1993); and Katz, *The Undeserving Poor: From the War on Poverty to the War on Welfare* (New York: Pantheon, 1990). Ronald Reagan, *Remarks in New Orleans, Louisiana, at the Annual Meeting of the International Association of Chiefs of Police*, September 28, 1981, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=44300>.
3. Morris quoted in “Crime Fighters at the End of the Road,” *Washington Post*, April 15, 1982, A23.
 4. Katherine Beckett, *Making Crime Pay: Law and Order in Contemporary American Politics* (New York: Oxford University Press, 1999), 3; David Garland, *The Culture of Control: Crime and Social Order in Contemporary Society* (Chicago: University of Chicago Press, 2002), 14; see also Michael Tonry, *Malign Neglect: Race, Crime and Punishment in America* (New York: Oxford University Press, 1996).
 5. Biden quoted in Mary Thornton, “Senate Votes to Toughen Federal Sentencing Law,” *Washington Post*, October 1, 1982, A3; May 25, 1988, “Statement of Congressman Glenn English,” press release, Williams Files, White House Conference Recommendations OA 19050, Ronald Reagan Presidential Library (hereafter, RRPL); Crime Control package, 1984 legislative chronology, *Congress and the Nation, 1981–1984*, 6 (Washington, DC: Congressional Quarterly Press, 1985), available at <http://library.cqpress/congress/catn81-0011176010>.
 6. May 11, 1988, memorandum for Jim Miller from Wayne Arny and Alan Raul, subj.: “DOD Anti-Drug Program,” Addington Files, Drugs (8) OA 16788, RRPL. See also Stuart Schrader, “American Streets, Foreign Territory: How Counterinsurgent Police Waged the War on Crime” (PhD diss., New York University, 2015).
 7. N.d., George H. W. Bush, “National Law Enforcement: A Personal Perspective,” Counterterrorism and Narcotics Files, National Narcotics Border Inter-

- diction System (1), box 92258, RRPL; Stephen Graham, *Cities under Siege: The New Military Urbanism* (New York: Verso, 2011).
8. Bush, "National Law Enforcement"; May 23, 1984, "Briefing Book: DOJ for Administration Anti-Crime Legislation," To Meese from Attorney General William French Smith, subj.: "Anti-Crime Leg," Meese Files, Anti-Crime Legislation (2) OA 10246, RRPL; June 30, 1988, "Statement by the President," folder "Legislation-Anti Drug Abuse Act of 1988 [5 of 7]," box 4, MacDonald Files, RRPL; Keith B. Richburg, "Congress Approves Major Overhaul of the Nation's Anticrime Statutes," *Washington Post*, October 12, 1984, A21; Sam Enriquez, "Seized in Raids," *Los Angeles Times*, April 20, 1986, B1.
 9. Bush, "National Law Enforcement"; May 18, 1988, "Remarks by the President at U.S. Coast Guard Commencement"; Enriquez, "Seized in Raids"; Christian Parenti, *Lockdown America: Police and Prisons in the Age of Crisis* (New York: Verso, 2000), 54; Eric Blumenson and Eva Nilsen, "Policing for Profit: The Drug War's Hidden Economic Agenda," *University of Chicago Law Review* 65 (1988): 64, 82; "FBI Drug Sting Probed after Agent's Arrest," *Washington Post*, March 16, 1985, A4; Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New York: New Press, 2011), 78, 80.
 10. April 28, 1988, "Remarks by Donald Ian MacDonald, National Drug Policy Board," Williams Working-Legislative Initiative 1988 (2) OA 16690, RRPL.
 11. Blumenson and Nilsen, "Policing for Profit," 64, 82; Victor Merina, "The Slide from Cop to Criminal," *Los Angeles Times*, December 1, 1993; "FBI Drug Sting Probed," A4.
 12. Heather Ann Thompson, "The Prison Industrial Complex: A Growth Industry in a Shrinking Economy," *New Labor Forum* 21 (Fall 2012): 38–47; Leslie Maitland Werner, "Getting Out the Word on the New Crime Act," *New York Times*, November 16, 1984, A24; Bruce Western, Becky Pettit, and Josh Guetzkow, "Black Economic Progress in the Era of Mass Imprisonment," in *Invisible Punishment: The Collateral Consequences of Mass Imprisonment*, ed. Marc Mauer and Medea Chesney-Lind (New York: New Press, 2002), 167. See also Kimberly E. Gilmore, "States of Incarceration: Prisoners' Rights and United States Prison Expansion after World War II" (unpublished diss., New York University, 2005).
 13. Between fiscal year 1981 and fiscal year 1982, the Reagan administration cut annual federal spending on social programs from \$94.8 billion to \$88.8 billion, including a decrease of \$490 million from child nutrition programs, and a \$341 million reduction in AFDC payments. The poverty rate itself also rose from 15 percent in 1975 to 23 percent by 1987. Margy Waller, "Block Grants: Flexibility vs. Stability in Social Services" (Brookings Institute, Center on Children and Families no. 34, December 2005), available at <http://www.brookings.edu/es/research/projects/wrb/publications/pb/pb34.pdf>; Andrew E.

- Busch, *Ronald Reagan and the Politics of Freedom* (New York: Rowman and Littlefield, 2001); Richard S. Williamson, "A New Federalism: Proposals and Achievements of President Reagan's First Three Years," *Publius* 16 (Winter 1986): 11–28; "Strengthening the Social Fabric," *Christian Science Monitor*, November 15, 1988, 1; Leith Mullings, "Losing Ground: Harlem, the War on Drugs, and the Prison Industrial Complex," *Souls* 5, no. 2 (2003): 1–21; Ronald Reagan, *Radio Address to the Nation on Welfare Reform*, February 15, 1986, American Presidency Project, available at <http://www.presidency.ucsb.edu/ws/?pid=36875>.
14. May 18, 1988, "Remarks by the President at U.S. Coast Guard Commencement," Nitchem Field, New London, CT, Addington Files Drugs (7) OA 16788, RRPL.
 15. See James Mills, *The Underground Empire: When Crime and Governments Embrace* (New York: Dell, 1986); Faye V. Harrison, "Drug Trafficking in World Capitalism: A Perspective on Jamaican Posses in the U.S.," *Social Justice* 16, no. 4 (Winter 1989): 115–131; "Strengthening the Social Fabric."
 16. Resident quoted in "Just Saying No Is Not Enough: HUD's Inadequate Response to the Drug Crisis in Public Housing," 100th Cong., 2d sess., H.R. Rep. No. 100–702 (June 15, 1988); June 23, 1988, "Issue Paper for Discussion at the National Drug Policy Board," Counterterrorism and Narcotics Files, Policy Board Minutes (1) Richard Porter NSC Staff, box 92258, RRPL; March 3, 1988, letter to Mac from Dick (Williams) "Re: Crack Use in Inner Cities," Williams Files, Crack/Cocaine OA 19050, RRPL.
 17. Between 1980 and 1984 alone, the FBI's antidrug allocation increased more than tenfold, from \$8 million in 1980 to \$95 million in 1984. March 21, 1987, "Radio Address by the President to the Nation," Camp David, Maryland, MacDonald Files, Anti-Drug Abuse Budget, 1987-Working Papers OA 16316, RRPL; January 21, 1987, memorandum to Donald T. Regan; Katherine Beckett, *Making Crime Pay: Law and Order in Contemporary American Politics* (New York: Oxford University Press, 1999), 3, citing Executive Office of the President, Budget of the U.S. Government (1990), citing U.S. Office of the National Drug Control Policy, National Drug Control Strategy (1992); Marc Mauer and Meda Chesney-Lind, "Introduction," in Marc Mauer and Meda Chesney-Lind, *Invisible Punishment: The Collateral Consequences of Mass Imprisonment* (New York: New Press, 2003), 6.
 18. The legislation also included provisions stipulating that any person caught in possession of small amounts of illegal drugs now faced a civil fine of up to \$10,000. Individuals convicted of a drug-related murder or in federal court were now subject to the death penalty. January 21, 1987, memorandum to Donald T. Regan from Charles Hobbs and Richard L. Williams, subj.: "The

- Anti-Drug Abuse Budget,” MacDonald Files, Anti-Drug Abuse Budget, 1987–Working Papers OA 16316, RRPL; George Bush, “National Law Enforcement: A Personal Perspective”; November 18, 1988, “Fact Sheet: Anti-Drug Abuse Act of 1988,” White House, Office of the Press Secretary, Addington Files, Drugs (1) OA 16788, RRPL; Parenti, *Lockdown America*, 57; “Congress Clears Massive Anti-Drug Measure,” *Congressional Quarterly Almanac*, vol. 42 (1986), 98. I borrow “apartheid sentencing” from Parenti. Though in 1985 roughly 800,000 Americans faced drug-related charges; by 1989 the number had shot up to roughly 1.4 million. Parenti, *Lockdown America*, 58; Richard M. Smith, “The Plague among Us,” *Newsweek*, June 16, 1986, 15; “Drugs: The Enemy Within,” *Time Magazine Special Report*, September 15, 1986.
19. Alexander, *New Jim Crow*, 54, 58, 60; Lawrence D. Bobo and Victor Thompson, “Racialized Mass Incarceration: Poverty, Prejudice, and Punishment,” in *Doing Race: 21 Essays for the 21st Century*, ed. Hazel R. Markus and Paula Moya (New York: W. W. Norton, 2010): 322–355, 332; A. T. Callinicos, “Meaning of Los Angeles Riots,” *Economic and Political Weekly* 27, no. 30 (July 25, 1992): 1603–1606; Bruce Western, *Punishment and Inequality in America* (New York: Russell Sage Foundation, 2006), 47; Glenn Loury, ed., *Race, Incarceration, and American Values* (Cambridge, MA: MIT Press, 2008).
 20. In urban areas like Oakland, the drug task force became so dependent on federal drug fighting grants that by 1995 the commander of a special task force within the Oakland Housing Authority began shifts by proclaiming, “Let’s go out and kick ass,” as well as “Everybody goes to jail tonight for everything, right?” George Bush, “National Law Enforcement: A Personal Perspective”; May 18, 1988, “Remarks by the President at U.S. Coast Guard Commencement”; Enriquez, “Seized in Raids; Parenti, *Lockdown America*, 54; Blumenenson and Nilsen, “Policing for Profit,” 64, 82; “FBI Drug Sting Probed,” A4; quoted in Alexander, *New Jim Crow*, 78, 80.
 21. March 21, 1987, “Radio Address by the President to the Nation,” Camp David, Maryland, MacDonald Files, Anti-Drug Abuse Budget, 1987–Working Papers OA 16316, RRPL; January 21, 1987, memorandum to Donald T. Regan; Katherine Beckett, *Making Crime Pay: Law and Order in Contemporary American Politics* (New York: Oxford University Press, 1999), 3, citing Executive Office of the President, Budget of the U.S. Government (1990), citing U.S. Office of the National Drug Control Policy, National Drug Control Strategy (1992); Marc Mauer and Meda Chesney-Lind, “Introduction,” in Mauer and Chesney-Lind, *Invisible Punishment: The Collateral Consequences of Mass Imprisonment* (New York: New Press, 2003), 6.
 22. March 24, 1987, memorandum for the President from James Miller III, subj.: “Proposed Executive Order Entitled ‘National Drug Policy Board,’” Williams

- Files, 3703: 0913011988 NDPB Issues, November 1988-WHC Responses (5) OA 19052, RRPL.
23. March 24, 1987, memorandum for the President; September 7, 1988, “Statement of Administration Policy: H.R. 5210—Omnibus Drug Initiative Act of 1988,” Williams, Congressional Drug Proposals 1988 # 1 1300; OA 16900, RRPL.
 24. The Drug Policy Board also worked to include the private sector in its narcotics control effort as much as possible. While the federally controlled non-profit agency ACTION worked during the Carter administration to foster tenant patrols and security hardware in the nation’s housing projects, by the late 1980s it was responsible for managing drug abuse activities. In 1987 alone, the year Reagan called the board, funding of ACTION increased by \$5 million, giving the agency an unprecedented annual budget of \$13 million. June 30, 1988, “Statement by the President,” folder “Legislation-Anti Drug Abuse Act of 1988 [5 of 7],” box 4, MacDonald Files, RRPL; January 16, 1987, memorandum for Ed Meese from Joseph R. Wright Jr., subj.: “Funding in the 1988 Budget for Drug Abuse Activities,” MacDonald Files, Anti-Drug Abuse Budget 1987 Working Papers A 16316, RRPL.
 25. May 23, 1984, “Briefing Book: DOJ for Administration Anti-Crime Legislation”; February 19, 1988, “Statement of the Honorable Charles B. Rangel, Chairman—Select Committee on Narcotics Abuse and Control,” Press Conference on the 1989 Drug Budget and International Drug Policy, Williams, Drug Abuse Budgets 1981–1987 (12) OA 19358, RRPL; November 18, 1988, “Remarks by the President at Signing Ceremony for the Anti-Drug Abuse Act of 1988”; March 24, 1988, “Proposed Remarks for Vice President George Bush, Hartford Country Bar Association, Hartford CT,” Counterterrorism and Narcotics, National Narcotics Border Interdiction System, folder 1, box 92258, RRPL; May 24, 1988, “Legislative Initiative: High Risk Youth Committee,” Williams Legislative Initiative 1988 1303 [3] OA 16690, RRPL; June 23, 1988, “Issue Paper for Discussion at the National Drug Policy Board,” Counterterrorism and Narcotics Files, Policy Board Minutes (1) Richard Porter NSC Staff, box 92258, RRPL.
 26. August 10, 1988, “Legislative Referral Memorandum,” Executive Office of the President, MacDonald Files II Legislation—Anti Drug Abuse Act of 1988 [4 of 7] box 4; RRPL; Western, *Punishment and Inequality in America*, chap. 7.
 27. Federal Bureau of Investigation, “Crips and Bloods: Drug Gang,” Freedom of Information Act Document; “The Drug Gangs,” *Newsweek*, March 28, 1988, 20–27; U.S. Department of Justice, National Institute of Justice, Division of Law Enforcement, Investigation and Enforcement Branch, Bureau of Crime and Criminal Intelligence, “Crips & Bloods Street Gangs,” reproduced by California Department of Justice, Office of the Attorney General, Sacramento, CA, n.d. (likely 1988); Bernard Headley, “War Ina ‘Babylon’: Dynamics of the

- Jamaican Informal Drug Economy,” *Social Justice* 15, no. 3–4 1988: 61–86, 67; Harrison, “Drug Trafficking in World Capitalism.”
28. “Crips & Bloods Street Gangs.”
 29. Federal Bureau of Investigation, “Crips and Bloods: Drug Gang”; “The Drug Gangs,” *Newsweek*, March 28, 1988, 20–27; “Crips and Bloods Street Gangs”; Headley, “War Ina ‘Babylon,’” 61–86, 67; Harrison, “Drug Trafficking in World Capitalism.”
 30. Street Terrorism Act, California Penal Code Section 186.20; *ibid.* See also Donna Murch, “Ferguson’s Inheritance,” *Jacobin Magazine*, August 5, 2015, available at <https://www.jacobinmag.com/2015/08/ferguson-police-black-lives-matter/>.
 31. “Around the Nation,” *Washington Post*, August 21, 1989, A4; “Pilot Project to Stem the Violence Set in East L.A.,” *Los Angeles Sentinel*, July 20, 2000, A1; Norman quoted in Nieson Himmel, “L.A. Gang Killings Put at 236—Up 15% from ’87,” *Los Angeles Times*, December 16, 1988, C1.
 32. The favorable statistics were directly tied to the increased gang reporting that resulted from the sweeps. By 1989, after a handful of weekend sweeps swooped up thousands more young Angeles, Community Gang Services estimated that 70,000 young men and women were gang members in Los Angeles, up from 30,000 in 1980. From “Youth Gang Programs and Strategies,” Office of Juvenile Justice and Delinquency Prevention Summary, August 2000, available at https://www.ncjrs.gov/html/ojjdp/summary_2000_8/suppression.html; Ron Dungee, “Weekend Gang Sweep Results in 352 Arrests,” *Los Angeles Times*, August 24, 1989, A1; Nieson Himmel, “L.A. Gang Killings Put at 236—Up 15% from ’87,” *Los Angeles Times*, December 16, 1988, C1; Robert Welkos, “700 Seized in Gang Sweep; 2 More Die in Shootings,” *Los Angeles Times*, September 19, 1988, 21.
 33. Scott Armstrong, “Sawhorses Enlisted in Drug War,” *Christian Science Monitor*, June 15, 1990, 8; “What Is Operation Cul de Sac? Will It Help?,” *Los Angeles Sentinel*, June 20, 1991, A1.
 34. On the “criminalization of urban space,” see Heather Ann Thompson, “Why Mass Incarceration Matters: Rethinking Crisis, Decline, and Transformation in Postwar American History,” *Journal of American History* 97, no. 3 (December 2010): 703–758, 705. Quoted in Maurice Miller, “Drug Enforcement Barricades Not Accepted by All Residents,” *Los Angeles Sentinel*, March 1, 1990, A1.
 35. *California v. Acevedo*, 500 U.S. 565, 600 (1991), Stevens, J., dissenting; Alexander, *New Jim Crow*, 61, quoted on 103.
 36. *McCleskey v. Kemp* Supreme Court majority opinion, Page 481 U.S. 316; *California v. Acevedo*, 500 U.S. 565, 600 (1991), Stevens, J., dissenting; Alexander, *New Jim Crow*, 61.

37. Alexander, *New Jim Crow*, 11, 113, 103; U.S. Department of Justice, Drug Enforcement Administration, *Operation Pipeline and Convoy* (Washington, DC, n.d.), www.usdoj.gov/dea/programs/pipecon.htm; Alexander, *New Jim Crow*, 70.
38. “Crips & Bloods Street Gangs.”
39. *Ibid.*
40. According to the Census Bureau, the number of Americans who married outside their race increased from 149,000 in 1960 to 651,000 in 1980 to more than double that number—or 1,348,000—by 1990. U.S. Census Bureau, “America’s Families and Living Arrangements,” (2000), available at <http://www.census.gov/population/socdemo/hh-fam/p20-537/2000/tabfg4.txt>; Anita Kathy Foeman and Teresa Nance, “From Miscegenation to Multiculturalism: Perceptions and Stages of Interracial Relationship Development,” *Journal of Black Studies* 29 (1999): 540–557. In addition to the police profiling interracial couples and black families, black-owned businesses were vulnerable to police investigations on suspicion of gang affiliation. With “tremendous amounts of cash on hand and no legitimate reasons for possessing it,” the California Attorney General’s Office warned that Crips and Bloods members used beauty salons, music shops, auto body shops, night clubs, limousine services, construction companies, pager services, restaurants, liquor stores, car washes, food markets, real estate companies, and other small businesses to launder and invest their profits from the black market. Under these terms, any black-owned business, particularly in segregated urban communities, could be subject to possible attack and surveillance under the pretext that it operated as a front for drug trades. “Crips & Bloods Street Gangs.”
41. “Crips & Bloods Street Gangs.”
42. Colton Simpson, author interview by telephone November 27, 2005; Stanley Tookie Williams, *Blue Rage, Black Redemption* (New York: Touchstone Books, 1997), 134; Yusuf Jah and Sister Shah’Keyah, *Uprising: Crips and Bloods Tell the Story of America’s Youth in the Crossfire* (New York: Touchstone Books, 1997), 29.
43. “Around the Nation,” *Washington Post*, August 21, 1989, A4; “Pilot Project to Stem the Violence Set in East L.A.,” *Los Angeles Sentinel*, July 20, 2000, A1; Norman quoted in Himmel, “L.A. Gang Killings.”
44. “A Sheriff’s Office Makes Own Crack,” *Chicago Tribune*, April 20, 1989, 29; Jeffrey Schmalz, “New Twist on Crack in Florida,” *New York Times*, April 19, 1989, A12; *ibid.*
45. Sharon Jefferson, “NAACP Calls for Investigation,” *Call and Post*, January 22, 1987, 1A.
46. Ray Zeman, “20 Youth Gang Heads Say They Want Jobs,” *Los Angeles Times*, December 28, 1974, A1.

EPILOGUE: RECKONING WITH THE WAR ON CRIME

1. J. Phillip Thompson, *Black Mayors, Black Communities, and the Call for a Deep Democracy* (New York: Oxford University Press, 2005).
2. The severity of felon disenfranchisement laws corresponds directly to the number of black and Latino prisoners under criminal supervision in a given state. Christopher Uggen, Sarah Shannon, and Jeff Manza, "State-Level Estimates of Felon Disenfranchisement in the United States, 2010" (Washington, DC: The Sentencing Project, 2012), available at http://sentencingproject.org/doc/publications/fd_State_Level_Estimates_of_Felon_Disen_2010.pdf; see also The Sentencing Project, "Felony Disenfranchisement: A Primer" (Washington, DC: The Sentencing Project, 2014), available at http://sentencingproject.org/doc/publications/fd_Felony%20Disenfranchisement%20Primer.pdf. On the impact of the U.S. census counts on the general health of American democracy, see Heather Ann Thompson, "How Prisons Change the Balance of Power in America," *Atlantic Monthly*, October 2013, available at <http://www.theatlantic.com/national/archive/2013/10/how-prisons-change-the-balance-of-power-in-america/280341/>; Christopher Uggen and Jeff Manza, "Democratic Contraction? Political Consequences of Felon Disenfranchisement in the United States," *American Sociological Review* 67 (December 2002): 777–803; Erica Frankenberg, Chungmei Lee, and Gary Orfield, "A Multiracial Society with Segregated Schools: Are We Losing the Dream?," The Civil Rights Project, Harvard University (The Civil Rights Project, January 2003), available at <http://civilrightsproject.ucla.edu/research/k-12-education/integration-and-diversity/a-multiracial-society-with-segregated-schools-are-we-losing-the-dream/frankenberg-multiracial-society-losing-the-dream.pdf>.
3. In Baltimore, where officials declared community involvement a major priority but allocated only 2 percent of High Impact funds for such efforts, the Lock Haven Radio Watch equipped volunteers with walkie-talkies in order to assist the police department in monitoring several neighborhoods. Officials credited the auxiliary force with a 23 percent decline in burglaries and a 96 percent drop in auto thefts during the three months in which it operated. Eleanor Chelimsky, *High Impact Anti-Crime Program: National Level Evaluation Final Report, Vol. II* (Washington, DC: Department of Justice, National Institute of Law Enforcement and Criminal Justice, Law Enforcement Assistance Administration, 1976), 313.
4. H. R. Haldeman, *The Haldeman Diaries: Inside the Nixon White House* (New York: G. P. Putnam and Sons, 1994), 66.
5. In New York City, where 35 to 40 percent of its residents were people of color, only 7 percent of the police force was black. On the federal level during this

period, of the 2,200 agents working for the Drug Enforcement Agency, only 177 were black. And none of the ninety U.S. attorneys were of African descent, although the 3.3 percent of the lawyers working for the Justice Department itself were black. Lee P. Brown, "Bridge over Troubled Waters: A Perspective on Policing in the Black Community" in *Black Perspectives on Crime and the Criminal Justice System*, ed. Robert L. Woodson (Boston: G. K. Hall, 1977), 79–106, 88; Sterling Johnson, "Luncheon Speaker," in Woodson ed., *Black Perspectives*, 161–168, 162–163; James Baldwin, *Nobody Knows My Name* (New York: Dial Press, 1961), 65–67.